

The History and Romance of Crime

FROM THE EARLIEST TIMES
TO THE PRESENT DAY



THE GROLIER SOCIETY
LONDON

**The History and
Romance of
Crime**

FROM THE EARLIEST TIMES
TO THE PRESENT DAY



THE GROLIER SOCIETY
LONDON

The Project Gutenberg eBook of Non-Criminal Prisons

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Non-Criminal Prisons

Author: Arthur Griffiths

Release date: April 25, 2015 [eBook #48792]

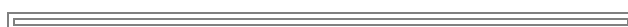
Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/48792

Credits: Produced by Chris Curnow, Chuck Greif and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK NON-
CRIMINAL PRISONS ***



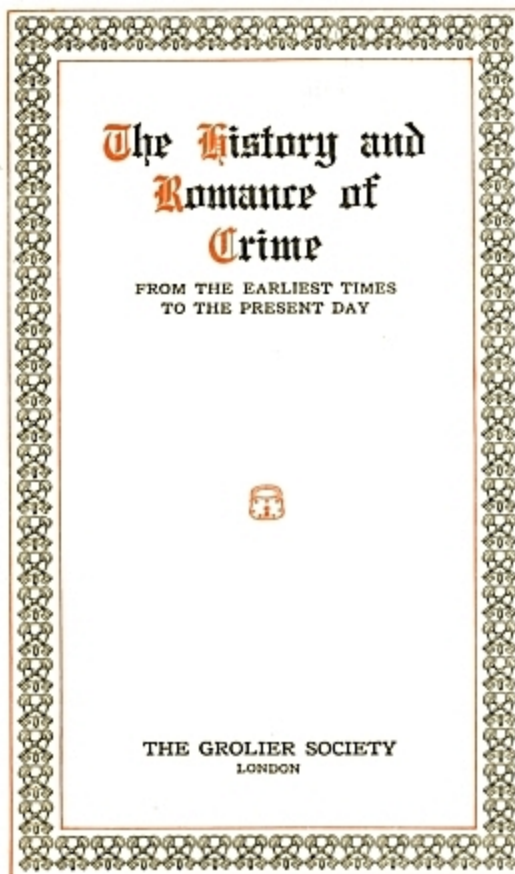
Every attempt has been made to replicate the original as printed.

Some typographical errors have been corrected; [a list follows the text](#).

Contents.

List of Illustrations

(etext transcriber's note)





Prison Hulks at Portsmouth

Old hulks of English warships were first used as prisons when the American War of Independence closed the shores of the colonies to the convict-exile and rendered some additional prison space in England immediately necessary. Used as prisons of war: many American prisoners were confined there after the War of 1812,—loathsome places of duration from which escape was difficult. They were also used for temporary detention of prisoners sentenced to penal servitude in the colonies overseas.

Non-Criminal Prisons

**ENGLISH DEBTOR'S PRISONS AND PRISONS
OF WAR
FRENCH WAR PRISONS
AMERICAN WAR PRISONS
WITH REFERENCES TO THOSE OF
OTHER LANDS**

by

MAJOR ARTHUR GRIFFITHS

Late Inspector of Prisons in Great Britain

Author of
“The Mysteries of Police and Crime
“Fifty Years of Public Service,” etc.



THE GROLIER SOCIETY

EDITION NATIONALE

Limited to one thousand registered and numbered sets.

NUMBER 307.

INTRODUCTION

THE word prison connotes crime; a place of punishment and detention where misdeeds are expiated and penalties enforced. A certain sense of shame attaches to all who have been committed to durance; for according to the old law, the “natural inherent right of liberty cannot be surrendered or forfeited unless by the commission of some great or atrocious crime.” This doctrine was coeval in one country at least, England, with the foundation of the constitution. Yet the seclusion and detention of individuals who had done no wrong, was long the rule in most civilised countries, and many prisons, which are to all intents and purposes non-criminal, have existed and been constantly filled with unfortunate persons guilty of no real offence against the law.

Of these there have been two principal classes: The debtors—those who had become bound to others for the repayment of moneys lent or goods purchased—and the prisoners of war,—combatants captured in the field whom the conqueror was entitled to hold in diminution of his enemy’s strength while hostilities continued. In both cases the right exercised is that of the strongest and in neither is it defensible, nor has it been always carried out fairly or humanely. The full acceptance of the principle, however, has called many large prisons into being which have gained great notoriety, and a description of them and the methods pursued forms the contents of this volume.

The British, essentially a commercial people, sought very early to control the relations between debtor and creditor, and ancient practice greatly favoured the latter. Every assistance was given him for the recovery of what was due him. His right to it was so amply acknowledged that the law went farther and decreed that the debtor who could not pay in cash was liable in person, so his services were attached to work out the debt and he was adjudged a serf or slave to the master he could not otherwise satisfy. The principle was derived from the Mosaic law by which the defaulter might be sold into bondage with his family, his wife and his wage-earning children. It was the same in ancient Greece and Rome, where the creditor had a claim to the person of his debtor. Solon abrogated this procedure, but it long held in Rome under very barbarous conditions. When judgment was

pronounced there against a debtor, he was allowed thirty days to liquidate, but if at the end of that period he was still unable to pay, he was handed over to his creditor, who might keep him in chains for sixty days and make public exposure of him proclaiming his failure, with permission finally to sell him or put him to death. There were no public prisons for debtors in old Rome and the creditor acted as his own gaoler until milder methods ruled that the right of private imprisonment was intolerable. Nor was it permissible in feudal times, when men were continually called upon to bear arms for their lord and their valid effective strength would have been reduced by locking them up in gaol.

Imprisonment for debt had its origin in the wish to foster and protect trade. The creditor was permitted when he had proved his debt to recoup himself by laying his debtor by the heels. Yet in England the practice was held by jurists to be an undoubted invasion of the "Bill of Rights." It was distinctly laid down that no court of justice, whether at common law or statute law, possessed the power to deprive an individual of his personal liberty for anything less than serious and atrocious crime. Still the right was usurped and exercised by specious means. Sellon says in his "Practice," "They obtained jurisdiction by a mere fiction over actions of debt, detinue and causes of a like nature." The judgment pronounced in English courts against a debtor was merely to the effect that he should pay the debt and costs, and it was incidental thereto that "if he does not pay an execution will issue against his property." But no mention of imprisonment was included in the judgment, for which there was, in fact, no authority.

This immunity from personal arrest remained in force in England long after Magna Charta, but a change was introduced by a statute generally known as that of "Marlbridge," which enacted as a remedy against absconding bailiffs and stewards that if any went off with the rents they had collected for their employers, their bodies might be attached when caught and they themselves held to serve to make good the loss. A second statute called that of "Acton Burnell" (11th Edward I), allowed merchants to arrest their debtors for acknowledged breaches of contract. The practice was excused by the plea that traders were very constantly foreigners and very likely to run out of the kingdom. As time passed the chicanery of the law was further called in to protect the creditor and the debtors' offence was held to be a fraudulent act, a *delictum* or offence injurious to the plaintiff or a contempt of the court originally moved to recover the debt. The rule then

was that the creditor should make a sworn affidavit against his debtor and that the court should summons him to appear and answer the claim. If he neglected to attend, the disobedience justified a presumption against him and the sheriff was ordered to distrain his goods so as to force him to come into court. If this procedure also failed, the defendant's conduct was construed into contumacy and a writ of *capias* was issued for the seizure of his person.

Herein there was clearly a great stretch of power and an unlawful interference with personal liberty, yet the procedure was acquiesced in on account of its general convenience. Still the public suffered in its broad interests and the debtor was undoubtedly damnified and afterward horribly ill-used. When the arrest was made, too often arbitrarily, he was hurried off to gaol where he might be kept in durance almost indefinitely with small hope of enlargement. He was in much worse case than the prisoner charged with a crime, for no proper provision was made for his support and maintenance. While the supposed lawbreaker got the county allowance, such as it was, the debtor might starve. The latter was no doubt entitled to claim his "groats," fourpence per diem, from his creditor, who was slow to pay, and did so only under compulsion enforced by legal process, a costly matter generally beyond the means of the insolvent and necessitous debtor. To die within the walls was easier than to obtain release, even if he could show that he had been wrongfully locked up. It cost money to prove that he did not owe the debt; a suit at law must be begun and carried through, and legal process was an expensive undertaking wholly beyond his means. This was so well understood that a recognised and not uncommon form of charity was the donation and bequest of moneys for the assistance of poor debtors.

Many are the painful details of the misuse of debtors, and of the power given to one class of the community to oppress the other. The laws relating to debtor and creditor in England were for centuries unsound, illogical and unequal, and productive of untold misery to enormous numbers of innocent people. The great debtors' prisons of England will live in history rivalling in their callous neglect and distinctly inhuman treatment the more notorious receptacles used by high-handed and cruel tyrants for the coercion of their helpless subjects. The irresponsible despotic ruler who cast all who offended him into dark dungeons and hermetically closed *oubliettes*, condemning them to a lingering and acutely painful death, was no worse

than the callous judge who, enmeshed by complex, senseless machinery, consigned harmless people to gaol for unlimited terms and under the most irksome conditions, because unable to meet the smallest and not always the most righteous pecuniary demands. It was not until John Howard laid bare the secrets of the prison houses that the whole story was revealed or the unjust sufferings of the debtor class fully realised.

The status of military prisons the world over has been an indictment upon humanity. In England, the Hulks and Dartmoor; in France, Verdun and Bitche; in Russia, Peter and Paul and the Schlüsselburg; in the United States, Libby Prison, Andersonville and Fort Delaware are sad examples of the cruelties of war. Idleness, starvation and homesickness conspired to make the wretched captives prefer death or daring escape to indefinite torture.

CONTENTS

CHAPTER	PAGE
INTRODUCTION	5
I. THE FLEET PRISON	15
II. ABUSES AT THE FLEET	39
III. FAMOUS DWELLERS IN THE FLEET	76
IV. THE KING'S BENCH PRISON	100
V. LIFE IN THE KING'S BENCH	127
VI. ENGLISH PRISONS OF WAR	154
VII. THE HULKS	179
VIII. AMERICAN PRISONERS IN ENGLAND	199
IX. FRENCH WAR PRISONS	231
X. LATER RECORDS	258
XI. AMERICAN WAR PRISONS	287

List of Illustrations

PRISON HULKS AT PORTSMOUTH	<i>Frontispiece</i>
THE FLEET BEGGAR	<i>Page 28</i>
A FLEET WEDDING	“ 68
PRINCETOWN PRISON	“ 164

NON-CRIMINAL PRISONS

CHAPTER I

THE FLEET PRISON

The great debtors' prisons of England notorious for their callous neglect and inhuman treatment—Denounced by John Howard, the philanthropist—The Fleet, the King's Bench and the Marshalsea—Origin of the Fleet—Early government—Closely connected with religious and political persecution—Bishop Hooper—Account of the Fleet at the beginning of the seventeenth century—Charges of cruelty brought against Warden Alexander Harris—Charitable bequests—Fees extorted—Prices charged for chamber-rent—Deplorable state of the prison.

THE three principal prisons in London in the fourteenth century were the Fleet, the King's Bench and the Marshalsea, but Newgate took precedence in interest because identified with its earliest history. All have their peculiar histories full of interesting associations, replete with memories of famous inmates and striking incidents, and all are worthy of detailed description. All alike received prisoners for debt and on occasion, more heinous offenders, especially in the earlier years of their existence. The old King's Bench was the peculiar prison for the Court of that name, but it also took debtors committed by the Court of Exchequer and the Court of Common Pleas. The Marshalsea Court, so called from having been originally under the control of the Knight Marshal of the Royal Household, was at first intended to settle differences between the lesser servants of the palace, and had its own judge, counsel and attorneys, but none except members of Clifford's Inn were permitted to practise in this court. The jurisdiction of this court extended twelve miles round Whitehall, excluding the city of London. It also served the Admiralty Court and received prisoners charged with piracy.

The Fleet prison took its name from the little stream long stigmatised as the "Fleet^[1] Ditch," the open sewer or water-way which rose in the eastern ridge of Hampstead Hill, flowed by "Oldbourne" or Holborn under four bridges to discharge into the Thames on the west side of Blackfriars bridge.

As time passed this ditch, after being deepened once or twice to allow for water traffic, became more and more pestilential and was at length filled up and arched over, becoming then the site of Fleet Market in what is now known as Farringdon Street, on which the main gates of the prison opened. The building was of great antiquity and is first mentioned in authentic records about A. D. 1197. A deed of that date granted it to the safe keeping of one Nathaniel de Leveland and his son Robert, in conjunction with the King's Houses at Westminster. It is stated that the Fleet prison had been the inheritance of the Levelands since the time of the Norman Conquest. Four years later this same Robert de Leveland petitioned King John for leave to hand over the wardenship of the Fleet to Simon Fitz-Robert, archdeacon of Wells, while he, Leveland, proceeded with the crusaders to the Holy Land. He returned very shortly afterward, as appears from a grant of moneys made him by the City of London in 1205, his salary for guardianship of the prison. His wife Margaret was also granted an allowance as keeper of the Westminster Royal Houses.

Many entries in the records show that in those early days the Fleet was a place of detention for offenders of all sorts as well as of ordinary debtors, and especially of defaulters owing money to the King's Exchequer. The Chamberlain of Chester in the reign of Edward I was imprisoned in the Fleet for a year on account of a debt to the King. A similar case was that of the sheriffs of Nottingham and Derby, who were detained in 1347 for sums owing to the Exchequer in the reign of Edward III; another, that of William de Hederse, who was answerable for great "arrears to our lord the King," through a deceased partner who had died insolvent. The Fleet received debtors for the Court of Chancery, and was essentially the King's prison to which were committed all who came under his displeasure or failed in their obligations and payments. When one Guy de Codemore was ordered into exile and did not leave the country, forthwith he was thrown into the Fleet. French prisoners of war taken in the capture of Harfleur, in 1423, were brought to the Fleet. When Sir Geoffrey Poole of Hampshire fell out with a neighbour, the Lord Privy Seal summoned him to appear before him and committed him to the Fleet until the King's (Henry VIII) further pleasure should be known. Lady Poole won her husband's pardon this time, but Sir Geoffrey was again in trouble the very next year for assaulting the parson of Pacton in the county of Sussex.

In these troublous times various offenders found themselves in the Fleet. It was a place of penitence for young gentlemen who misbehaved, such as the son and heir of Sir Mathew Browne of Surrey who, with his servants, was guilty of arson in a wood; a printer who sold seditious books was committed to it in 1541; the riotous servants of a gentleman of the Privy Chamber were laid by the heels in the Fleet. Smugglers and all who infringed the Customs' laws were committed to the prison as debtors to the King. A ship master of Southampton who was "privately conveying five packets of wool to Flanders without a license" was arrested and sent to the Fleet, the wool being seized and the captain fined half the value of his ship. It was made a place for the detention of state prisoners, for when Cowley, the Master of the Rolls in Ireland, was under examination in 1541 he was lodged in the Fleet until the King himself should come to London. This was the fate of the illustrious knight, Sir John Falstaff, when he bearded the Lord Chief Justice, as Shakespeare tells us in "Henry IV":—

"Go carry Sir John Falstaff to the Fleet,
Take all his company with him."

Poets, dramatists and pamphleteers were from time to time cast into the Fleet, and it was christened by Pope the "Haunt of the Muses." Among the first was Lord Surrey and among the latter Nash, author of the satirical play "The Isle of Dogs." Wycherley, the wit and dramatist, who married the Countess of Drogheda, languished for seven years as a debtor in the Fleet, and Sir Richard Baker, author of the famous "Chronicles," wrote them as a means of subsistence when an impecunious debtor there, where he died. Francis Sandford, author of the "Genealogical History," also died in the prison in 1693. James Howell, who wrote the delightful "Familiar Letters" during the troublous times of the Civil War, was a tenant of the Fleet prison in the years 1643 to 1647. In one of his letters dated from the Fleet in 1643, he describes his arrest one morning betimes, by five men armed with "swords, pistols and bills," who took him to gaol where, as he says, "as far as I can tell I must lie at dead anchor a long time unless some gentle gale blow thence to launch me out." He consoles himself, however, with the thought that all Englishmen being islanders, are, in effect, prisoners.

The Fleet was arbitrarily used by Sir Richard Empson in the reign of Henry VII, when that overbearing law officer was indicted for committing to it, without process, persons accused of murder and high crimes. Cardinal

Wolsey was charged with a like invasion of the liberty of the subject, “by his power and might contrary to right,” in the case of a Sir John Stanley who had taken possession of a farm illegally. This man would not yield but preferred to turn monk in Westminster monastery, where he died.

Other prisoners were committed to the Fleet for political misdemeanours and severely dealt with by the ruling powers. It was an offence to marry the sister of Lady Jane Grey and for this imprisonment was adjudged to Edward Seymour, Earl of Hertford. Dr. Donne, who married Sir George More’s daughter without his knowledge, was laid by the heels; the penalty of durance overtook Sir Robert Killigrew for entering into conversation with Sir Thomas Overbury, when returning from a visit to Sir Walter Raleigh, then a prisoner in the Tower. James I, when overmuch importuned by the Countess of Dorset, who broke into the Privy Council Chamber, sent her to the Fleet, and Lucius Carey, Lord Falkland, was imprisoned for sending a challenge.

Many painful memories hang about the old Fleet prison in connection with the religious and political persecutions of the fifteenth and sixteenth centuries. It was crowded with the martyrs to intolerance in the reign of the bigoted Queen Mary and the victims Elizabeth sacrificed in the way of reprisals when she came to the throne. The Protestant party had been in the ascendant under Edward VI and the old religion had been sharply attacked, so that many eminent Catholic bishops burned at the stake,—Cranmer, Latimer, Ridley, and the pious Hooper, whose chief offence was that being a priest, he had married a wife. He was now Bishop of Worcester but he had been in the Fleet before, imprisoned by his own friends for refusing to wear vestments on the occasion of his consecration. He was soon set free but came again to the Fleet on his way to the stake.

His own account of this second confinement is to be found in Fox’s Book of Martyrs. “On the first of September, 1553, I was committed unto the Fleet from Richmond, to have the liberty of the prison, and within five days after I had paid for my liberty five pounds sterling to the warden for fees, who immediately upon the payment thereof complained unto Stephen Gardiner, Bishop of Winchester, and so I was committed to close prison one quarter of a year in the lower chamber of the Fleet and used very extremely. Then by the means of a good gentleman, I had liberty to come down to dinner and supper; not suffered to speak to any of my friends, but as soon as dinner and supper were done to repair to my chamber again.

Notwithstanding ... the warden and his wife picked quarrels with me and complained untruly of me to their great friend the Bishop of Winchester.

“After one quarter of a year and somewhat more, Babington, the warden, and his wife fell out with me for the wicked mass; and thereupon the warden resorted to the bishop and obtained to put me in the ward, where I have continued a long time, having nothing appointed to me for my bed but a little pad of straw and a rotten covering with a tick and a few feathers to lie on, the chamber being vile and stinking, until by God’s means good people sent me bedding. On one side of the prison is the stink and filth of the house and on the other side the town ditch (the Fleet ditch) so that the evil smells have affected me with sundry diseases. During which time I have been sick and the doors, bars, hasps and chains being all closed and made fast upon me, I have mourned, called and cried for help, but the warden when he hath known me many times ready to die, and when the poor men of the ward have called to help me, hath commanded the doors to be kept fast and charged that none of his men should come at me saying, ‘Let him alone, it were a good riddance of him.’ ”

Yet the sums extorted from the poor bishop were as high as for a peer of the realm. A lord, spiritual or temporal, paid the sum of five pounds as “fyne” for liberty of the house and irons on first coming in. It was a graduated scale, each item according to rank ranging from ten pounds for an archbishop, duke or duchess, to twenty-five shillings for an esquire. The rates were proportionate and laid upon everything: fees for dismissal, for entering the obligation and to everyone concerned in the administration, porter, “jayler,” chamberlain, charge for commons or board and for “coyne.” When these fees were not promptly paid the wretched prisoner was “left to lye in the common prison without ‘bedd’ or ‘dyete,’ subject to the discomfort of low companions and the dangers of distemper.”

Bishop Hooper sums up his griefs thus: “I have suffered imprisonment almost eighteen months. My goods, living, friends and comfort taken from me; the Queen [Mary] owing me by first account eighty pounds or more, she hath put me in prison and giveth nothing to find me; neither is there any suffered to come at me whereby I might have relief. I am with a wicked man and woman [the warden and his wife] so that I see no remedy (save God’s help) but I shall be cast away in prison before I come to judgment. But I commit my just cause to God whose will be done whether it be life or death.” It was death, and as he esteemed it, a glorious death, that of being

burnt at the stake after some more months in confinement, during which he was frequently examined and called upon to recant. He was sent down for execution to Gloucester, of which diocese he had been bishop before his translation to Worcester. He was burned alive at a slow fire and suffered exceeding torment, but bore it with the splendid endurance vouchsafed to so many victims to savage laws that counted difference in religious belief an abominable crime.

We have an authentic account of the interior of the prison early in the seventeenth century, in the volume published by the Camden Society, entitled the “Æconomy of the Fleete” by Alexander Harris, at one time warden there. Charges were brought against him by a number of his prisoners, of oppression and ill-usage and he is at great pains to make his defence. The prison, as he describes it, was no doubt identically the same as that of earlier date. It consisted of “six great rooms and a courtyard with Tower chambers and Bolton’s ward,” the strongest part of the prison. There was a further sub-division. One ward of the Tower chambers was appropriated to females exclusively; another was called the “Twopenny” ward from the price charged; a third the “Beggars’ ” ward in which nothing was demanded and nothing given. At a lower level was the Dungeon, a receptacle for refractory prisoners where they were kept in irons and confined in the stocks.

The inmates one and all were entirely at the mercy of the warden, who inherited his office, or purchased it, and looked to recoup himself by the fees he extorted from his prisoners. The place was a sort of sorry hotel kept by a brutal and rapacious landlord, as a life tenant, with a keen eye to profit, and who gave his lodgers nothing, exacting payment often exorbitant for even light and air and the barest necessities. The English law was so neglectful and inhuman that it made no regular provision for the imprisoned debtor. A fiction existed that the creditor was bound to contribute four pence daily to provide him with food, but, as has been said, as late as 1843 this payment of the “groat” was not punctually made, if at all, and could only be enforced by slow process of law at a cost prohibitory to the penniless prisoner, and he was thrown on his own resources, to starve if without friends or private means, or in the extreme case to drag out a miserable existence from the doles of the charitable. Great numbers of hapless folk in the passing ages were detained for five and twenty, thirty and even forty years, on account of debts of a few pounds, grown out of a first pitifully

small sum and largely increased by arbitrary charges for fees and maintenance, which but for unjust arrest and detention would never have existed. Thousands died of hope deferred or slow starvation and with them suffered those naturally dependent upon them. It was a calculation well within the mark that every debtor was saddled with two dependents for whom he was the stay and breadwinner. Some figures are given by John Howard when, later, he began his self-sacrificing philanthropic labours, and may be quoted here to show how numerous were the innocent victims of the iniquitous and remorseless legal system in force:

“I have found,” he writes in 1777,^[2] “by carefully examining sundry gaols, that upon an average two dependents (by which I mean wives and children only) may be assigned to each man (debtor) in prison. My computation is confirmed by the account which we have from the Benevolent Society at the Thatched House, October 9th, 1777. Since its institution in 1772 there were yearly about 3,980 discharged debtors who had 2,193 wives and 6,288 children.” From this he reasoned that as there was a total of debtors in England and Wales of 4,084, the dependents would be twice that number.

The sufferings entailed upon poor debtors and their families appealed forcibly to good people and produced much spontaneous assistance. Societies were formed having considerable sums at their disposal to be expended in the relief of poor debtors by the payment of and legal extinction of small debts. Other sums were subscribed, granted or bequeathed with the direct intention of purveying to the daily crying needs of the imprisoned, as moneys held in trust to be expended on bread and improved dietaries for those who would otherwise starve. These allowances survived to a comparatively recent date, and when the state assumed control of all British prisons in 1878, a long list still existed and was absorbed by the Charity Commissioners. These poor creatures were active on their own behalf and collected funds by begging openly in the public streets. This was practised by the so-called “Running Box;” a prisoner ran about the streets adjacent, carrying a box which he shook constantly, rattling its contents and imploring alms from passers by for the poor prisoners in the Fleet. There was also the prison gate or “grating,” which at the Fleet was a window barred, behind which always sat an emaciated debtor rattling his money box and ever chanting dolorously his appeal, “Pray remember the poor prisoners who have no allowance.” The practice was universal and in Salisbury it

went the length in 1774—as Howard says—of exhibiting two Crown debtors at the door of the County Gaol, who offered articles manufactured in the prison for sale. Hard by the outer gate was a row of staples fixed in the walls and through the rings was run a chain, to each end of which was padlocked a “Common Side” debtor appealing to the passers by. At Salisbury there was a custom of sending out felons to roam the city in quest of alms; two were chained together, one carrying a money box, the other a sack or basket for food.

No debtor was allowed to benefit by the funds thus obtained until they had been formally sworn at the “grate,” to the effect that they were not worth five pounds in the world. After this they were entitled to a share in the contents of the collection box and to participate in the donations and bequests of the charitable souls who compassionated their poverty-stricken, hardly-used brethren.

A detailed list of the benefactors and their gifts will be found in Howard’s “State of Prisons” (1784), and some are curious enough and may be quoted, such as the bequest known as “Eleanor Gwynne’s bread,” which gave the debtors in Ludgate every eighth week five shillings’ worth of penny loaves, and the gift of Mrs. Elizabeth Mission, the yearly income of two hundred pounds, three per cent. annuities for free bread and coals. A mysterious gift was sent for years to the Wood Street Compter, “nine stone of beef and fourteen quartern loaves,” but its origin was kept secret until at the death of Princess Caroline its royal origin was displayed, and the alms was continued by the order of George III during his life. Mr. Allnutt, who was for many years a prisoner in the Marshalsea for debt, came in for a good estate while incarcerated and at his death he left one hundred pounds a year to be applied to the release of poor debtors. In the Southwark County Gaol, once known as the



The Fleet Beggar

From the painting by Hosmer Shepherd

At the barred window at the gate of the Fleet prison, it was the custom for an emaciated debtor to sit, rattling his money-box and imploring alms. English law made no regular provision for the imprisoned debtors. The creditor was supposed to contribute fourpence daily to provide him with food, but this was rarely made and could only be enforced by process of law.

White Lion Prison, there were sixteen legacies and donations, all applied to the relief of debtors, and “Nell” Gwynne also bequeathed a sum to be expended in loaves for Common Side debtors.

Returning to the misgovernment of Warden Harris, and the malfeasances laid to his charge, one of the most serious against him was that he allowed two prisoners, well-known to be bitter enemies and constantly quarrelling, to consort together in the same cell or room, that called the Tower chamber, where one fell suddenly upon the other and stabbed him so that he presently died. The story told is much confused. It was not clear who was the aggressor and whether or not the fatal blow was struck in self-defence. The two prisoners in question were a Sir John Whitebrook, against whom the warden had a grievance (no less than that Whitebrook had murderously assaulted him), and the other was one Boughton, of whose hostile feelings toward Whitebrook the warden astutely availed himself.

It was stated that Whitebrook was held a close prisoner by the order of two courts, but that he became violently disturbed, and breaking out went to the warden’s study, where he found Harris in his gown writing. A talk ensued as to the quality of the lodging provided and the charge for the chamber-rent, and as the warden was using the pomice-box to dry his

writing, Sir John Whitebrook struck him on the head with the sharp end of a hammer, inflicting four wounds upon his skull and other bruises, before the warden could close with him. Then the assailant was thrown on his back and the hammer taken from him so that the warden might easily have beaten out his brains, “but that he was neither wrathful nor daunted.” When the servants came upon the scene, Whitebrook was seized by the butler but yet contrived to take out a stiletto and use it fiercely. The warden’s deputy was stabbed through the hand and the porter or doorkeeper of the house would have been killed but the stiletto did not enter. After this the furious creature was carried in irons to Bolton’s ward.

This affray was part of a settled plan of mutinous disturbance in which some three score prisoners had combined to break up the strongest wards and the massive doors of the Tower chamber. At that time Whitebrook and Boughton agreed amicably and the malcontents set themselves to “bar out” the warden from the prison and refused all persuasions of the officials to “unlock” the chambers even at the request of the Lord Chancellor, the Lord Chief Justice and the Sergeant at Arms, but they yielded to the Clerk of the Council when sent from the Lords. Whitebrook was still insubordinate and refused the chamber offered him but seized upon five others which they “again fortified,” so that the warden “had no command in that part of the prison.” The authority of the officials was at last vindicated and the turbulent prisoners were removed into the common prison, where Boughton and Whitebrook came together and, after a suspension of hostilities for some months, the fatal quarrel with the results described took place.

Another serious allegation was that a prisoner, who was in possession of a large sum in cash, was robbed of it with the connivance of the warden. A man named Coppin was supposed to have fifty-one pounds concealed in his bed and orders were issued to remove him to another room and keep him close while the turnkeys rifled his bed and carried off his treasure. The answer given was that Coppin was known for six years past to be quite impecunious and unable “to pay the warden one penny for meate, drink, lodgings or attendance.” It was proved by the evidence of other prisoners that when Coppin was transferred from the Tower Chamber into Bolton’s ward, he took his bedding with him and that he never complained of having lost “one penny or any other thing.”

There were many more charges against the warden, Alexander Harris, which he answered speciously and sometimes denied categorically. He was

accused of breaking into prisoners' rooms, forcing the locks of their trunks, seizing their goods and cash and applying them to his own use; but he replied that Peck, the particular complainant, although worth money, never paid a sou and when set free left the Fleet deeply in the warden's debt, having occupied a good room for eight years, for which he paid not one penny. He was a debtor whom a small sum would discharge, but "he never paid any man." Peck's children were known thieves, who sought shelter in the Fleet until the gallows got one and the other died a natural death. Peck himself "purloined the goods of his fellow-prisoners and by force, with knife drawn, took away the bedding of a dead room-mate from the mother who claimed it. Peck with his accomplices came into the gaoler's lodge and thrust him out, with his aged wife, and in resisting grievously bruised the gaoler, offering to stab the man that was under the gaoler."

For these foul abuses Peck was moved to Newgate by order of the Lord Chief Justice, where he lay for a long time not daring to open his trunks, for they were full of stolen goods; but the warden called in neighbours and with the help of some prisoners forced them and inventoried the contents. The warden of the Fleet found more than enough to satisfy his debt for eight years' lodging and fees. Peck's remaining property consisted of only three blankets, two pillows, "an ould covering of darnex" and two bolsters.

Harris was also accused of impounding the moneys paid as fees to the servant who went as escort with prisoners allowed to go at large for the day. This curious custom obtained in the Fleet, from the earliest to the latest times, of permitting a prisoner on payment of a fee to go at large in the city and even into the country if accompanied by a "baston" or tipstaff. When the practice began it was understood that no prisoner was meant to go further than to Westminster or to his counsel, but by degrees custom enlarged their walks all over London and indeed far beyond it. In all cases the warden was always responsible for his prisoner and if he escaped was mulcted to the amount of his debt. Permission to go abroad was always preceded by the prisoner or his friends giving security for the amount due. The extent to which this privilege was conceded is seen by the fact that twenty officers were on the staff of the prison for the purpose of providing the requisite escorts. The warden estimated that he paid out to them some eighty pounds a year, which at twenty pence a day would account for about a thousand absences, or an average of ten days annually to say a hundred prisoners, who could afford the luxury of an "exeat." The warden's risk was

great, for there were times when the aggregate of the debts owed by the inmates of the Fleet amounted to two hundred thousand pounds, besides the State obligations or sums owing to the king. The warden's emoluments were necessarily large to cover this liability, and often exceeded two thousand pounds a year.

Residence beyond the prison within the "Rules," was another form of privilege. "The liberty of the rules and the 'day rules' of the Fleet may be traced," says Mr. Timbs, "to the time of Richard II, when prisoners were allowed to go at large by bail, or with a 'baston' (tipstaff), for nights and days together. This license was paid at eightpence per day and twelpence for his keeper that shall be with him. These were day rules. However they were confirmed by a rule of court during the reign of James I. The rules wherein prisoners were allowed to lodge were enlarged in 1824, so as to include the churches of St. Bride's and St. Martin's, Ludgate; New Bridge Street, Blackfriars to the Thames; Dorset Street and Salisbury Square; and part of Fleet Street, Ludgate Hill and Ludgate Street, to the entrance of St. Paul's Churchyard, the Old Bailey and the lanes, courts, etc., in the vicinity of the above; the extreme circumference of the liberty being about a mile and a half. Those requiring the 'rules' had to provide sureties for their punctual reappearance and keeping within the boundaries, and to pay a percentage on the amount of debts for which they were detained, which also entitled them to the liberty of the day rules, enabling them during term or the sitting of the courts of Westminster, to go abroad during the day, to transact or to arrange their affairs, etc. The Fleet and the Queen's Bench were the only prisons in the Kingdom to which these privileges had for centuries been attached."

The withholding discharge from those entitled by law to go at large until all fees and duties were satisfied, an act amounting to false imprisonment, was a frequent complaint against the warden, as against all gaolers in the old days. This was answered by the plea that it was a general rule to detain out-going prisoners until they had satisfied all just dues, and the imposition of these dues was defended as having been lawfully originated by Act of Parliament, custom or toleration of the State and judges of courts. The warden was charged too with making imprisonment more grievous by keeping prisoners too close, "chaining, manacling and bolting them with irons," and this for months and years without order, warrant or law; but he pleaded that such treatment was the necessary restraint of dangerous

prisoners, “badd” debtors for great sums, perjurers, “forgerors,” conspirators and such like censured persons by whom the warden or his servants may be “out-done or slain” through violence to his person or office, or whose cause was almost ready for hearing by the Star Chamber.

The use of irons was justified by “ancient continuance” and custom throughout the Kingdom which many “now in the Fleet do by suffering in other prisons know to be true.” The fact that a fine was paid to be freed from them “proveth the use,” said the warden, “and there be some knights now prisoners that did wear irons for thirty years past for misdemeanours after they had been fined to be freed from them in the Fleet.” In support of this use of irons the opinion of the Master of the Rolls, given twenty-three years previously, is quoted; that if abridged the discipline of the house would be subverted. “The warden protested that he did never show spleen or passion in the putting irons on prisoners for private revenge, not even when several, who were in execution for great sums, had run away and escaped and the warden was compelled to pay their debts.”

The warden indignantly denied the charge of starving “close prisoners” (those kept close), declaring it to be “fabulous and false and to have no colour;” for food was supplied although no payment was made, and in one case, when a prisoner “faigned himself sick” from starvation, the doctor saw in the window the most part of a roasted pullet, left from the meal before. This complaint of being starved drove a certain prisoner to break out, behaving himself rather as a “Bedlam frantic than a gentleman” and with others seeking “for revenge” to the utter dislike and grief of all in the prison, “with steel chisel, mallets and hammers cut all the stone work of the door of the Tower Chamber into which the bolts and locks did shut, so that no door could be shut upon eighteen prisoners of great weight.”

The exactions of the warden for chamber-rent were the cause of bitter complaint; the order was that no man should pay more than one shilling and threepence weekly for a room with bed and bedding, yet the price demanded was eight shillings, ten, even twenty, per week without bedding. The warden answered that many of his prisoners desired to have more ease than ordinary, and sought lodgings in the warden’s own house and would not lie in the prison. Better accommodation must be paid for at a higher rate, if they paid at all, but “the misery is that none will pay at all, but stand upon it they should pay nothing, which is contrary to right, custom and usage.” Yet these defaulters also brought friends, wives, children and

servants which were no prisoners, to share their quarters and still would pay nothing for the privilege. On the whole it was quite a mistake to suppose that the warden's rents "yielded a mass of benefit each year, whereof the contrary doth appear, for prisoners are not the best payers and some lie there many years and die without paying and others lie many years and then become insolvent."

It was pleaded that where in old time no rent was charged on the Common Side, the warden Harris demanded it as if for a private chamber, and even for the dungeon as well. The answer was that the Common Side was the king's ancient prison where for "many hundred years men were imprisoned there only" and they were not exempt from payment. In the part called the Tower Chamber there were eight bedsteads by which the warden had made seventy-one pounds by the year. In one ward, called the "Twopenny," the inmates paid twopence a night; only in the "Beggars' " ward did prisoners pay nothing and receive nothing. In this last the insolvent debtor was forced to fend for himself; he was dependent upon chance charity for food, fire, clothing, bedding. Many hundreds succumbed to starvation and cold and died like dogs upon rotten straw, their nakedness barely covered by foul scanty rags. Rarely the degraded and neglected lodgers were suffered to go in search of water to cleanse the ward, but these as a rule were always filthily dirty.

The state of affairs was horrible within the gaol. No order was kept. Prisoners quarrelled and fought continually, many ranged the wards and corridors howling like lunatics all through the night and blowing horns, so that sleep was impossible to the sick and sorrowful. The lowest women entered freely, thieves took refuge there and thus avoided arrest; stolen goods were hidden in secure corners and never discovered. The prisoners went about armed and used swords and daggers freely in brawls and fights amongst themselves or in attacking the officers and servants of the gaol.

CHAPTER II

ABUSES AT THE FLEET

The Fleet, the appointed prison of the Star Chamber—Trial and conviction of Prynne and of “Freeborn” John Lilburne—Horrors in the Fleet and other debtors’ prisons reported by Moses Pitt—House of Commons Committee 1696—Ill treatment of Jacob Mendez Solas, a Portuguese prisoner—Shameful malpractices of Huggins and Bambridge—Case of Captain Mackpheadris and of Captain David Sinclair—Committal of Huggins and Bambridge to Newgate—Their trial and verdict of not guilty—Hogarth’s great picture of the Fleet Committee—Howard’s visitation in 1774—Social evils—Increase of Fleet marriages—Fleet parsons and their practices—Passing of the Marriage Act and abuses abolished.

THE Fleet was the appointed prison for the victims of the Star Chamber from the time of Elizabeth until toward the end of the reign of Charles I. It was essentially the King’s Prison to which State offenders might be committed, and to which debtors to the king on so confessing themselves might claim transfer from anywhere in the provinces if they preferred to be imprisoned in the capital. The Star Chamber, that oppressive, half-secret and wholly irresponsible tribunal, was accustomed to send to it all persons who fell under its displeasure; and this view is further confirmed by the circumstance, that whilst during the reign of Charles I we find it frequently used in this way, we do not notice any suggestion that the practice was then a new one. The two most interesting cases that belong to this part of the history of the Fleet are those of Prynne and Lilburne.

The trial of Prynne in the Star Chamber should be forever memorable as an example of the reckless disregard for law, justice, common sense and humanity which can be exhibited by high-handed judges. The following extracts will give a sufficient idea of the course of the trial and the mode of determining the sentence:—

“For the book” (the “Histriomastix” wherein he castigated the court and society severely), said Richardson, the Lord Chief Justice, “I hold it a most

scandalous, infamous libel on the king's majesty, a most pious and religious king; on the queen's majesty, a most excellent and gracious queen, such a one as this kingdom never enjoyed the like and I think the earth never had a better," etc. Then followed quotations from Prynne's book, full of "outrageous opinions" on plays and players and dancing and then the first part of the sentence: "Mr. Prynne, I must now come to my sentence; I am very sorry, for I have known you long, but now I must utterly forsake you for I find that you have forsaken God" (the whole tenor of Prynne's book was to lead men, in his way, to draw nearer to God) " ... and forsaken all goodness. Therefore, Mr. Prynne, I shall proceed to my censure wherein I agree with my Lord Cottington: first for the burning of your book in as disgraceful manner as may be, whether in Cheapside or St. Paul's Churchyard.... And because Mr. Prynne is of Lincoln's Inn, and that his profession may not sustain disgrace by his punishment, I do think it fit, with my Lord Cottington, that he be put from the Bar and degraded in the University and I leave it to my lords, the lords bishop, to see that done; and for the pillory I hold it just and equal though there were no statute for it. In the case of all such crime it may be done by the discretion of the Court, so I do agree to that too. I fine him £5,000 and I know he is as well able to pay £5,000 as one-half of one thousand; and perpetual imprisonment. I do think fit for him to be restrained from writing—neither to have pen, ink nor paper—yet let him have some pretty prayer book to pray God to forgive him his sins, but to write, in good faith, I would never have him. For, Mr. Prynne, I do judge you by your book an insolent spirit and one that did think by this book to have got the name of a reformer, to set up the puritan or separatist faction."

Sir Edward Coke followed, and among other things said: "Mr. Prynne, I do declare you to be a schism-maker in the Church, a sedition-sower in the Commonwealth, a wolf in sheep's clothing; in a word *omnium malorium nequissimus*. I shall fine him £10,000, which is more than he is worth and less than he deserveth. I will not set him at liberty no more than a plagued man or a mad dog, who though he cannot bite will foam. He is so far from being a sociable soul that he is not a rational soul; he is fit to live in dens with such beasts of prey as wolves and tigers like himself, therefore do I condemn him to perpetual imprisonment as those monsters that are no longer fit to live among men, nor see light. Now for corporal punishment, my Lords, I shall burn him in the forehead and slit him in the nose.... I

should be loth he should escape with his ears, for he may get a periwig which he now so much inveighs against and so hide them or force his conscience to make use of his unlovely love locks on both sides.”

These abominable barbarities were all inflicted in public, the branding, the mutilation, the loss of ears, and afterwards poor Prynne, stout and unyielding to the last, was remanded to the Fleet where his friends on visiting him found him “serene in spirit and still cheerfully patient.” His chief persecutor had been Archbishop Laud who was present in Court throughout, and this fact was remembered against the cruel prelate when later he was himself arraigned and sentenced to death. Prynne was a second time tried and sentenced to lose the hacked remnant of his ears.

A second victim of the Star Chamber’s intolerance of criticism was John Lilburne, “Freeborn John,” who refused to incriminate himself, standing on his rights as a freeborn Englishman. His alleged offence (with his printer Wharton) was the publication of libellous and seditious books, called “News from Ipswich.” They were both remanded to the Fleet for the present, but on the 13th February (1638) were again brought up and pressed to reconsider their determination. Still inflexible, they were sent back to the Fleet under a fine of £500 each and with an addition in Lilburne’s case of a remarkable punishment. Foiled in their attempt to break men’s spirits by fines, imprisonments, brandings, slitting of noses, etc., another degrading punishment was now borrowed from the felon-code,—whipping. “To the end,” runs the sentence, “that others may be the more deterred from daring to offend in the like manner hereafter, the court hath further ordered and decreed that the said John Lilburne shall be whipt through the street from the Prison of the Fleet unto the pillory, to be erected at such time and in such place as this court shall hold fit; and that both he and Wharton shall be set in the said pillory and from thence returned to the Fleet.” The pillory was placed between Westminster Hall gate and the Star Chamber and Lilburne was whipped from the prison thither “smartly.” Rushworth says, “Whilst he was whipt at the cart and stood in the pillory, he uttered many bold speeches against tyranny of bishops, etc., and when his head was in the hole of the pillory he scattered sundry copies of pamphlets (said to be seditious) and tossed them among the people, taking them out of his pocket.” The Star Chamber Council was sitting at the time and was informed of this last-mentioned incident; when, consistent in their acts, they ordered him to be gagged immediately, which was done. Lilburne then

stamped with his feet, and the people understood his meaning well enough,—that he would speak if he were able. This was not all. At the same sitting of the Council an order was made directing that Lilburne should be “laid alone with irons on his hands and legs in the wards of the Fleet, where the basest and meanest sort of prisoners” were, with other regulations in a similar spirit. This punishment also was carried into effect for a time, but ultimately brought to a summary conclusion through an accident in the prison. “Lilburne,” says Rushworth, “having for some time endured close imprisonment, lying with double irons on his feet and hands and laid in the inner wards of the prison, there happened a fire in the prison of the Fleet, near to the place where he was prisoner, which gave a jealousy that Lilburne, in his fury and anguish, was desperate and had set the Fleet Prison on fire, not regarding himself to be burnt with it; whereupon the inhabitants without the Fleet (the street then not being five or six yards over from the prison door) and the prisoners all cried, ‘Release Lilburne or we shall all be burnt!’ and thereupon they ran headlong and made the warden remove him out of his hold, and the fire was quenched and he remained a prisoner in a place where he had some more air.” He continued in prison till November the 3d, 1640, when the Long Parliament began and then he was released and immediately applied to the House of Lords for redress, who granted it in the most satisfactory manner, not merely declaring his sentence and punishment most unjust and illegal, but ordering the erasure of the proceedings from the files of all courts of justice, “as unfit to continue on record.” On the breaking out of the Civil War, Lilburne fought bravely, we need not say on which side. Freeborn John was one of the most impracticable as well as courageous of enthusiasts (Marten said of him, if there were none living but himself, John would be against Lilburne, and Lilburne against John); and the Parliament pleased him little better than the King; so he wrote against them too, and was banished upon pain of death if he returned. But Freeborn John would and did return, and was immediately arraigned at the Old Bailey, where he was publicly acquitted, “which for joy occasioned a great acclamation of the people present.” He died a Quaker and was buried in Moorfields, four thousand citizens and other persons honouring his remains by following them to the grave.

Atrocities continued to be perpetrated in the Fleet after the Restoration and the inmates endured grievous ill-treatment. Some of these were set forth in the reign of William III in a quaint book printed and published in

1691 by one Moses Pitt, entitled, “The Cry of the Oppressed,” being a true and tragical account of the unparalleled sufferings of multitudes of poor imprisoned debtors in most of the gaols of England under the tyranny of the gaolers and other oppressors. A chief item was the relation of “some of the barbarities of Richard Manlove, Esq., the present warden of the Fleet, who has lately been found guilty of oppression and extortion by a jury of twelve men.”

The said warden “locked up till opened by the worthy Mr. Justice Lutwyche three score gentlemen and others for non-payment of exclusive chamber rent, where was a noisome House of Office near their lodgings, not allowing the king’s beds, but forcing them to procure beds or lie on the ground: and keeping men dead amongst them for pretended dues till they infected others.”

“Again Richard Brocas, Esq., was carried down thither for not paying excessive chamber-rent and his wife and servants denied to bring him victuals or physic; and when he died the jury summoned, could not but find his death occasioned by cruelty and they were dismissed by contrivance with the coroner; and when he was buried, a new jury summoned, he taken up again and an inquisition returned contrary to law; and Sir John Pettus of Suffolk, baronet, for not paying extorting dues, was forced into a little room (now the warden’s coachman’s lodgings) who being a learned studious person for want of those necessities, he melancholy died and was kept many days above ground; his friends being denied his body till they paid the warden’s pretended dues.”

“Sir William Duce, Baronet, was kept by the warden in his coach house till he was drawn out with ropes, being so offensive, that none could come near him. Symon Edolph, Esq., seventy-eight years of age, the son of Sir Thomas Edolph of Kent, for not paying forty two pounds demanded of him, when he profered thirty pounds, which was for a little room about twelve foot square, after the rate of six shillings per week, besides payment of the chamberlain, was dragged down to the wards in the hard weather and there not allowed a bed but must have lain on the ground had he not (at his own charge) procured one.” “Walter Cowdrey, gaoler of Winchester, for about two or three months’ chamber rent, was kept above ground till it caused a sickness in the next room, and his friends denied to take his body without paying extorting fees. By which may be perceived the inhumanity of this gaoler, not only to gentlemen but one of his own trade and calling. Sir

George Putsay, sergeant at law, dying of dropsie; and being a very great fat man, was kept (for extorting fees) till a judge's warrant was procured for his delivery. Moses Pitt of London, bookseller, being committed prisoner to the Fleet, April the 20th 1689, lodged on the gentleman's side in a chamber which the warden values at eight shillings per week, though of right it's but two shillings and fourpence, the rest being exaction (and the said Moses Pitt at the time of writing of this has two chambers within the rules of the Kings-Bench for one shilling three pence per week, twice as good as the said chamber), he the said Pitt continued in the said chamber from the said 20th of April 1689 to the 26th of August 1690 which was seventy weeks and three days, in which time the said Pitt had paid the warden his commitment fee, two pounds four shillings and sixpence, where as there is but fourpence due: Pitt also paid him fourteen shillings for two day-writs, and was to pay him eight shillings and fourpence at the going out of the gate, (every prisoner there in execution pays eleven shillings and twopence a day when he goes abroad about his business) but the said warden kept his said fourteen shillings and would not let him go out of the gates of the prison by which the said Pitt lost his tryals, which was many thousand pounds damage to him." This Moses Pitt was once a rich man and his printing works were established in a large house called "the theatre" in Westminster, which he rented from Dr. Fell, Bishop of Oxford, and where in the reign of Charles II he brought out an atlas in twelve folio volumes and a great quantity of Bibles, Testaments and prayer books reducing their price by more than half which he claimed, "did at that time great good, Popery being likely to overwhelm us." Mr. Pitt embarked upon extensive building speculations in Westminster and erected a great house in Duke Street which he let to the noted Judge Jeffreys, but failed to secure a clear title to the property. Then his creditors came down upon him and he became involved in a mesh of borrowings and their attendant lawsuits which landed him at length in the Fleet prison. His hardships led him to prepare his book denouncing the evils of imprisonment for debt; and to obtain facts he addressed a circular to sixty-five provincial prisons. The result was a "small book as full of tragedies as pages; which were not enacted in foreign nations among Turks and infidels, Papists and Idolaters, but in this country by our own countrymen"—such tragedies as no age or country can parallel.

He tells the story of a Liverpool surgeon who was so reduced by poverty, neglect and hunger that he lived on the mice caught by his cat. When he

sought redress he was beaten and put in irons. A debtor in Lincoln who sought restitution of a purse taken from him was “treated to a ride on the jailer’s coach;” in other words placed upon a hurdle and dragged about the prison yard with his head on the stones whereby he “became not altogether so well in his intellects as formerly.” One unfortunate wretch who dared to send out of the prison for food had the thumbscrews put on him and was chained by the neck on tip-toe against a wall. The frontispiece of this old book gives a quaint representation of the interior of the Fleet prison.

These complaints led to the appointment of a committee of the House of Commons in 1696 and a report of many great irregularities, chief among them that the warden will let the prison for the sum of £1,500 to a sub-tenant on the understanding that there would be some two thousand prisoners always in custody who would pay fees to the value of twice the rent. A second report, presumably from the same committee, disclosed a widespread system of discharges not by regular legal process but on the payment of bribes and it was unanimously agreed that the management of the Fleet was “very prejudicial to personal credit and a great grievance to the whole kingdom.”

No remedy was applied to these glaring evils, which, on the contrary, constantly increased until they culminated in the horrible scandals laid bare by the Parliamentary Committee appointed in 1727 to inquire into the conduct of the then deputy warden, the infamous Bambridge, who leased the governorship from the real warden, the no less notorious Huggins. The most shameful malpractices had been rife since the abolition of the Star Chamber which had reserved the place entirely for debtors and prisoners for contempt of the Courts of Chancery, Exchequer and Common Pleas. It seemed that whereas the fees ought to have ceased when the prison was limited in its uses, the warden had wielded an unwarrantable and arbitrary power in extorting them at more exorbitant rates, enforcing payment by loading the prisoners with irons “worse than if the Star Chamber was still existing.”

The course pursued in every case where the incoming prisoner possessed means, was much the same. On arrest he was first conveyed to a Sponging House, one of three attached to the Fleet, beyond the walls, all belonging to the warden and kept by one or other of his tipstaffs. Here the charges were so ruinous that the debtors aghast begged to be taken at once to the Fleet itself, where at least prices were regulated by rules. Transfer was refused

until a heavy fee had been exacted and while the prisoner still demurred his bill in the Sponging House steadily grew in total. When at last he was removed into the Fleet he had been bled freely, in fees alone to the amount of some fifty odd pounds. Here fresh exactions were imposed and the debtor, refusing to submit to insatiable demands, was sent back to the Sponging House, where a virulent small-pox was raging at the time. The prisoner, unvaccinated in those days, and in terror of his life, implored the ruthless warden to again remove him but could obtain no mercy and presently, taking the fell disease, died of it, leaving his affairs in hopeless confusion and a wife with a family of young children to starve. This was the true story of Mr. Robert Castell, a gentleman and a scholar, by profession an architect, whose original liabilities had been small and whose ruin and death were to be laid at Bambridge's door.

Another story of like complexion was that of the Portuguese Jacob Mendez Solas, animadverted upon by the Parliamentary committee. This hapless foreigner enlodging in the Fleet was one day called into the Gate House or lodge, where he was seized, fettered and removed to Corbett's Sponging House, whence after weeks of detention he was carried back into the prison. Extortion had been the object of this procedure and as the Portuguese still resisted, his life was made intolerable to him. He was turned now into a dungeon, known as the "strong room of the Master's Side," which is thus described in the Committee's report:—

"The place is a vault, like those in which the dead are interred, and wherein the bodies of persons dying in the said prison are usually deposited, till the coroner's inquest hath passed upon them. It has no chimney nor fireplace, nor any light but what comes over the door, or through a hole of about eight inches square. It is neither paved nor boarded; and the rough bricks appear both on the sides and top, being neither wainscoted nor plastered. What adds to the dampness and stench of the place is its being built over the common shore and adjoining to the sink and dunghill, where all the nastiness of the prison is cast. In this miserable place the poor wretch was kept by the said Bambridge, manacled and shackled, for near two months. At length, on receiving five guineas from Mr. Kemp, a friend of Solas's, Bambridge released the prisoner from his cruel confinement. But though his chains were taken off, his terror still remained, and the unhappy man was prevailed upon by that terror not only to labour gratis for the said Bambridge, but to swear also at random all that he hath required of him.

And this committee themselves saw an instance of the deep impression his sufferings had made upon him; for, on his surmising, from something said, that Bambridge was to return again as warden of the Fleet, he fainted and the blood started out of his mouth and nose.”

The same report continued: “Captain John Mackpheadris, who was bred a merchant, is another melancholy instance of the cruel use the said Bambridge hath made of his assumed authority. Mackpheadris was a considerable trader, and in a very flourishing condition, until the year 1720, when, being bound for large sums to the Crown, for a person afterward ruined by the misfortunes of that year, he was undone. In June, 1727, he was prisoner in the Fleet, and although he had before paid his commitment fee, the like fee was extorted from him a second time; and he having furnished a room, Bambridge demanded an extravagant price for it, which he refused to pay, and urged that it was unlawful for a warden to demand extravagant rents, and offered to pay what was legally due. Notwithstanding which, the said Bambridge assisted by the said James Barnes and other accomplices, broke open his room and took away several things of great value, amongst others, the King’s Extent in aid of the prisoner (which was to have been returned in a few days, in order to procure the debt to the Crown, and the prisoner’s enlargement), which Bambridge still detains. Not content with this, Bambridge locked the prisoner out of his room and forced him to lie in the open yard called the ‘Bare.’ He sat quietly under his wrongs, and getting some poor materials, built a little hut, to protect himself as well as he could from the injuries of the weather. The said Bambridge, seeing his unconcernedness, said, ‘—— him! he is easy! I will put him into the strong room before to-morrow!’ and ordered Barnes to pull down his little hut, which was done accordingly. The poor prisoner, being in an ill state of health and the night rainy, was put to great distress. Some time after this he was (about eleven o’clock at night) assaulted by Bambridge, with several other persons, his accomplices, in a violent manner; and Bambridge, though the prisoner was unarmed, attacked him with his sword, but by good fortune was prevented from killing him; and several other persons coming out upon the noise, they carried Mackpheadris for safety into another gentleman’s room; soon after which Bambridge, coming with one Savage and several others, broke open the door, and Bambridge strove with his sword to kill the prisoner, but he again got away and hid himself in another room. The next morning the said Bambridge entered the prison with a

detachment of soldiers and ordered the prisoner to be dragged to the lodge and ironed with great irons. On which he, desiring to know for what cause and by what authority he was to be so cruelly used, Bambridge replied, it was by his own authority, and —— him, he would do it and have his life. The prisoner desired that he might be carried before a magistrate, that he might know his crime before he was punished; but Bambridge refused, and put irons upon his legs which were too little, so that in forcing them on, his legs were like to have been broken and the torture was impossible to be endured. Upon which the prisoner complaining of the grievous pain and straitness of the irons, Bambridge answered that he did it on purpose to torture him. On which the prisoner replying that by the law of England no man ought to be tortured, Bambridge declared that he would do it first and answer for it afterwards; and caused him to be dragged away to the dungeon, where he lay without a bed, loaded with irons so close riveted that they kept him in continual torture and mortified his legs. After long application his irons were changed and a surgeon directed to dress his legs; but his lameness is not, nor can be, cured. He was kept in this miserable condition for three weeks, by which his sight is greatly prejudiced and in danger of being lost.

“The prisoner upon this usage, petitioned the judges; and after several meetings and a full hearing, the judges reprimanded Mr. Huggins and Bambridge and declared that a gaoler could not answer the ironing of a man before he be found guilty of a crime, but it being out of term, they could not give the prisoner any relief or satisfaction.”

There were other cases, that, for instance, of Captain David Sinclair, an old and distinguished officer whom hard fate and impecuniosity had consigned to a debtors’ prison. Bambridge was his enemy and openly declared that he would have Sinclair’s blood. On the king’s birthday, a jovial occasion, on which he thought to find the captain elated with wine, Bambridge entered his room and struck him with a cane. Then turning to the soldiers of the escort, who came armed with musket and bayonet, Bambridge ordered them to carry Sinclair to the strong room and to stab him if he made any resistance. Confinement in this dark, damp dungeon all but cost Sinclair his life; he lost the use of his limbs and his memory went; he was left for four days without food and had he not been removed he would certainly have died. An unfortunate Spanish merchant, Mr. John

Holder, who was confined in the Common Side under Bambridge, was seized with a fatal illness from the miseries and privations he endured.

It was said in the report already quoted that Bambridge, when he manacled Solas, was the first to put a debtor in irons. This is manifestly erroneous as is seen in the account of the charges brought against warden Harris in 1620, for misuse of prisoners in the Fleet. But this brutal gaoler, Bambridge, was guilty of many and great enormities. He was proved to have defied writs of habeas corpus; to have stolen or misappropriated charitable bequests; to have bribed or terrified lawyers who came to champion ill-used prisoners. When Sir William Rich was behind-hand in his chamber-rent, Bambridge threatened to fire at him, slashed at him with a hanger, and struck him with a stick. Rich was then thrown into the strong room, heavily ironed, and kept there in close confinement accused of having attacked the warden with a shoemaker's knife, which he did, but in self-defence.

Huggins and Bambridge, in their greedy desire to increase their emoluments, invented an astute device, that of allowing, even helping debtors to escape from custody, whom they presently rearrested, and having made them pay forfeit, pocketed the amounts. To facilitate this a false gate was broken through the prison wall, through which the fugitives were released with the co-operation of the warden, and thus the forfeit was exacted many times over.

The same means of exit was utilised by a smuggler, in custody for revenue fraud, who passed in and out on his own concerns, and to do business for Mr. Huggins. This man, by name Dumay, made frequent voyages to France, where he bought quantities of wine for Huggins and paid for them by bills drawn upon one of the tipstaffs, which when due were punctually met. Confidence was thus established and the traffic was greatly developed, but when an unusually large deal had been effected the tipstaff declined to accept the bill and the French wine merchant was swindled out of his goods and his money.

This inquiry of 1727 resulted in the committal of both Huggins and Bambridge to the gaol of Newgate, and their prosecution. A bill was introduced into Parliament to remove both men from their posts and to revise the management of the Fleet; but when these wretches were arraigned for their misdeeds the evidence was deemed insufficient and they

escaped with a verdict of not guilty. The episode is especially interesting as having inspired Hogarth to paint the remarkable picture of the Fleet Prison Committee, which is said to have first brought the painter into fame. Speaking of this picture, Horace Walpole in his “Anecdotes of Painting” says: “The scene is the Committee; on the left are the instruments of torture. A prisoner in rags half starved appears before them. The poor man has a good countenance that adds to the interest. On the other hand is the inhuman gaoler. It is the very figure that Salvator Rosa would have drawn for Iago at the moment of detection,—villainy, fear and conscience are mixed on his yellow and livid countenance. His lips contracted by tremor, his legs step back as though thinking to make his escape—one hand is thrust precipitately into his bosom, the fingers of the other are catching uncertainly at his button-holes. If this was a portrait it is the most striking that ever was drawn; if not it is still finer.” There is no question that this is Bambridge, who lingered on for twenty years disgraced and despised and in the end committed suicide by cutting his throat.

We have two views of the interior of the Fleet and its general aspect from two eye witnesses at a later date than the exposure of Huggins and Bambridge. One is John Howard’s account of his visitation in 1774; the other a volume of verse “The Humours of the Fleet, an humorous and descriptive poem written by a gentleman of the College,” published in London in 1749. The author was the younger Dance, son of Mr. Dance, the architect, who rebuilt the gaol of Newgate after its destruction by the Lord George Gordon rioters in 1780. It is described as “The Prince of Prisons” standing “close by the borders of a slimy flood,” a structure in whose extended oblong boundaries are shops and sheds and stalls of all degrees, for the sale of everything from trinkets to pork and beans. The inmates are next described:

“Without distinction intermixed is seen
A squire quite dirty, a mechanic clean;
The spendthrift new who in his chariot rolled
All his possessions gone, reversions sold.
Now mean, as once profuse, the stupid sot
Sits by a Runner’s [\[3\]](#) side and shules a pot.”

The first ceremony for the newcomer is to sit or stand for his portrait:

“Around you gazing jiggers^[4] swarm,
Your form and features strictly they survey
Then leave you if you can, to run away.”

Then follows the description of the chamberlain “who settles the price of quarters; one pound six and light weekly for the best room, or as low as half a crown per month.”

“Take my advice I’ll help you to a chum;
With him you’ll pay but fifteen pence a week,”

and so on page after page illustrating the daily life, sorrows, dirt and rags; the sports—backgammon, Mississippi, portobello, racquets, billiards, fives; increasing drought quenched by gin; rough horseplay with newcomers who are borne to the pump and drenched, the whole presented in a picture crowded with the ragged, slipshod figures standing treat to the tipstiffs and one another. The poem concludes with the closing of the prison when

“The warning watchman walks about
With dismal tone repeating ‘who goes out.’ ”

The cry is heard from half-past nine till the clock of St. Paul’s strikes ten, very like the familiar shout on shipboard “Any more for the shore.” The final “all told” was the signal to shut and lock the gate after which no person was permitted to pass either in or out.

The philanthropist’s inspection, naturally, was a more serious matter, and his account of what he found in the Fleet was a striking item in his general indictment of British prisons. The Fleet at that date held three hundred and twenty-four inmates in the “House” and one hundred resided within the “Rules.” The prison buildings were partly old and partly new, having been rebuilt a few years previous. It now consisted of a long house (198 feet) facing a narrow courtyard and having four stories or galleries with a basement or cellar floor called Bartholomew Fair, which was appropriated to the Common Side or the solvent pauper debtors. In the galleries the rooms opened on either side of a central passage, narrow and dark, with one window at each end. The rooms were for the most part 14½ feet in length by 12½ feet wide, and 9½ feet in height, all provided with fire-place and chimney, and lighted with one window. On the ground-floor or Hall Gallery were a chapel, a tap-room, a coffee-room and eighteen chambers for

prisoners; on the first floor twenty-five rooms, on the second twenty-seven, with prisoners' committee-room, the infirmary and a "dirty billiard table, kept by the prisoners who slept in that room." This billiard table was open to outsiders, and Howard saw "several butchers and others from the market playing, who were admitted as at any public house. Besides the inconvenience to prisoners," says Howard, "the frequenting a prison lessens the dread of being confined in one." The gallery rooms on the top floor were reserved for Master's Side debtors who paid the warden's rent, nominally, at the rate of one shilling and three pence weekly, a price liable to be much increased. They fell to prisoners in succession, and when any became vacant it was taken by the first on the warden's lists who had paid his full entrance fee. If all rooms were occupied, a newcomer must hire of some tenant a part of his room or shift as he could. The same practice obtained some fifty years later as described by Charles Dickens when telling of the imprisonment of Mr. Pickwick.

The discipline was very lax, due to the unrestrained admission of all classes, male and female, the latter often of very indifferent character. "Social evenings" were of common occurrence; on Monday nights a wine club, on Thursdays a beer club, each lasting until one or two in the morning. "I need not say," remarks Howard, "how much riot these meetings occasioned, and how the sober prisoners are annoyed by them." Master's Side debtors, mostly well disposed, respectable people, were moved to maintain order and better government and formed themselves into a committee to establish rules and insist upon their observance. This committee was chosen every month and consisted of three members from every gallery, with a president and secretary. They met every Thursday in their own committee room and at other times when summoned by the cryer (the servant of the prison who called persons from within when a visitor came to see them), at command of the president or a majority of their own number. This committee raised contributions by assessment, heard complaints, determined disputes, advised fines and seized goods for payment. It claimed to speak the sense of the whole House. The president held the cash and the committee disposed of it. It appointed a scavenger who washed the galleries once a week, watered them and swept them daily, every morning before eight, and who swept the yards twice a week, and lit the lamps all over the House. The cryer's fee for calling a prisoner to any stranger who visited the prison was one penny; from a complainant who

desired that the committee might be brought together he got a fee of twopence. The tax levied on a newcomer, besides the two shillings for “garnish” to be spent in wine, was one shilling and sixpence to be appropriated for the use of the House. Distinction of rank was overlooked in the Fleet, for Common Side debtors were confined to their own apartments in Bartholomew Fair and were forbidden to associate with “the lawmakers.”

There were public regulations also in force dating, it was said, from the reign of Queen Elizabeth. Among other orders the warden was empowered to appoint turnkeys with arms, to prevent persons from bringing arms past the gate, and to watch if any escape was being agitated. Such as attempted to escape or greatly misbehaved might be shut up in a close room or dungeon, which must be certified to by four judges as “boarded, wholesome and dry.” Clandestine Fleet marriages were forbidden, but to very little purpose, seeing that they were constantly performed. (Fleet marriages of imprisoned debtors were legitimate and openly solemnised in the Fleet Prison chapel till 1686.) Other rules ignored were those against the demand for “garnish” and that which forbade the detention of a debtor in a Sponging House, an order constantly contravened by Huggins and Bambridge, as we have seen. A portion of the infirmary (two rooms) was to be allotted to Common Side debtors and it was strictly prescribed that no prisoner should be obliged to sleep in a bed with any one diseased. A coroner’s inquest must be held upon any dead prisoner and the body delivered to friends free of cost, but these very important provisions were constantly evaded.

A chaplain was appointed to the Fleet, his salary of thirty pounds per annum being paid by the warden, supplemented by a fee of twopence to fourpence per head from each prisoner. The Fleet had its own chapel, in which marriages might be legally performed, the earliest on record being that of a prisoner, Mr. George Lester, who in 1613 married a woman of good fortune, Mistress Babington by name. In a contemporary letter, it is stated that “she is a woman of good wealth, so that now the man will be able to live and maintain himself in prison, for hitherto he has been of poor estate.” We are not told why his rich wife did not proceed to pay his debts and secure his enlargement. Soon after this, the system of clandestine and irregular marriages, which afterwards became notorious, began to be practised within the Fleet and the Rules beyond. The practice seems to have originated in the desire to escape the expense attending a regular wedding at which it was the fashion to make a great show in feasting and entertainment

lasting several days. Besides the costs of marriage settlements, presents, pin-money and so forth had to be met. To avoid all this wasteful outlay, the weddings became private and unpretending. A French traveller in England, one Henri Mission, describes one of these ordinary or incognito marriages,

“The bridegroom, that is to say, the husband that is to be, and the bride, who is the wife that is to be, conducted by their parents and accompanied by two bridesmen and two bridesmaids go early in the morning with a license in their pocket and call up Mr. curate and his clerk, tell them their business; are married with a low voice, and the doors shut; tip the minister a guinea and the clerk a crown; steal softly out, one one way, and t’other another, either on foot or in coaches; go different ways to some tavern at a distance from their own lodgings, or to the house of some trusty friend, there have a good dinner and return home at night as quietly as lambs. If the drums and fiddles have notice of it, they will be sure to be with them by day break, making a horrible racket, till they have got ‘the pence;’ and, which is worst of all, the whole murder will come out.”

Although the law prescribed that marriages should be only performed by licenses or the giving out of banns, there were many churches and chapels towards the end of the seventeenth century which claimed to be “peculiar” and exempt from the jurisdiction of the Bishop of London. But the rector of one of these, St. James, Duke’s Place, was proceeded against under the ecclesiastical law and suspended from duty for three years on a charge of having married persons without banns or license. Other churches claimed to be “peculiar” such as the chapel of Holy Trinity, Minories, on the ground that it was a crown living and entitled to the same privileges as Westminster Abbey or the Deanery of Windsor; so did the chapels of the Tower and the Savoy as royal chapels. The number of chapels where irregular marriages took place was about ninety, and it became necessary to check them by obliging incumbents to keep registers under a penalty of one hundred pounds, and the same amount was levied on them for every irregular marriage. This penalty was extended to the gaolers or keepers of prisons who permitted marriages to be performed within the walls, which had now become a very common practice in the metropolis. These Fleet parsons were not clergymen, but mere laymen who assumed the garb of cassock, gown and bands. These sham marriages were solemnised in a room in the Fleet, called the “Lord Mayor’s chapel,” where the prison parson received

the couples bent on matrimony. The officiating parson was Mr. John Mottram who transacted an enormous amount of business, and performed in one year alone as many as two thousand two hundred marriages. He was convicted of unlawful practices and fined £200 but he was not deterred from repeating them, or giving false dates to their certificates to suit the desire and convenience of the contracting parties. Pennant in his account of London (1793) tells us that as he walked the streets near the Fleet prison he was invited to walk in and be married. The sign over the door portrayed a male and female hand joined with the words, "Marriages performed within." A tout or "plyer" as he was called, stood there soliciting the passers-by and swearing that his employer would do the job cheaper than any one else. Sometimes the parson himself, temporarily at large, was to be seen walking before his shop: "A squalid, profligate figure, clad in a tattered plaid night-gown, with a fiery face, ready to couple you for a dram of gin or a roll of tobacco."

These Fleet parsons drove a roaring trade. There were a great number of them and a long list is given by no means exhaustive in Burns' "History of Fleet Marriages," of some sixty in all who flourished between 1681 and 1752. Among the most notorious was John Gaynam who was commonly known as the "Bishop of Hell." He is credited with having performed two thousand marriages within a few years. In person he was of commanding presence and swaggered along Fleet Street in his silk gown and white flowing bands drawing admiring attention to his handsome rubicund face. He was always smug and self-satisfied. Nothing, and no one, could put him out of countenance. When in the witness box to give evidence in a trial for bigamy, a cross examining counsel asked him if he was not ashamed to confess that he had made so many clandestine marriages, he laughingly replied, "*Video meliora deteriora sequor.*" When someone chastised him with a stick he took his punishment with well bred composure. It was said of him that although he was bishop of an extremely hot diocese he was personally remarkable for his coolness in demeanour and language. Another popular Fleet parson was Daniel Wigmore, who was not satisfied with his marriage fees, but was convicted in 1738 before the Lord Mayor of selling spirituous



A Fleet Wedding

From the picture by Hogarth

The Fleet Prison was a popular place for clandestine marriages in the seventeenth century, and the Fleet parsons, so-called, did a thriving business. Two thousand marriages were performed within a few years by one of the parsons entitled the “Bishop of Hell,” who was, like most of them, merely a layman assuming cassock and gown. Bridegrooms were kept on hand for emergency, and a “plyer” stood outside soliciting business for his employer, the “parson.”

liquors contrary to the law. Edward Ashwell, known as the “archdeacon” was a third. He was a notorious scoundrel, a bigamist three times over who yet dared to preach in church when he could get a pulpit. This Dr. Ashwell died within the Rules of the Fleet in 1746 and was recorded as “the most noted operator in marriages since the death of the never-to-be-forgotten Dr. Gaynam.”

Walter Wyatt did a very profitable business and made a large income out of his clandestine marriages, no less than £700 a year, equal to four times that sum in our modern money. On the cover of one of his registers still preserved, he gives notice that “Mr. Wyatt, minister of the Fleet, is removed from the Two Sawyers, at the corner of Fleet Lane (with all the register books) to the Hand and Pen near Holborn Bridge, where marriages are solemnised without impositions.” But there seem to have been other establishments which traded on Wyatt’s sign, probably because he was so prosperous. Joshua Lilley kept the “Hand and Pen” near Fleet Bridge. Matthias Wilson’s house of the same sign stood on the bank of the Fleet ditch; John Burnford had a similar name for his house at the foot of Ludgate Hill and Mrs. Balls also had an establishment with the same title.

One of these “Hand and Pen” public houses was kept by a turnkey of the Fleet prison, who had a room in his house for solemnising marriages with the assistance of mock clergymen, one of whom he pretends in one of his handbills to be a “gentleman regularly bred at one of our universities and lawfully ordained according to the institutions of the Church of England and ready to wait on any person in town or country.”

There was a Peter Symson who performed marriages from 1731 to 1754, and who claimed to have been educated at the University of Cambridge and to have been late chaplain to the Earl of Rothes. His chapel was at the “Old Red Hand and Mitre” three doors from Fleet Lane. When examined in court on one occasion, he declared that he had been ordained in Grosvenor Square Chapel by the Bishop of Winchester.

Another Fleet parson was William Dare, who had so large a connection that he employed a curate. John Lands had been chaplain on board a man-of-war and boasted that he had “gloriously distinguished himself in defence of his King and Country.” His chapel was at the corner of Half Moon Court, at the corner of the Old Bailey. Lands advertised that he was a regularly bred clergyman and no mere Fleet parson, and “conducted everything with the utmost decency and regularity such as shall always be supported in law and equity.”

There was competition further afield and in such outwardly respectable chapels as that of Mayfair, built in 1736, to meet the needs of a growing neighbourhood. It was situated in Chapel Place off Curzon Street, and was pulled down in 1900, to give place to the imposing town mansion of the Duke of Marlborough, which now bears the name of Sunderland House. Its first incumbent was the Rev. Alexander Keith, a properly ordained clergyman who did a great trade in irregular marriages. It was in Mayfair Chapel that the Duke of Hamilton wedded the youngest of the beautiful Gunnings, in such indecent haste that the ceremony was performed with a ring from the bed curtain at half an hour past midnight. Besides the Mayfair Chapel, Mr. Keith had a small private chapel of his own near Hyde Park Corner and he was so active in the two that he interfered greatly with the vested interests of the neighbouring clergy. One of these, Dr. Trebeck, rector of St. George’s, Hanover Square, brought an action against him and he was sentenced to excommunication. Keith retaliated by excommunicating the Bishop of London, the judge who had condemned him and the prosecutor Dr. Trebeck, but nothing came of it all except a

warrant for Mr. Keith's apprehension, on which he was committed to the Fleet prison. He lay there for some fifteen years, during which other parsons performed his functions, notably the Peter Symson mentioned above. Keith, in the end, fell into great poverty, for the Marriage Act introduced by Lord Hardwicke in 1754 summarily put a stop to these illegal practices. The new law came into force on March 25th, 1754, but the evil custom died hard. On the day before, according to one register alone, two hundred and seventeen couples were married in the Fleet and its purlieus and sixty-one in Mayfair Chapel.

Keith, in his later days, made a piteous appeal for charity. In an advertisement to the compassionate he used the following plea:—"By the late Marriage Act the Rev. Mr. Keith from a great degree of affluence is reduced to such a deplorable state of misery as is much better to be conceived than related, having scarce any other thing than bread and water to subsist on. It is to be hoped he will be deemed truly undeserving of such a fate and the public are assured that not foreseeing such an unhappy stroke of fortune as the late Act, he yearly expended almost his whole income (which amounted to several hundred pounds per annum) in relieving not only single distressed persons, but even whole families. Mr. Keith's present lamentous situation renders him perhaps as great an object of charity himself."

No record has been preserved of the response made to this appeal or of the amount of assistance, if any, accorded to him. His distress did not, however, prevent him from making a joke of it and Horace Walpole tells in one of his letters of a "*bon mot* of Keith's the marriage broker." "So the Bishops," he said, "will hinder my marrying. Well, let 'em, but I'll be revenged; I'll buy two or three acres of ground and I'll under bury them all." At the same time he had the impudence to take high ground in a pamphlet he wrote about this date. "If the present Act in the form it now stands," he said, "should (which I am sure is impossible) be of any service to my country, I shall then have the satisfaction of having been the occasion of it, because the compilers thereof have done it with a pure design of suppressing my chapel, which makes me the most celebrated man in this kingdom though not the greatest."

Some of the outrages and infractions of the law due to these irregular Fleet marriages may be specified. An heiress, Mistress Anne Leigh, was decoyed in 1719 from her friends in Buckinghamshire, carried forcibly to

the Fleet, married against her consent and barbarously ill-used by the abductors. In 1737 one Richard Leaver, being tried for bigamy, swore that he knew nothing of his first wife to whom he had been married in the Fleet when drunk. Bridegrooms were kept on hand. A man was married four times over under different names and each time paid a fee of no more than five shillings. Couples were tied together without giving more than their Christian names. The certificate was dated as the parties desired, or to please the parents. Sometimes a newly married woman ran across Ludgate Hill in her shift under a popular delusion that her husband would not be responsible for her antenuptial debts. Marriages were kept secret for various reasons; one was that if the woman was a widow she wished to save a jointure allowed her so long as she did not remarry.

It has been said that irregular marriages were resorted to for ceremony and despatch. Members of all classes, high and low, sought the assistance of the Fleet parson—aristocrats, celebrities, roughs and desperadoes, peers and paupers. Among the first were Lord Abergavenny, the Honourable John Bourke, afterward Lord Mayo, Sir Marmaduke Gresham, Lord Montague, afterward Duke of Manchester, the Marquis of Annandale and Henry Fox who became Lord Holland, and of whose marriage Horace Walpole wrote: “The town has been in a great bustle about a private match but which by the ingenuity of the ministry has been made politics. Mr. Fox fell in love with Lady Caroline Lennox (eldest daughter of the Duke of Richmond), asked her, was refused and stole her. His father was a footman, her great-grandfather a king. All the blood royal has been up in arms.”

The marriage act of 1754 was first designed by the Marquis of Bath, but was drawn so badly that the Lord Chancellor Hardwicke revised and carried it against a strong opposition. The new law was evaded by the Rev. John Wilkinson, who claimed to issue licenses on his own authority, and in 1755 married nearly two thousand couples. When the law began to look ugly, he appointed a curate to perform the ceremony and kept out of the way, although he still gave the licenses. Two members of Garrick’s company were thus united, but the great actor prosecuted the curate, who was convicted and sentenced to transportation.

CHAPTER III

FAMOUS DWELLERS IN THE FLEET

Deplorable condition of debtors throughout the country as detailed by Howard—Famous Inmates—The Chevalier Desseasau, the Prussian—Captain Johnson R. N., a professional smuggler employed in naval expeditions—Arrest—Daring escape—Employed as pilot for the Walcheren expedition—His project for rescuing Napoleon from St. Helena—The “no-Popery riots”—The Fleet burned and rebuilt—Royal Commission to inquire into imprisonment for debt—Debtors’ privileges and extravagances—Graphic picture of the Fleet given by Charles Dickens—The Common Side—The death of “the Chancery prisoner”—The closing days of the Fleet—Abolished in 1840.

THE condition of debtors as shown by Howard was deplorable all through the country. The prisons were often the property of great personages. Cheyney Court at Winchester was owned by the bishop of the diocese, so was that at Durham, and here the debtors were in such evil case that those on the Common Side had no subsistence for a whole twelve month more than a diet of boiled bread and water. His Majesty the King kept a prison for debtors in Windsor Castle in which Howard found two prisoners. The place was governed by the Duke of Montague as constable, and under him a janitor and deputy-janitor were appointed, the latter receiving free house-rent as his salary. The prison of Chester Castle was also the property of the King, who leased it to his constable or patentee, who in his turn received rent from the gaoler, forty pounds a year. The debtors were lodged in the so-called “Pope’s kitchen,” an imaginary free ward. This “Pope’s kitchen” was underground, dark and ill-ventilated, so that Howard when inside with the door shut felt that his situation brought to mind what he had heard of the Black Hole of Calcutta. In striking contrast to this, Howard speaks in commendation of the noble prison for debtors in the spacious area within York Castle, and of the admirable arrangements for the weighing and issuing of bread for the supply of which many charities existed. Elsewhere they were cruelly neglected; the keeper of Bodmin

prison bore witness that in twenty years only four prisoners had received the “groats” or allowance from their creditors. At Exeter, during twelve years, only four or five had received it besides the inmates of the Common Side ward known as the “Shoe” because those inside were in the habit of lowering a shoe through the window, to collect alms in the street. At this time the total number of debtors in custody in England and Wales averaged about two thousand.

We may contrast the culpable neglect and ill-treatment of debtors in Great Britain with the milder and more humane customs generally prevailing at that time on the Continent of Europe. In Prussia a money payment of two groschen (threepence farthing) was made by the creditors, and if omitted for one whole week, the prisoner was set free. In Holland creditors were bound to support their debtors with an allowance varying from sixpence to two and three shillings a day. In Flanders the creditor was obliged to pay for a month’s support in advance. At Cologne no debtors who were quite penniless might be confined. In Paris a new prison, La Force, had been constructed and occupied from January, 1782. It was a spacious building with the means of separation of the sexes and classes; the charge for a bed was from five to thirty sous a night, but there were also free beds, and poor prisoners were supplied with rations, soup and a pound and a half of bread daily. The rule obtained in France that the bailiff who arrested a debtor must pay the gaoler on committal a month’s allowance in advance for food. Moreover, the French law obliged creditors to give bail for small sums even where the debtor was insolvent. There was a general rule in Germany that the wives and children of debtors were not allowed to reside within the prison.

Foreigners sometimes came within the grip of the English law and became liable to imprisonment for debt. They did not all fare so well as that eccentric character, the Chevalier Desseasau, who was well known to Londoners at the latter end of the eighteenth century. He was a native of Prussia, of French extraction, who had borne a commission in the Prussian army, but having been involved in a quarrel with a brother officer and fought a duel, in which his antagonist had been dangerously wounded, he fled to England, where he eked out a precarious living in literary pursuits. His line was poetry and his production very mediocre. One verse inspired by his excessive vanity was often quoted against him,—

“Il n’y a au monde que deux héros,
Le roi de Prusse et Chevalier Desseasau.”

He was to be met with in the best literary circles, was well known to Dr. Johnson, Goldsmith, Foote, Murphy and to every publisher in the trade. His appearance was so remarkable that he attracted amused attention in the streets. Short of stature and of slender figure, he always wore a black suit, cut in an ancient fashion, and carried in his hands a gold headed cane, a roll of his poetry and a sword or two, so as to be ready to fight at a moment’s notice. He did not greatly prosper as time went on and found himself committed to the Fleet prison, where he took advantage of the “Rules” and was suffered to go about as much as he pleased. His chief places of resort were Anderton’s Coffee House in Fleet Street, “the Barn” in St. Martin’s Lane and various taverns and places of public resort in and about Covent Garden. Being a man of originality and good-nature, his company was much courted. He was buried in St. Bride’s Churchyard.

A rather remarkable character was an inmate of the Fleet and of other London prisons at the end of the eighteenth century. This was Captain Johnson, a sea-faring man, noted for his daring exploits and more or less criminal pursuits throughout his long and diversified career. He was a man of middle stature, with intelligent features and of striking personal appearance, a native of Ireland and in religion a Catholic, according to contemporary accounts. He was before all else a smuggler in a very large way of business, constantly engaged in running profitable cargoes, well known all along the southern sea-coast, full of guile in evading capture, but desperately bold in defending his ill-gotten spoil. He made London his headquarters and lived in Fitzroy Square “keeping up an establishment fit for a nobleman,” with a stable full of horses and a large staff of servants. On one occasion, when about to run a large cargo into London, he was invited to assist four persons charged with forgery out of the kingdom. After secreting them in the empty carts, he got them on board ship near Folkestone and despatched them safely to Flushing; returning with his smuggled goods, he fell in with a riding revenue officer with a cavalry escort and was made prisoner. He was lodged in the new prison in the Borough, no doubt the Queen’s Bench, but when brought up for trial boldly made his escape in the open court.

A series of hairbreadth adventures followed. Johnson was hunted from place to place but by moving constantly to and fro and assuming many disguises he continued to keep at large, until his services being urgently needed to pilot an expedition to Ostend, he was granted a pardon. No one knew the Dutch coast better, and although the earliest operations were unsuccessful, he was again employed to assist in landing troops at the Helder. He was of immense service and gained a rich reward; his pardon was confirmed, he was granted the rank and pay of post-captain in the British Navy and was much esteemed as “a bold intrepid, high-couraged Englishman” on the testimony of such officers as Sir Home Popham and Sir Ralph Abercromby.

Johnson had become concerned with contracts for the provisions of the troops and his money matters were so much mixed that he was arrested for a large sum said to be owing to the crown, and lodged in the Fleet prison. He brought counter charges and was in due course bailed out, cleared of the debt. He had a further claim on the government, an income promised him by Mr. Pitt of a thousand pounds a year if he would give up smuggling. He could not substantiate the claim and was once more thrown into the Fleet where he lived well and entertained largely, although £13,000 was the amount of his liabilities. Very little restraint was put upon him as he had given a bond to the warden against making an escape. Soon he was identified by certain revenue officers as the ringleader of a gang of smugglers who had attacked them, and from being merely a debtor, he was constituted a prisoner awaiting trial on a capital charge. An order was therefore issued for his removal to Newgate, and to make sure of his person until transferred, he was lodged in the strong room of the Fleet.

Matters now began to look serious and he secretly turned over in his mind the possibility of escape. He withdrew therefore from his bond by making it appear that he had quarrelled with his attorney, who would no longer be responsible for him. After this Johnson commenced active operations. The strong room was at the opposite end of the coffee-house gallery; he could not file the window bars, the noise of which would have betrayed him, but he bored through the panels of his double doors with strong gimlets and after much patient labour broke them out. The panels yielded to a tremendous blow delivered by one of the iron pulleys of his window sash and the noise was deadened by the loud shouting and bellowing of a neighbouring prisoner who was believed to be mad, and who

readily consented to give this assistance. When once through the panel, he stole along the gallery and upstairs to an attic with a window opening on the outside. From this he reached the boundary wall headed with its *chevaux de frise* and creeping along till he found a foothold made fast a rope he had brought with him to one of the spikes just over Fleet market. Here he lowered the rope, and slid down in safety only to find the exterior watchman on his beat below, whom he would have shot dead on the spot had he been observed, which fortunately for him was not the case.

Johnson had taken the preliminary precaution to put on the uniform of a lieutenant of the Hussars, before he climbed through the panel, the clothes having been introduced into the prison for this purpose. The Hussar regiment was stationed at Brighton and the supposed lieutenant, with the help of a friend, secured a post chaise for the journey. Arrived at Brighton, Johnson changed his clothes and went on board one of his own cutters awaiting him at Hove. He must have gone to sea forthwith and remained abroad, or in some secure hiding place, for he was not heard of again until 1809 when he was again employed by the government as pilot and guide upon the ill-starred *Walcheren*. His active spirit prompted him to proffer advice to the dilatory commanders and he strongly urged them to capture Flushing and proceed up the Scheldt and lay siege to Antwerp. They would not listen to him and turned a deaf ear also to his proposal but they approved of an attempt to blow in the walls of Flushing by a submarine torpedo, his own invention and presumably the first idea of that esteemed weapon of modern warfare. Johnson himself took charge of the enterprise and approaching the walls in a small boat, he swam up to them and fastened a block with rope attached to a part of the piles on which the town was built. The other end of this rope was fastened to the torpedo which was run out and the match ignited, but there was no explosion. The engine was imperfect, as Johnson afterward discovered, because the water had entered and wet the powder through a hole drilled in the gunlock. Johnson always attributed this to the jealousy of the inventor of the Congreve rocket, Sir William Congreve, who was present at the siege, but his charge it is difficult to believe. The torpedo which had failed at Flushing was afterward successfully tried upon a barge in the Thames, moored in midstream.

It is well known in history that Napoleon had still many active sympathisers after his downfall. More than one friend in adversity would have helped him to escape from St. Helena. Captain Johnson, although still

calling himself an officer of the Royal Navy, was willing enough to give his aid and accepted a proposal to construct two submarine vessels, to spirit the fallen emperor from his iron prison. These ships, the *Eagle*, 110 tons, 84 feet long and 18 feet beam, and the *Etna*, 23 tons, 40 feet long, 10 feet beam, were to be built in a yard in Battersea; they were to be propelled by steam, still in its infancy, and were so constructed and provided with artificial air supply that they could be submerged on the approach of an enemy, and use their torpedoes with murderous effect. Nothing came of this extravagant project, for before the ships were completed news came that Napoleon was dead. Captain Johnson has left a detailed account of the steps by which he hoped to accomplish the rescue. His two vessels were to lie submerged close to the rocky shore and to rise to the surface after nightfall. Captain Johnson would get ashore, taking with him the end of a rope fastened to a mechanical chair which should be eventually raised to such a height as to receive the person of the fugitive, who would then be lowered on to the deck of the *Etna*. Napoleon was actually to be smuggled out of Longwood disguised as a servant in livery.

Johnson was to have received £40,000 directly his submarine boats got into blue water and a further sum if the escape was successfully carried out. In his latter days Captain Johnson resided at Flushing, engaged in mercantile pursuits, but he was looked upon with little favour, for his services during the war were not forgotten or forgiven. He busied himself with the proposal to defend the Dutch coast and rivers, with his favourite device of submarines, but did not think it advisable to remain in the country.

Not long after Howard's visitation, the Fleet prison was involved with all other London prisons in the destructive mischief wreaked by the non-popery rioters, who, headed by the weak-minded Lord George Gordon, terrorized the metropolis in 1780. On Wednesday, June 7th, the rioters, now temporarily in the ascendant, sent word to all the public prisons that they were coming to burn them down. They intended to do this on the day previous, when the mob appeared before the Fleet prison and insisted that the gates should be opened and the keepers yielded to their demand. "They were then proceeding to demolish the prison, but the prisoners expostulated with them, begging that they would give them time to remove their goods. They readily condescended, and gave them a day for that purpose, in consequence of which the prisoners were removing all this day out of that place. Some of the prisoners were in for life." In the evening of the next

day, they fulfilled their threat and burned it. This was the second time, for the great fire of 1666 had previously demolished it.

The evening of this Wednesday, June 7th, is described in the Annual Register as one of the most dreadful spectacles this country ever beheld. “Let those who did not see it judge what the inhabitants felt when they beheld at the same instant the flames ascending and rolling in clouds from the King’s Bench and Fleet prisons, from New Bridewell, from the toll gates on Blackfriars Bridge, from houses in every quarter of the town, and particularly from the bottom and middle of Holborn, where the conflagration was horrible beyond description.”

The Fleet Prison was rebuilt immediately after the riots in 1780 on almost exactly the same lines. Howard’s description of it as it stood before the fire coincides pretty closely with later descriptions, after the fire. Of these the most graphic is that familiar to the whole world as given by Charles Dickens in the “Pickwick Papers.” The great literary master no doubt drew upon his own personal knowledge, for he was intimately acquainted with the London of his time, as he once resided with his father within the limits of another great debtor’s prison, the Marshalsea. In 1818, a Royal Commission was appointed as the outcome of increasing agitation against imprisonment for debt, and the report issued supplied much valuable information as to the state of the Fleet and the Marshalsea at this period. There was little improvement in either prison; they were still hot-beds of vice. While the poorer starved, all who had command of money spent it freely in a reckless and riotous fashion, little in keeping with the quiet decorum of a prison. Outsiders came in at pleasure, women of loose morals, and men to play the games provided for the prisoners. There was a racquet court, a skittle ground and “forecorner” ground, all open to the strangers who came in constantly and were a source of great profit to the racquet masters, many of whom have been from time immemorial considered very eminent players. The post of racquet master was in great request. It was in the gift of the collegians (prisoners) who elected to it once a year at Christmas tide. The canvassers for votes issued handbills. One reads as follows: “I feel that the situation is one that requires attention and increasing exertion, not so much for the individual position as from the circumstance that the amusement and—what is more vitally important—the health of my fellow inmates is in some measure placed in the hands of the person appointed.”

The prison was not closed and lights put out till a late hour, when gambling was in progress and riots frequent; when drunken persons resisted the turnkeys and fought with the coffee-house and tap-room keepers, who sought to put them out of the rooms at eleven o'clock at night. If finally expelled, they resorted to secret gin shops kept in the prisoners' rooms, where they gambled and played at cards half through the night. Clubs still existed as when reported by Howard, and met regularly to sing and carouse at social evenings. It was impossible to check the introduction of spirits, although prohibited by act of Parliament, and a large quantity was consumed within the prison so that drunkenness was very prevalent. A number of coffee-houses and public houses were held to be within the "Rules" and were much frequented, among the last the London Coffee-House, and the Belle Sauvage Inn at Ludgate Circus. Grand dinners were frequently given at the latter by prisoners "of great consideration, men of title and consequence." Much money was also spent within the walls. The warden told the committee that he had seen a prisoner's servant bringing in a pail of ice to cool his master's bottle of wine. He told another story of an Italian lady, a prisoner, who was living under the protection of a gentleman outside and who would not pay for a bushel of coals she had ordered. She struck the messenger who brought the bill, but when she was threatened with removal to the strong room she produced a guinea from her pocket and begged the man's pardon for the blows.

At this time there were many lodged in the Common Side without means of subsistence beyond the county allowance of three and six pence a week, or what they could earn by menial service,—cleaning boots, making beds and dusting rooms, for their fellow prisoners. Sometimes after long residence a poor debtor might succeed to be "the owner of a room" and was permitted to levy "chummage" or rent from the "chums" who lodged with him; their number was not limited. Debtors were entirely free from supervision in their rooms. The warden and his officers held no master keys and could only enter a room when its occupants unlocked it to them. No numbering took place, and it was never certainly known that the proper number were present.

The warden was responsible for safe custody and might suffer serious loss for the escape of prisoners committed for heavy debts. In one case he was mulcted in £2,500 for the escape of a French count who had got over an old wall, afterward made more secure, but as the warden philosophically

remarked: "there can be no wall built which a prisoner cannot get over if he is a clever fellow; a sailor who has the use of his limbs can get over any wall." On the other hand he pointed out that "it seldom answers the purpose of any man to escape out of the Fleet prison unless it is a foreigner who has no residence in this kingdom or a smuggler who can live anywhere. Many people come to the prison for their own benefit, that is for the purpose of taking the benefit of some act passed to allow them to plead insolvency, and so purge their debts." With all his risks the warden had a considerable margin in the handsome total of his fees and other receipts. These averaged yearly for the three years ending 1818 as much as £3,008, from which his outgoings had to be deducted, amounting to £1,125, leaving him a net annual income of £1,883. The deductions were made up of an average of £300 per annum for losses by escapes, a sum of £368.11.0 for rates and taxes on all premises, and the rest for chaplain's salary and servants' wages, lighting, coals and so forth.

At this date the prison population, taking the total inside the walls and those located within the "Rules," seldom exceeded three hundred. The prisoners taken as a body were an idle, disorderly set of men with vicious habits. Thefts from one another were very common, although articles stolen were sometimes surrendered at the summons of the "crier" who publicly announced things lost or found. Divine service was performed on Sundays, Christmas Day and Good Friday, but prisoners seldom attended. The chaplain, an earnest, painstaking man, thought the hour of service inconveniently early and changed it to one o'clock in the afternoon, but found his flock as indolent at that hour as when the service was at eleven o'clock. The rule of attendance at chapel was laid down, but it could not be enforced. Neither the warden nor his deputy nor yet any of his turnkeys attended, but the latter sometimes drove away idle boys and people who make a disturbance at the chapel doors. The coffee-house and the "cellar head" tap were not closed during hours of divine worship. The warden was an aged man, blind, deaf, and infirm, who had delegated his duties to a deputy for fifteen years past, but who took the emoluments and risks, only paying the warden a fixed annuity of £500 a year. The rest of the staff consisted of a "clerk of the papers," three turnkeys, a watchman who acted also as scavenger and the "crier." There was no regular medical attendance, but a general practitioner from the neighbourhood was called in when required.

The foregoing conditions still obtained at the date of Charles Dickens' description. "Pickwick" first appeared in 1836, but the observations on which the account of the Fleet was based were no doubt made much earlier and the picture drawn is strikingly realistic, as a few quotations will abundantly show.

When Mr. Pickwick accompanied by his astute solicitor Mr. Perker and his faithful bodyservant Sam Weller was committed to the Fleet at the suit of Messrs. Dodson and Fogg, he went through the usual preliminaries, sat for his portrait and was duly passed through the inner gate and found himself within the "lock" as imprisonment was euphemistically described. His further progress in search of quarters for the night is thus described: "It was getting dark; that is to say, a few jets were kindled in this place, which was never light, by way of compliment to the evening which had set in outside. As it was rather warm some of the tenants of the numerous little rooms which opened into the gallery on either hand had set their doors ajar. Mr. Pickwick peeped into them as he passed along, with great curiosity and interest. Here four or five great hulking fellows, just visible through a cloud of tobacco-smoke, were engaged in noisy and riotous conversation over half-emptied pots of beer or playing at 'all-fours' with a very greasy pack of cards. In the adjoining room some solitary tenant might be seen, poring, by the light of a feeble tallow candle, over a bundle of soiled and tattered papers, yellow with dust and dropping to pieces from age, writing, for the hundredth time, some lengthened statement of his grievances, for the perusal of some great man whose eyes it would never reach, or whose heart it would never touch. In a third, a man, with his wife and a whole crowd of children, might be seen, making up a scanty bed on the ground and upon a few chairs, for the younger ones to pass the night in. And in a fourth, and a fifth, and a sixth and a seventh, the noise and the beer and the tobacco smoke, and the cards all came over again in greater force than before.

"In the galleries themselves and more especially on the staircases, there lingered a great number of people who came there, some because their rooms were empty and lonesome, others because their rooms were full and hot, and the greater part because they were restless and uncomfortable, and not possessed of the secret of exactly knowing what to do with themselves. There were many classes of people here—from the labouring man in his fustian jacket to the broken-down spendthrift in his shawl dressing-gown, most appropriately out at elbows; but there was the same air about them all

—a listless, jail-bird, careless swagger, a vagabondish who's afraid sort of bearing, which is wholly indescribable in words."

The visit to the Common Side is brought forcibly before us in the following admirable description:

"The poor side of a debtor's prison is, as its name imports, that in which the most miserable and abject class of debtors are confined. A prisoner having declared upon the poor side, pays neither rent nor 'chummage.' His fees upon entering and leaving the jail are reduced in amount, and he becomes entitled to a share of some small quantities of food, to provide which a few charitable persons have from time to time left trifling legacies in their wills. Most of our readers will remember that, until within a few years past, there was a kind of iron cage in the wall of the Fleet Prison, within which was posted some man of hungry looks, who from time to time rattled a money box and exclaimed in a mournful voice, 'Pray remember the poor debtors; pray remember the poor debtors.' The receipts of this box, when there were any, were divided among the poor prisoners; and the men on the poor side relieved each other in this degrading office.

"Although this custom has been abolished and the cage is now boarded up, the miserable and destitute condition of these unhappy persons remains the same. We no longer suffer them to appeal at the prison gates to the charity and compassion of the passers-by; but we still leave unblotted in our statute book, for the reverence and admiration of succeeding ages, the just and wholesome law which declares that the sturdy felon shall be fed and clothed, and that the penniless debtor shall be left to die of starvation and nakedness. This is no fiction. Not a week passes over our heads but, in every one of our prisons for debt, some of these men must inevitably expire in the slow agonies of want, if they were not relieved by their fellow-prisoners."

No finer effort of genius has been shown than the pathetic episode of the death of the Chancery prisoner:

"The turnkey led the way in silence; and gently raising the latch of the room door, motioned Mr. Pickwick to enter. It was a large, bare, desolate room, with a number of stump bedsteads made of iron, on one of which lay stretched the shadow of a man, wan, pale and ghastly. His breathing was hard and thick and he moaned painfully as it came and went. At the bedside

sat a short old man in a cobbler's apron, who, by the aid of horn spectacles, was reading from the Bible aloud.

"The sick man laid his hand upon his attendant's arm and motioned him to stop. He closed the book and laid it on the bed.

" 'Open the window,' said the sick man.

"He did so. The noise of carriages and carts, the rattle of wheels, the cries of men and boys—all the busy sounds of a mighty multitude instinct with life and occupation, blended into one deep murmur, floated into the room. Above the hoarse, loud hum arose from time to time, a boisterous laugh; or a scrap of some jingling song, shouted forth by one of the giddy crowd, would strike upon the ear for an instant and then be lost amidst the roar of voices and the tramp of footsteps—the breaking of the billows of the restless sea of life that rolled heavily on without. Melancholy sounds to a quiet listener at any time; how melancholy to the watcher by the bed of death!

" 'There is no air here,' said the sick man, faintly. 'The place pollutes it. It was fresh round about when I walked there, years ago; but it grows hot and heavy in passing these walls. I cannot breathe it.'

" 'We have breathed it together for a long time,' said the old man. 'Come, come.'

"There was a short silence, during which the two spectators approached the bed. The sick man drew a hand of his old fellow-prisoner towards him, and pressing it affectionately between both his own, retained it in his grasp.

" 'I hope,' he gasped, after a while, so faintly that they bent their ears close over the bed to catch the half-formed sounds his pale lips gave vent to—'I hope my merciful Judge will bear in mind my heavy punishment on earth. Twenty years, my friend, twenty years in this hideous grave! My heart broke when my child died, and I could not even kiss him in his little coffin. My loneliness since then, in all this noise and riot, has been very dreadful. May God forgive me! He has seen my solitary, lingering death.'

"He folded his hands and murmuring something more they could not hear, fell into a sleep—only a sleep at first, for they saw him smile.

"They whispered together for a little time and the turnkey, stooping over the pillow, drew hastily back. 'He has got his discharge by G—!' said the man.

“He had. But he had grown so like death in life that they knew not when he died.”

As the years drew on the Fleet prison was more and more denounced and discredited. While a certain section of those detained spent their days in dissipation and excess, a much larger number, three-fourths of the whole, were still destitute and unable to provide themselves with bread. A case given in the *Morning Herald* of August 12, 1833, may be cited in this connection. “A gentleman complained that the overseers of St. Bride’s Parish had refused to relieve a distressed prisoner in the Fleet. The prisoner was Mr. Timothy Sheldrake, who had been well known for his skill in treating deformities of the body. He once kept his carriage and obtained £4,000 by his practice but he was now quite destitute—when applicant saw him he had actually fasted forty-eight hours.” There was some dispute as to the liability of the parish of St. Bride’s, but it was decided to appropriate relief out of the County Rate.

The hardships inflicted upon the poorer inmates of the Fleet were not the only evils that prevailed in that mismanaged establishment. It was a school of crime and more than one offender owed his lapse from honesty to his residence in the Fleet. It came out that the ringleader of a gang of utterers of forged bank-notes lived constantly in the prison. He made it his business to ingratiate himself with young men of good appearance who were fellow prisoners and to lead them into giving their services in passing spurious notes when again at large. One of these was convicted and only escaped the gallows by taking poison the night before his execution. He had been a captain in the army and was of good family and showy appearance. The gang at last committed a robbery on a bank in Cornwall and was entirely broken up. From that time the instigator, who had resided within the Fleet, disappeared entirely, although he was not one of those convicted or even suspected of the crime in Cornwall.

At last the days of the Fleet prison were numbered. The act of 1 and 2 Queen Victoria C-110 abolished arrest on mesne process and no more debtors were to be sent by the courts of Chancery, Exchequer and Common Pleas to the Fleet: all debtors and bankrupts to go in future to the Queen’s Bench prison in Southwark, or to the new prison in Whitecross Street, which shall be dealt with in due course. These prisons were to be fully utilised and the Fleet pulled down, with a considerable saving to the Exchequer in its maintenance and the sale of its valuable site. The change

was not made without protest and the bill was opposed in Parliament, but it passed in due course into law. There were several strict clauses regulating the future governance of the Queen's Bench, all aimed at "preventing extravagance and luxury and enforcing due order and discipline within the prison."

CHAPTER IV

THE KING'S BENCH PRISON

Earliest mention—Lord Chief Justice and Prince Hal—The first prison destroyed by the Lord George rioters—Rebuilt—Notable inmates—Richard Baxter—Sir William Reresbury—Chatterton—Smollett's description in "Roderick Random"—George Morland frequently a prisoner—John Wilkes imprisoned and the disturbances that resulted—His career and death—William Hone, the well known litterateur, lodged in the King's Bench for debt, where he compiled his "Every Day Book," "Table Book," and "Year Book"—Colonel Hanger, soldier, courtier, beau—A chosen companion of the Prince of Wales—His services in the American War—His difficulties and arrest—Lord Cochrane, a distinguished naval officer—Committal to the King's Bench—Plot of which he was the victim—His adventures in the King's Bench—Method of escape and appearance in Parliament—Later career in South America. Brilliant services and tardy rehabilitation by the British government.

THE first King's Bench Prison stood on the east side of the High Street Borough, Southwark, near the Marshalsea and dated from 1377, the time of Richard II. It is memorable as the prison to which Chief Justice Gascoigne committed Prince Hal, the heir apparent of the English throne, and later King Henry V, the hero of Agincourt. The royal offender, Prince Hal, had been guilty of contempt of court in taking one of his suite from the custody of the court and offering violence to the judge on his bench. The story is held by some to be apocryphal, but the Prince's prison chamber was still shown in the time of Oldys,^[5] the historian. The prison was moved to the southwest corner of Blackman's Street and the entrance of the Borough Road, and was standing there when burned down by the Lord George Gordon rioters in 1780, but was rebuilt on the lines described by Mr. Allen in his history of Surrey, and survived until a quite recent date. According to the account there given, it occupied an extensive area of ground and consisted of one large pile of buildings about 120 yards long. The south or principal front had a pediment under which was the chapel. There were four pumps of spring and river water in the interior. It contained 224 rooms or apartments, eight of which being much larger than the others were called staterooms. A coffee-house and two public houses were to be found within the walls, with shops and stalls for the sale of meat, vegetables and necessaries like any public market. "The number of people walking about,"

says Allen, “or engaged in various amusements are little calculated to impress the stranger with an idea of distress or even of confinement.” The walls surrounding the prison were thirty feet high and were crowned with a *chevaux de frise* to prevent escape. The “Rules” were extensive and included all St. George’s Fields, one side of Blackman Street, and part of the Borough High Street, enclosing altogether an area of three miles in circumference. These “Rules” were purchasable by prisoners at various rates; when the debt was considerable the price was eight guineas for the first hundred, and half that sum for every hundred in addition. Day rates cost 4s 2d for the first day and 3s 10d for the days following. The exact limits of the Rules were never strictly defined and Lord Ellenborough, when Chief Justice of the King’s Bench, being asked to extend them, said he saw no necessity, as to his certain knowledge they already included the East Indies, implying that fugitives had fled there. Of course in such a case the marshal was held responsible for the debt of the one who had run away. The practice of permitting prisoners to live beyond the prison originated, it was said, in the days of the Plague.

Among the earliest records of the King’s Bench prison of Southwark was a petition from the prisoners to the Privy Council for its enlargement and the erection of a chapel. It was pleaded that at this time, through overcrowding, there was “much sickness in the house.” In later days under the Commonwealth it was called the “Upper Bench Prison.” Among the early inmates of any note was Dr. Robert Recorde, said to have been physician to King Edward VI and Queen Mary; he was a Fellow of All Souls, Oxford, and died in the King’s Bench in 1558, when confined there for debt. John Rushworth, author of the “Historical Collections” of facts, 1618-1648, was a prisoner in the Bench for six years, and the notorious Judge Jeffreys committed Richard Baxter, the non-conformist advocate, to it for eighteen months. An inmate of title who had fallen sadly away from his high estate was Sir William Reresby, the son and heir of Sir John, whose “Memoirs and Travels,” with anecdotes and secret history of the courts of Charles II and James II are full of interest. Sir William was the third baronet, a reckless spendthrift and gamester who wasted large sums at the tables and in cock-fighting. He lost his fine estate of Dennaby at a single throw of the dice and was afterward tried and imprisoned for cheating in 1711. He eventually became a tapster in the King’s Bench.

Chatterton, the youthful poet, who forged the apocryphal poems of Thomas Rowley, the supposititious monk of the fifteenth century, was at one time a prisoner in the King's Bench, whence he dated a letter, May 14th, 1770, saying that a gentleman had recommended him as the travelling companion for the young Duke of Northumberland, but that alas! he spoke no language but his own. Chatterton's fraud was one of the most curious crimes in literary history. He was a native of Bristol and an attorney's clerk, when he pretended to have discovered an ancient manuscript, which he put forward as authentic, but which was soon pronounced a forgery by Mason and Gray and other contemporary poets. Nothing daunted, Chatterton came to London to seek his fortune in literature; he produced great numbers of satirical poems, political essays and critical letters which found their way into print, but without remuneration. When threatened with penury, he committed suicide at his lodgings in Brook St., Holborn. He was undoubtedly a genius and he has been called the greatest prodigy in literature, for he was no more than eighteen when he died and he had already produced some fine, vigorous work.

A good picture of the King's Bench is given by Smollett about this date (1750) in his "Roderick Random:" "The prison is situated in St. George's Fields, about a mile from the end of Westminster Bridge, and it appears like a neat little regular town, consisting of one street, surrounded by a very high wall, including an open piece of ground which may be termed a garden, where the prisoners take the air, and amuse themselves with a variety of diversions. Except the entrance, where the turnkeys keep watch and ward, there is nothing in the place that looks like a gaol, or bears the least colour of restraint. The street is crowded with passengers; tradesmen of all kinds here exercise their different professions; hawkers of all sorts are admitted to call and vend their wares as in any open street in London. There are butchers' stands, chandlers' shops, a surgery, a tap-house well frequented, and a public kitchen, in which provisions are dressed for all the prisoners gratis, at the expense of the publican. Here the voice of misery never complains; and indeed little else is to be heard but the sounds of mirth and jollity. At the further end of the street, on the right hand, is a little paved court leading to a separate building, consisting of twelve large apartments called 'State rooms,' well furnished, and fitted up for the reception of the better sort of Crown prisoners; and on the other side of the street, facing a separate piece of ground, is the Common Side, a range of rooms occupied

by prisoners of the lowest order, who share the profits of the begging-box, and are maintained by this practice and some established funds of charity. We ought also to observe that the gaol is provided with a neat chapel, in which a clergyman in consideration of a certain salary, performs divine service every Sunday.”

Artists shared with men of letters the honours of the King’s Bench. One whose work is perhaps more highly appreciated to-day than in his own time was George Morland, the painter, who was born in London on the 26th June, 1763, and was the son of Henry Robert Morland and grandson of George Henry Morland. He is said by Cunningham to have been lineally descended from Sir Samuel Morland, while other biographers go so far as to assert that he had only to claim the baronetcy in order to get it. He began to draw at three years old and at the age of ten (1773) his name appears as an honorary exhibitor at the Royal Academy. Although the publishers reaped the principal profit from the sale of his works, Morland’s credit and resources enabled him for some years to lead the rollicking life he loved without much pressure of monetary care. At one period he kept eight saddle horses at the White Lion Inn. But as time passed he became crippled with debts and a prey to creditors who gave him no peace. He lived a hunted life and was only able to escape from the bailiffs by his knowledge of London and the assistance of friends and interested picture dealers. He fled from one house to another, residing now in Lambeth, now in East Sheen, now Queen Anne Street, the Minories, Kensington or Hackney. At this last place his strict seclusion aroused a suspicion that he was a forger of bank notes and his premises were searched at the instance of the bank directors, who afterward made him a present of £40 for the inconvenience caused by their mistake.

In November, 1799, Morland was at last arrested for debt, and he was allowed to take lodgings “within the Rules” of the King’s Bench to which his most discreditable friends constantly flocked. During this mitigated imprisonment he sank lower and lower. According to the “Dictionary of National Biography” he was often drunk for days together and generally slept on the floor in a helpless condition. It is probable that these stories are exaggerated, for he still produced an enormous quantity of good work. “For his brother alone,” says Redgrave, “he painted 192 pictures between 1800 and 1804, and he probably painted as many more for other dealers during the same period, his terms being four guineas a day and his drink.” Another

account says that during his last eight years he painted 490 pictures for his brother and probably 300 more for others, besides making hundreds of drawings. His total production is estimated at no less than four thousand pictures. In 1802 he was released under the Insolvent Debtors' Act but his health was ruined and his habits irremediable. About this time he was seized with palsy and lost the use of his left hand so that he could not hold his palette. Notwithstanding this, he seems to have gone on painting to the last, when he was arrested again for a publican's score and died in a sponging house in Eyre Street, Cold Bath Fields, on 27th October, 1804. His much wronged wife was so afflicted at the news of his death that she died three days afterward and both were buried together in the burial ground attached to St. James' Chapel in the Hampstead Road.

Morland's epitaph on himself was, "Here lies a drunken dog." His propensities to drink and low pleasure appear to have been unusually strong. He had opportunities of indulging them at an unusually early age and throughout life, except for a short interval of courtship and domesticity, he was surrounded by associates who encouraged his debauchery. "But though he was vain and dissolute he was generous, good natured and industrious and appears to have been free from the meaner and more malicious forms of vice. It should also be placed to his credit that however degraded his mode of life, he did not degrade his art to the same level."

It would be difficult to define the exact place of John Wilkes in the history of this time, but he figures largely in that of the King's Bench prison, both as an inmate and the cause of much loss of life in the disturbances to which his committal gave rise. To-day he is rightly judged as an insolent demagogue who misled the ignorant public by his intemperate attacks upon the government and his offensive writings in the *North Briton*, which cost him several duels and an embittered prosecution. He gained immense popularity with the mob as his long trial proceeded, which culminated in serious riots when the case at last went against him, and he was sent to the King's Bench. The carriage in which he was conveyed was seized by the crowd, the horses removed, and the vehicle was dragged to a public house in Spital Fields north of the present Liverpool Street Railway Station. Here he was allowed to alight and at eleven o'clock at night to escape from his over zealous friends, taking immediate advantage of his liberty to surrender himself at the King's Bench prison. The next day a vast mob collected outside the prison, and some hostile

demonstration was feared. Nothing worse occurred than the tearing down of the fences surrounding the prison and burning them in a bonfire, while the residents in the neighbourhood were compelled to illuminate their windows. Legal proceedings were resumed in the days following and Wilkes' counsel pleaded for arrest in judgment on the ground of illegal action, but the Crown would not yield, and a day was fixed for the final discussion whether or not the sentence of outlawry passed on him should be maintained.

The malcontents held their ground about the prison in threatening numbers, and resisted all efforts of the civil authority to disperse them, and the troops were called out. The riot act was read and after the warning the order given to fire, which was promptly obeyed with fatal results. A number of persons were killed and wounded, the shots aimed high after taking effect upon those at a distance. Further violent outrages were not committed. Later a mob attacked the house of Lord Bute, hated Prime Minister of that day, and the Mansion House and private apartments of the Lady Mayoress were invaded and wrecked. People were everywhere forced to illuminate their windows and the street echoed with cries of "Wilkes and Liberty." The rioters were guilty of many outrages. Several quiet folk were killed, numbers wounded, windows were broken, furniture destroyed, royal residences even were threatened. The tumults extended to the provinces, the working classes were disaffected and demanded higher wages, and when denied went out on strikes, the earliest instances of them known. The disturbances were taken up by the seamen in the Pool, and a body of thousands of sailors marched in procession to the St. James Palace with drums beating and colours flying to present a petition to the King, praying for a relief of grievances. The following day they assembled in a great multitude in Palace Yard, boisterously clamouring for an increase of wages, but dispersed on an assurance from two M. P.'s that their requests should receive attention. A fresh tumult arose at Limehouse where several outward bound vessels were boarded and prevented from going to sea. All workers in London—sawyers, hatters, watermen and the Spital Fields weavers—combined in demanding an increase of wages, and confusion and unrest were general throughout London. The commotion gradually subsided and the principal rioters were brought to justice, while Wilkes still remained in the King's Bench prison. The sympathy shown him took a very practical form. Some £20,000 were subscribed for the payment of his fines and debts,

many valuable gifts were presented to him: plate, jewels, wine, furniture and purses embroidered in gold and containing specie.

A word or two about John Wilkes will illuminate the foregoing recital. He was born in 1727, the son of a brewer or distiller at Clerkenwell, and had been well educated at the University of Leyden. On his return to England at the early age of twenty-two he married an heiress, Miss Mead, ten years his senior. Although he was without personal attraction, his ready wit and charming manner gave him such an advantage with the fair sex that he was fond of saying that he was only ten minutes behind the handsomest man in a room. He kept a good table and soon won a large circle of friends, but his extravagant ways and love of dissipation involved him in difficulties. He quarrelled with his wife, they separated, and in the lawsuit his character and reputation were much damaged. When in 1757 he entered the House of Commons as a member for Aylesbury, he joined the agitation against that already most unpopular minister, Lord Bute, and founding the notorious *North Briton*, succeeded by persistent attacks in the paper in driving him from office. The next minister was no less fiercely assailed and Wilkes so far forgot himself as to charge the King (George III) with telling a lie. For this his house was entered and his papers seized and he himself committed to the Tower, but released on his claiming privilege as a member of Parliament. The *North Briton* was publicly burned by order of the House of Commons; Wilkes retaliated by an action against the Government for the improper seizure of his papers, and he was awarded £1,000 damages with a dictum from the Lord Chief Justice that general warrants were illegal.

Wilkes then was expelled from the House of Commons and went over to France. In his absence the Government proceeded to blacken his character by publishing an obscene poem of which he was the joint author, but it was shown that a printed copy had been obtained by underhand methods, the ministers incurring so much odium that they were driven from office. When the new Government was formed Wilkes returned to England and was now elected member for Middlesex. It was at this time that the riots described above occurred. Wilkes impugned the conduct of ministers and accused them of responsibility for the “massacre in St. George in the Field.” This was held in the House of Commons to be a seditious libel and Wilkes was again expelled from the House. The electors of Middlesex protested by returning him again and again, defying the House of Commons and glorifying Wilkes—who was still imprisoned in the King’s Bench—as the

champion of national liberty. Wilkes was now the most popular man in England. Soon afterward he won a suit against Lord Halifax with £4,000 damages and in the following year was released on giving a bond for seven years' good behaviour. Three years after he was made Lord Mayor of London and once again elected as member for Middlesex, which he now represented for several years. Wilkes in his last days sank into comparative obscurity and died an "extinct volcano" in 1792. Wilkes was not the immediate cause of the confinement in the King's Bench prison of William Hone, but this well-known writer owed his protracted trials directly to the famous demagogue. He was arraigned at the Guildhall in 1817, charged with having printed and published the profane but curious "Wilkes' Catechism," which purported "to have been from the original manuscript in Mr. Wilkes' handwriting and never before printed." It was described as a catechism or "Instructions to be learned of every person before he be brought to be confirmed a placeman or pensioner by the minister." The first questions and answers indicate its character. "Q. What is your name? A. Lickspittle. Q. Who gave you this name? A. My sureties to the ministry in my political change wherein I was made a member of the majority, the child of corruption and a locust to devour the good things of the kingdom." Then follows the "belief," which is too blasphemous for quotation, and the commandments, one of which ran, "Honour the Regent and the helmets of the Lifeguards, that thy stay may be long in the place which the Lord thy ministry giveth thee." The general tenor of this catechism will be seen in the question "What is thy duty towards thyself?" and the answer, "My duty towards myself is to love nobody but myself and to do unto most men what I would not that they should do unto me; to sacrifice unto my own interest even my father and mother; to pay little reverence to the King, but to compensate that omission by my servility to all that are out in authority under him," and so on.

The prosecution was no doubt inspired by the fierce party spirit prevailing at the time and caused great excitement; the Court, that of the King's Bench in Guildhall, was densely crowded by an audience by no means in sympathy with the Attorney General when he unsparingly denounced the publication, and the violent coughing and other marks of disapprobation during his address roused the judge, Mr. Justice Abbott, to declare that he would clear the court. Mr. Hone defended himself ably, pleading that the whole publication was intended as a parody, but that he

had stopped its sale directly he found it was looked upon as profane. A verdict of “not guilty” was speedily brought in by the jury, which was received with loud demonstrations of approval. Mr. Hone was again put on his trial, first for publishing a parody entitled “The Political Litany,” and again for publishing a parody on the “Athanasian Creed” styled the “Sinecurist Creed.” His defence, which he again conducted personally with such great boldness that the sitting judge, Lord Ellenborough, designated it as outraging decency and propriety, resulted in another verdict of “not guilty,” a decision greeted with loud cheers extending far beyond the limits of the court. These matters would have no permanent interest nor would William Hone call for reference here, but that he was afterward arrested by a creditor and lodged in the King’s Bench when he was engaged upon the production of his “Everyday Book,” a work full of curious and useful information, completed within the walls of the prison. He also began and finished there his “Table Book” and his “Year Book,” productions that have long survived the personality of their author.

An interesting character, the hero of many striking adventures and who passed through some strange vicissitudes and misfortunes, found himself more than once in the King’s Bench at the latter end of the eighteenth century. This was Colonel Hanger, commonly known as George Hanger, for although he eventually succeeded to his father’s title of Lord Coleraine, he steadfastly objected to assume it. He was a man of substance in his time, having property in his own right, and he early entered the army as an officer in the 1st regiment of Guards, from which he passed during the war with the American Colonies into the service of the Landgrave of Hesse Cassel. He was a prominent dandy in his time, lived fashionably, spent large sums on his clothes, and although he played little at cards, he gambled continually and for large sums on the turf. It was the rule for well-born youths in his time to dress extravagantly; young Hanger tells us in his memoirs that one set of winter dress clothes cost him £900 and he adds, “This should not so much astonish the reader as the fact that I actually paid the tailor.” The expense of appearing properly on the King’s birthday was enormous, an officer of the Guards being obliged to have two suits, and he says: “My morning vestments cost me nearly £80 and those for the state ball above £180. It was a satin coat and the first that had made its appearance in this country; shortly after, satin dress clothes became common among well-dressed men.... I had no office of emolument, advantage or trust about his

Majesty's person, except an ensigncy, the pay of which did not amount to four shillings per day, a sum insufficient to meet the tailor's charges for one single button and button-hole to my gala suit; the very stitching of a button-hole in those days cost me more, and the embroidered gold clocks on my stockings in which I never failed to appear at a ball were very expensive." Hanger became one of the chosen companions of the Prince of Wales (George IV) and lived at the same pace. He kept race-horses, backed them for considerable sums and once stood to win or lose 3,000 guineas on one race. "I can with truth say the turf had done me justice," he writes, "but the extravagance of the times, the delightful pleasure of that age and the frailty of my own nature were my ruin." He lived in fact far above his income which never exceeded eleven hundred pounds a year, and presently he became seriously involved. He had recourse to a mortgage on his estate for £13,000, and as he became more and more indebted was obliged in due course to sell it when it fetched rather less than half the sum at which it had been originally valued. He accompanied his regiment to America, took part in the war of Independence, but made the mistake of leaving the British Guards for the Hessian service. He found friends in Sir Harry Clinton and Colonel Tarleton, by whom he was appointed to the British Legion, and distinguished himself in the field.

When the war ended and Major Hanger was due to return to England, his affairs were so straitened that he took refuge in Calais, leaving friends to act for him at home and arrange with his creditors. But for the generous assistance of Mr. Richard Tattersal he could not have landed in England, for he was now completely beggared, and when directly he reappeared in the world, was arrested by his creditors. It was at this time that his estate was forcibly sold at such a loss. He now surrendered himself at the King's Bench, where he was detained for some months but by the help of friends was admitted to take the "Rules." His detention was brief, but his experiences as told in his "Life and Adventures" throw a strong light upon the iniquitous system still in force with regard to debtors as described later.

A distinguished naval officer, Lord Cochrane, afterward Earl of Dundonald, was committed a prisoner to the King's Bench in 1815, on conviction of seeking to influence the stock markets by the dissemination of false news. His eminent services in the late war with France were forgotten and he was denied a fair, unprejudiced trial. It was clear that he was the victim of a dastardly plot and was sacrificed to the treachery of the

villainous author of it. Lord Cochrane had recently been given the command of a King's ship, and was on the point of sailing for the North American station. One day a visitor named de Berenger called at his house, pretending to be an officer and prisoner for debt, within the Rules of the King's Bench. He said he had come to Lord Cochrane to implore him to release him from his difficulties and give him a passage across the Atlantic. His application was refused,—it was forbidden indeed according to naval rules,—and de Berenger was sent away. But before he left the house he pleaded piteously that to return to the King's Bench prison in full uniform would attract suspicion. It was not stated how he had evaded its jurisdiction, but he no doubt implied that he had escaped and changed into uniform somewhere. Why he did not go back to the same place to resume his plain clothes did not appear. Lord Cochrane only knew that in answer to his urgent entreaty he lent him some clothes (the room was at that moment littered with clothes, which were to be sent on board the *Tonnant*). He unguardedly gave de Berenger a "civilian's hat and coat." This was a capital part of the charge against Lord Cochrane.

De Berenger had altogether lied about himself. He had not come from within the Rules of the King's Bench but from Dover, where he had been seen the previous night at the Ship Hotel. He was then in uniform and pretended to be an aide-de-camp to Lord Cathcart, who was the bearer of important despatches. He made no secret of the transcendent news he brought. Bonaparte had been killed by the Cossacks, Louis XVIII proclaimed and the allied armies were on the point of occupying Paris. To give greater publicity to the intelligence he sent it by letter to the port-admiral at Deal, to be forwarded to the Government in London by means of the semaphore telegraph. The effect of this startling news was to send up stocks ten per cent., and many speculators who sold on the rise realised enormous sums.

De Berenger, still in uniform, followed in a post-chaise, but on reaching London he dismissed it, took a hackney coach and drove straight to Lord Cochrane's. He had some slight acquaintance with his lordship and had already petitioned him for a passage to America but the application had been refused. There was nothing extraordinary, then, in de Berenger's visit. His lordship, again, claimed that de Berenger in calling on him, instead of going straight to the Stock Exchange to commence operations, indicated that he had weakened in his plot and did not see how to carry it through.

“Had I been his confederate,” says Lord Cochrane in his affidavit, “it is not within the bounds of credibility that he would have come in the first instance to my house and waited two hours for my return home in place of carrying out the plot he had undertaken, or that I should have been occupied in perfecting my lamp invention for the use of the convoy of which I was in a few days to take charge, instead of being on the only spot where any advantage to be derived from the Stock Exchange hoax could be realised had I been a participator in it. Such advantage must have been immediate, before the truth came out; and to have reaped it, had I been guilty, it was necessary that I should not lose a moment. It is still more improbable that being aware of the hoax, I should not have speculated largely for the special risk of that day.”

We may take Lord Cochrane’s word, as an officer and a gentleman, that he had no guilty knowledge of de Berenger’s scheme; but here again the luck was against him, for it came out in evidence that his brokers had sold stock for him on the day of the fraud. Yet the operation was not an isolated one, made on that occasion only. Lord Cochrane declared that he had for some time past anticipated a favourable conclusion to the war. “I had held shares for the rise,” he said, “and had made money by sales. The stock I held on the day of the fraud was less than I usually had, and it was sold under an old order given to my brokers to sell at a certain price. It had necessarily to be sold.” It was clear to Lord Cochrane’s friends—who, indeed, and rightly, held him to be incapable of stooping to fraud—that had he contemplated it he would have been a larger holder of stock on the day in question when, actually, he held less than usual. On these grounds alone they were of opinion that he should have been absolved from the charge.

The part taken by the late Lord Playfair in the rehabilitation of Lord Cochrane has been told by Sir Wemyss Reid in his admirable “Memoirs” of Playfair. The Earl of Dundonald died in October, 1860. To his grandson, the present gallant earl, whose brilliant achievements as a cavalry leader in the great Boer War have shown him to be a worthy scion of a warrior stock, his last will bequeathed as follows: “All sums due to me by the British Government for my important services, as well as the sums of pay stopped under perjured evidence for the commission of a fraud upon the Stock Exchange. Given under my trembling hand this 21st day of February, the anniversary of my ruin.”

Lord Playfair was an intimate friend of the much-worried admiral, and while he was a member of the House of Commons he made a strenuous effort to carry out the terms of the above will by recovering the sums mentioned in it. What followed shall be told in Playfair's own words. "In 1814 Lord Dundonald and Lady X were in love and though they did not marry, always held each other in great esteem for the rest of their lives. Old Lady X was still alive in 1877, and she sent me a letter through young Cochrane, the grandson, authorising me to use it as I thought best. The letter was yellow with age, but had been carefully preserved. It was written by Lord Dundonald and was dated from the prison on the night of the committal. It tried to console the lady by the fact that the guilt of a near relative of hers was not suspected, while the innocence of the writer was his support and consolation.

"The old lady must have had a terrible trial. It was hard to sacrifice the reputation of her relative; it was harder still to see injustice still resting upon her former lover. Lord Dundonald had loved her and received much kindness from her relative, so he suffered calumny and the injustice of nearly two generations rather than tell the true story of his wrong.

"I had long suspected the truth, but I never heard it from Lord Dundonald. The brave old lady tendered this letter as evidence to the Committee, but I declined to give it in, knowing that had my friend been alive he would not have allowed me to do so. At the same time I showed the letter to the members of the Committee individually and it had a great effect upon their minds and no doubt helped to secure the report recommending that the Treasury should pay the grandson the back salary of the admiral.

"The interesting letter itself I recommended should be put in the archives of the Dundonald family and this I believe has been done."

Lord Cochrane's incarceration in the King's Bench was the cause of considerable trouble. He had been committed there in default of a payment of the fine of a thousand pounds and with a sentence of one year's imprisonment during which, in company with his alleged confederates, he was to stand once on the pillory in the open space before the Royal Exchange. Lord Cochrane was at that time a member of the House of Commons and it was moved in the House that he should be expelled, which was carried by a large majority. He found many warm friends, however, and chief among them Sir Francis Burdett, who, when the seat of Westminster

was declared vacant, proposed Lord Cochrane for re-election, and his lordship was unanimously returned. He continued, however, to reside in the King's Bench until the time of the next session approached, and he was resolved to break prison in order to appear in his place when the House met. He did, in effect, but in none of the ways reported at the time. One report was that he went out concealed in a sofa bedstead; another that he was sewn up inside a mattress with the feathers; a third that he passed the gates in disguise, but not unknown to the authorities, whom he had bribed to wink at his departure. The real truth was that having arranged for the visit of three or four Life guardsmen, he exchanged clothes with one of the troopers and walked out unmolested wearing the soldier's uniform.

Lord Cochrane remained at large for a fortnight and evaded pursuit until he presumed to enter the House of Commons where he found a seat upon the Treasury bench. While he was addressing the House and reading the documents connected with his own case, the marshal of the King's Bench, who had been notified, accompanied by several officers, walked into the House and proceeded to arrest his lordship, who immediately demanded the authority. He was told that it was the public proclamation offering a reward for his apprehension. Lord Cochrane demurred, violently resisted his capture, and something like a free fight occurred upon the floor of the House; eventually his lordship was overpowered and reconducted to the King's Bench. Mr. Jones, the marshal, no doubt a little unhappy at his temerity, humbly submitted himself to the Speaker, hoping he had not been guilty of disrespect, for if he was wrong it was from an error of judgment and due to no wish to offend the House. The matter was made the subject of some debate, but when referred to the Committee of Privilege, they considered that the case was quite novel and it did not appear to them that the privileges of the House had been violated or that there was any call for interference. The time remaining for the completion of the term of imprisonment Lord Cochrane spent in a conflict with the marshal as to his accommodation and general treatment in the prison, in which Mr. Jones was ultimately exonerated and Lord Cochrane admitted that he had no complaint to make of the marshal, or of any of the officers of the prison.

Lord Dundonald's later career is in a sense outside of my subject, but it was distinguished by many brave exploits and his capacity as a naval leader was usefully exercised in the service of another country than his own; his merits were recognised by the Emperor of Brazil, who gave him the

command of the Brazilian fleet and created him a marquis. Through his able leadership the South American colonies of Spain gained their freedom and he assisted largely in the Greek war of independence. At length in 1830, tardy justice was done him and Earl Grey, now in office, believing him to have been the victim of a cruel and unjust persecution, restored him to his rank in the British navy. He was granted the Grand Cross of the Bath and appointed to a command, as an admiral. He was a man of strong character, remarkable for his inventive genius, a skilled and adventurous seaman, who won renown afloat although constantly opposed to forces superior to his own in numbers and metal. At the end of his life he enjoyed the sympathetic esteem of his fellow countrymen. His heirs were eventually granted compensation for the pay and allowances as a naval officer so long withheld from him, while under a cloud.

CHAPTER V

LIFE IN THE KING'S BENCH

Relations between debtor and creditor in England continue a disgrace—Abuses in procedure—Writs issued in error—Excessive costs the cause of prolonged detention—Processes irksome, very sweeping in their action and entailing disastrous consequences on many prisoners—Debtors' prisons and their purlieus centres of vicious life—Drunkenness, gaming, self-indulgence prevailed—The "Rules" enclosed an area swarming with idle, reckless, dissipated persons—A prisoner regularly drove the night coach from London to Birmingham—Many notable residents—Theodore Hook—Benjamin Robert Haydon, the painter—A scene in the King's Bench, "The Mock Election"—The Marshalsea—Death-place of Bishop Bonner—Prison described by John Howard and by Charles Dickens—Disappearance of the Marshalsea and the Fleet—Replaced by the Whitecross Street Prison, the last place of the kind.

THE relations between debtor and creditor in England continued to be a disgrace to any so-called free and enlightened country far into the nineteenth century. The procedure was full of abuses and the system in force subjected the debtor to great and manifest hardships without benefiting the creditor or securing him the repayment of his debt. It was customary to serve the debtor with a writ, which was returnable only in term time, and if issued between terms it could be evaded by giving bail to the sheriff. But if the debtor was a poor man, or without friends and therefore unable to procure bail, he paid in person and was taken off to prison. Here he might lie almost indefinitely waiting, hopelessly, for money from the skies to enable him to liquidate the claim or defend the action. Often enough the writ had been issued on no clear grounds; the debt may never have existed in fact and innocent persons were arrested upon the affidavits of scoundrels impelled by unworthy motives, which might be revenge or extortion. Not only was it often the case that the prisoner lay in prison until he discharged a debt he had never incurred, but even when the

claim was undoubted and for a small amount, the liability was soon swollen by the lawyers' costs amounting to three or four times the original debt. People were still detained who owed no more than three or four pounds which they could pay, until they could satisfy the attorneys for the costs of twenty and thirty pounds they did not really owe. "I, myself," says Colonel Hanger, "for a debt of four pounds, thirteen shillings, and for one of six pounds, sixteen shillings, have paid ten, twelve or fourteen pounds costs." Once caught in the meshes of the law it was not enough to pay the original debt, and the creditor, when he received it, could not release the debtor until the attorney's costs were liquidated. The records of the King's Bench show that hundreds of debtors who in the first instance owed no more than ten pounds were still detained for twice or three times the amount claimed by the attorneys.

As a natural result, the debtors' prisons, especially the King's Bench, were constantly crowded with persons of all classes and callings,—“Nobles and ignobles, parsons, lawyers, farmers, tradesmen, shopmen, colonels, captains, gamblers, horse-dealers, publicans and so forth.” The wives of many of these shared the fortunes and misfortunes of their husbands. It has been calculated that at times the population of the prison averaged eight hundred or a thousand individuals. This total was presently much reduced by the institution of a court for the relief of insolvent debtors, and the number was further kept down by a charitable society which used considerable sums collected for the extinction of small debts. Nevertheless numbers still languished within the walls in a state bordering upon utter destitution. Colonel Hanger testifies that out of 355 prisoners, he could with truth assert there were seldom fifty who had any regular means of subsistence. “I do not mean to say,” he continues, “that prisoners have been absolutely starved to death; but this I positively assert,—that numbers of the lower order, and many officers confined, some even for small debts under fifty pounds, who have served their country with gallantry and fidelity and have bled in her defence, have often gone a whole week with not above three or four meals; nay more, have frequently been destitute of a penny to buy them a roll of bread for breakfast.” The same difficulty as that already mentioned of obtaining the “groats” or creditor's allowance for food still obtained. It was greatly increased by legal technicalities, for it could only be sued for in term time and a debtor arrested in June when the term was over must wait to take action till November, five months that is to say,

during which he might starve and was wholly dependent upon the charity of generous fellow prisoners and others. Judgment on the case might still be prolonged until the following May, so that many gentlemen as well as others of superior stations in life had for successive days never known what it was to enjoy one good meal.^[6]

The perfectly regular payment of the “groats” (the allowance was really sixpence per diem) would not have gone far. “Will any man venture to assert,” asks Colonel Hanger, “that a man can live on such a stipend, for a sufficient quantity of bread and small beer to satisfy appetite and thirst cannot be purchased for that money.” The price of provisions in 1798 barely allowed the purchase of one pound of bread and one pint of porter per day for sixpence. “The felon in Newgate and the prisoner in the Penitentiary house, Cold Bath fields, for high crimes and misdemeanours against the State, whatever his sufferings, has one comfort—he knows not the pangs of hunger; but the gentleman, the citizen, the sailor or the soldier, who may have bled in their country’s defence, if oppressed by sinful poverty, that worst of crimes, is allowed only sixpence per day for all his wants, and has not even a bed or fire found him to rest his wearied limbs or warm his half-starved frame.”

The evils above described do not exhaust the sufferings that were inflicted upon debtors. It often happened that a writ was served and an arrest made at a distance from London. The man taken was carried to the county gaol and when the time came for surrender, after being bailed, he must perforce do so in London at the King’s Bench prison. And he must make the journey as best he could according to his means. Hanger quotes a case of an aged man, between seventy and eighty years, who trudged all the way from Cumberland and arrived at the prison barefooted and almost exhausted. He was, however, unprovided with the proper forms for surrender and was refused admittance until he had paid his fees in Chancery Lane, when at last he was received. Colonel Hanger, when in the King’s Bench, was removed to the Fleet on *habeas corpus* to meet a writ returnable there and was mulcted in further costs before he was allowed to go back to the King’s Bench.

Much more might be said in condemnation of the old system of imprisonment for debt, which was rightly characterised by a competent writer as “the curse and disgrace of England.” We have seen how in the earliest times it directly contravened the principles of constitutional

freedom, which forbade it for simple pecuniary obligations unaccompanied by fraud. It was extended alike to early youth and decrepit old age; a minor might be laid by the heels and an old man of ninety arrested on his dying bed. Until more humane laws were passed the boy prisoner might be confined *sine die*. Incarceration too often paralysed the bread winner; the prisoner was unable to earn wages for himself and his family, to his own great loss and a diminution of the wealth of the country.

The moral side of the question remains. Debtors' prisons and their purlieus were seething centres of vicious life. Idlers and dissolute persons congregated therein; drunkenness, gaming, dissipation of all kinds constantly prevailed. Dealers in contraband commodities traded without let or hindrance. Game was exposed for sale within the walls by unlicensed dealers without interference. These traders were prisoners, of course, who were lodged under fictitious arrests of their own contriving to facilitate their operations. "Tap-shops" and "whistling shops" for the illegal consumption of spirits were plentiful within the prison and were supplied under the very noses of the authorities by clandestine means. On one occasion, an inmate who had been a smuggler got in seventeen two-gallon tubs of brandy, which lay hidden in a friend's room till they could be distributed through the prison. The supplies on sale were so good that much custom was attracted from outside. It was calculated that at the "tap" or public bar room, three butts of porter were drawn daily to meet the demands of outsiders with a nice taste for beer. Amusements and games were continually in progress. Crowds came in to see the racquet players reputed the best in the metropolis; on festivals and holidays—Easter Monday, Whit Monday, Boxing Day—sports were held, such as racing and hopping in sacks and blind man's buff, the whole under the supervision of a clerk of the courts, Captain Christie, who was long a prisoner but married a rich wife and so at last gained his liberty.

The King's Bench, with its dependent "Rules," was like a modern Alsatia, swarming with idle, self-indulgent men living a dissipated life, spending recklessly the means that should have gone to the liquidation of their debts and which belonged really to their creditors. At one time they freely entered all taverns and theatres, but were presently restricted to one "Lowthorpes," in front of the Asylum for the Blind near the Obelisk in St. George's in the Fields. This limitation was due to Lord Chancellor Thurlow, who was annoyed by the trespass on his grounds of a number of "Rulers"

on their way to the Derby. No restriction was placed upon the movements of the "Rulers" provided they showed themselves once in every twenty-four hours. On the strength of this concession a prisoner, Mellor Hetherington, a famous whip, drove the night coach from London to Birmingham for a whole month, very much to the satisfaction of proprietor and passengers. The regular coachman had been taken ill and his temporary substitute comported himself so well that he would have been permanently appointed but that it was feared his creditors would interpose and impound his wages. This Mr. Hetherington, who began life with a substantial income inherited from his father, soon wasted his substance and found himself a prisoner in the Fleet from which he was transferred to the King's Bench, where he was long resident in the "State House," the large building close to the entrance or lobby of the prison at one time occupied by prisoners of State. He lived in great luxury and was allotted two rooms, but to enjoy their peaceable occupation he was always obliged to buy out the "chums" quartered on him. Some of these he employed as servants and assistants in his domestic arrangements and especially in the kitchen, for he was a lover of good cheer and had installed a kitchen range in one of the rooms he occupied. He entertained largely, and guests in great number gladly accepted his invitations. This Mr. Hetherington spent twenty years as a prisoner for debt either within the walls of the Fleet or the King's Bench, or enjoying the privileges of the "Rules." Finally he took advantage of the Act as it was called, and went through the court for the relief of insolvent debtors. He began life with a clear income of six hundred pounds a year and finished his career of wasteful self-indulgence without repaying a single sixpence to his creditors, who had so foolishly and so uselessly deprived him of his liberty.

To give a full and complete list of the many and varied characters that passed through the King's Bench would fill a great space, but some of those mentioned in contemporary records may be briefly referred to here. They belonged to all classes of society and often exhibited eccentric traits. One prisoner residing in the "Rules" belonged to the family of the Hydes, Earls of Clarendon, and he was never parted from the coffin which was ultimately to receive him. It was a fine coffin of solid oak, grown upon his own estate in Kent and hollowed out with a chisel. Its owner was in the habit of getting into the coffin at night and sleeping there "with great composure and serenity." Its weight was five hundred pounds and on one occasion when it was filled with punch it held upwards of forty-one gallons. John Palmer, the

actor, when a prisoner within the Rules in 1789 was committed to the Surrey gaol for accepting an engagement at the Royal Circus theatre, as acting manager at a salary of twenty pounds a week. This led, it is said (but the statement is at variance with that already given), to the prohibiting by Lord Chief Justice Kenyon of debtors to enter theatres.

Literature and the arts were constantly represented in the King's Bench. It was the home of William Combe, the author of "Dr. Syntax," a poem "written to cuts" as the saying is, or planned for a series of Rowlandson's drawings, which were forwarded to Combe when residing in the Rules. As Horace Smith tells us, "he was a ready writer of all work for the booksellers." Another notable resident was Theodore Hook, who never cleared himself from his liability to the Crown for the moneys that went astray when he was acting as treasurer in the colony of Mauritius. There was a deficit in his accounts of a sum of twelve thousand pounds for which he was held responsible, although there was never any charge of dishonesty and the law officers said no grounds existed for criminal proceedings. He was, however, arrested after his arrival in England and passed from a sponging house into the Rules of the King's Bench, from which he was soon set at liberty, but with his liability hanging like a millstone round his neck till the day of his death. Theodore Hook, the most famous of humourists, was the inventor of a witticism, now a time honoured "chestnut." On his passage home from Mauritius, he met at Saint Helena the newly appointed governor of the Cape, Lord Charles Somerset, who knew nothing of the arrest. Lord Charles said, "I hope you are not going home for your health, Mr. Hook." "Why, why, yes," replied Theodore, "I am sorry to say there is something wrong with my chest." Theodore Hook was already associated with the once famous weekly newspaper *John Bull*, which was a thorn in the side of the Whigs then in power. The proprietors of the paper, Messrs. Weaver, Arrowsmith and Shackell, were prosecuted for libel of some great personages, found guilty, heavily fined and committed to the King's Bench. Persons of lesser note were Jimmy Bearcroft, a hanger on of the Mr. Hetherington, Captain Garth, Lady Hydeparker, "Pea-green" Hayne, one or two baronets, Lord Glentworth, General Bacon and Miss Gordon, who sold newspapers and kept a circulating library in the King's Bench.

Miss Gordon's story deserves a word or two as illustrating the hardships entailed upon the impecunious in those days. She inherited a decent

property from her father which was, however, impounded as security for a loan of one hundred pounds advanced by a friend; she proposed to pay off the loan, but the title deeds could not be found and the debt ran on until the lender died, when the one hundred pounds was claimed from Miss Gordon with the back interest, the whole amounting now to nearly a thousand pounds. She was arrested and committed to prison where she remained for nearly twenty years, harassed by the law's delays, always on the verge of starvation, but eking out a bare existence by her traffic in books and newspapers.

The name of Benjamin Robert Haydon, a British painter, deservedly entitled to be called a great painter, but greater still on account of his misfortunes, is intimately associated with the King's Bench prison. His pictures, mainly historical and Biblical, generally of vast size, fine in conception and admirably executed, never quite appealed to the public taste and in the end were but little appreciated.

Haydon's personality gained him many enemies; he was conceited, self-opinionated, with an exaggerated idea of his own merits, and he very unwisely entered into conflict with the Royal Academy, the feud lasting to the end of his life. Yet he long found a few admiring patrons and the support and countenance of numbers of warm friends. He was on the most intimate terms with the leaders of light and learning of his day. Sir Walter Scott warmly appreciated him; Wordsworth addressed many sonnets to his genius; Keats and he were like brothers. He spent much of his spare time with Charles Lamb, and lived on equal terms with the most eminent members of his own profession, Sir David Wilkie, Northcote, Landseer, Canova and Chantrey. Some of the greatest personages in the land took him by the hand, gave him orders for pictures and welcomed him gladly to their houses. Sir Robert Peel was long his good friend and the Duke of Wellington encouraged him and wrote him many characteristic letters.

With all his undoubted talents, his unflagging industry and ceaseless powers for work, Haydon was cursed with one irremediable defect, an utter incapacity for managing his own affairs. He was no spendthrift or wastrel. He could have lived well within the income he earned, not a bad one in those days, if he had not steadfastly forestalled it and so reduced it sometimes by a half or a third. Very early in his career he got behind-hand in his payments; no doubt in the first instance by the unpunctuality of those who owed him money. He was continually driven to pay his way by

borrowing at extravagant rates, by giving bills for sums far in excess of value received and by mortgaging his pictures before they were finished. His hand to mouth devices might give him immediate relief but it was by incurring future liabilities of a much more onerous kind. His embarrassments were intensified by the existing laws and the powers given to his creditors over his freedom and independence. He was essentially a good man struggling with adversity, whom Tennyson tells us, “is a sight for the gods,” and one’s heart bleeds for him under his constant sufferings as pathetically depicted in his diaries.

He was already famous and had painted some of his earliest and best pictures. The “Entry of Christ into Jerusalem” was finished, his “Lazarus Raised from the Dead” was well advanced, and he was little more than five and twenty years of age when he was arrested for debt. He writes, that after having passed through every species of want and difficulty often without a shilling, without ever being trusted, a man to whom he had paid three hundred pounds arrested him out of pique for the balance. His lawyers extricated him but within a year he enters in his diary, “I am without a shilling in the world and with a large picture before me not half done.” A month later he was arrested by his artists’ colourman with whom he had dealt for fifteen years. He again escaped, but as the months passed he was harassed with letters for money every hour with repeated threatenings of arrest staved off by friendly assistance from Canova, Sir Walter Scott and Mr. Coutts. Others, Lord Mulgrave, Sir Edward Codrington, Brougham, Barnes of the *Times* and Miss Mitford were all prompt and helpful. Yet the next year he dated an entry, “Well, I am in prison,” from the King’s Bench. He decided to go through the court and was discharged without opposition. He was free again and the future before him was clear. “He must live”—I am quoting Tom Taylor—“He must live first of all and if possible without repeating that untoward, that living by credit and borrowing on no better security than high hopes and honest intentions which had ended in the King’s Bench and insolvency.” Another year and the entry appears, “Passed in desponding on the future, not a shilling in the world.” Later on, “Obliged to pawn my other lay figure, the female, for five pounds,—cost me thirty.” On the 12th January, 1827, an execution was in the house and he was saved only by the prompt assistance of a friend, yet he was arrested and cleared by a public subscription, after spending a month in the prison. But this detention brought him a great opportunity; he saw the “Mock Election,” a

scene which, he says, “contrasted as it was with sorrow and prison walls, beggars all description ... never was such an excellent burlesque.... I saw the whole from beginning to end. I was resolved to paint it for I thought it the finest subject for humour and pathos on earth ... day by day the subject continued in my mind and as soon as I was restored to my family and pursuits I returned to the prison and sketched all the heads of the leading actors. Began the picture directly and I finished it in four months.” This picture hung fire for a time, but finally George IV sent to say he wished to see it and at once bought it for five hundred guineas. It may now be seen in the Royal Galleries at Windsor Castle. The picture portrays a curious episode in contemporary prison life painted with great fidelity and deep appreciation of the contrasted humour and pathos of the scene. The principal personages are drawn to the life and from life, for the painter went again and again to the prison to find his models. Haydon’s own account brings the picture before us:

“In the centre is the High Sheriff with burlesque elegance of manner begging one of the candidates not to break the peace or be irritated at the success of his rival.... This intended member is dressed in green with an oil silk cap and a red bow, the colours of his party. The gentleman who actually filled this character is, I have heard, a man of considerable fortune in Ireland.... Opposite and attired in the quilt of his bed and in a yellow turban is the other member who actually sat in the House two years and who by experience in the finesse of elections was the moving spring in all the proceedings in this picture. There is the Lord Mayor with solemn gravity, holding a white wand with a blue and yellow bow and a sash of the same colours. He was a third candidate. Immediately below in a white jacket is the head poll clerk swearing in three burgesses before they are allowed to vote.... The first, a dandy of the very first fashion, just imprisoned, with a fifty-guinea pipe in his right hand, a diamond ring on his finger, dressed in a yellow silk dressing gown, velvet cap and red morocco slippers; on his left stands an exquisite, who has been imprisoned three years, smoking a three-penny cigar, with a hole at his elbow and his toes on the ground; and the third is one of those characters of middle age and careless dissipation visible in all scenes of this description, dressed in a blue jacket and green cap. There are several other groups. In one a man of family sits sipping his claret, and a soldier who distinguished himself in Spain, imprisoned in early life for running away with a ward in chancery. Embarrassment followed and

nine years of confinement have rendered him reckless and melancholy. He has one of the most tremendous heads I ever saw, something between Byron and Bonaparte. In the picture I have made him sit at ease with a companion while champagne bottles, a dice box, dice, cards, a racket bat and ball upon the ground announce his present habits. Leaning on him, and half terrified at the mock threats of the little red-nosed head constable with a mace, is an interesting girl attached to him in his reverses, and over his head, clinging to the top of the pump, is an elector intoxicated and huzzaing.

“A third group is composed of a good family in affliction, the wife devoted, clinging to her husband; the eldest boy with the gaiety of a child is cheering the others; behind is the old nurse sobbing over the baby five weeks old; while the husband, virtuous and in trouble, is contemplating the merry electors with pity and pain. The father and mother are in mourning for the loss of their second boy.... The father’s hand holds a paper, and on it is written ‘debt £26.10., costs £157.10. Treachery, Squeeze & Co., Thieves Inn.’ ” Upon the whole description Haydon comments, “What a set of beings are assembled in that extraordinary place, that temple of debauchery.”

Another description given in Haydon’s diary reveals a more painful side of prison life. It is an account of a Sunday in the King’s Bench. “The day passed in all the buzz, blasphemy, hum, noise and confusion of a prison. Thoughtless creatures! My room was close to theirs. Such language! Such jokes! Good Heavens! I had read prayers to myself in the morning, and prayed with the utmost sincerity for my dearest Mary and children, and to hear those poor fellows, utterly indifferent as it were, was really distressing to one’s feelings. One of them had mixed up an enormous tumbler of mulled wine crusted with nutmeg and as it passed round some one halloed out, ‘Sacrament Sunday, gentlemen!’ Some roared with laughter, some affected to laugh and he who was drinking pretended to sneer; but he was awfully annoyed. And then there was a dead silence, as if the blasphemy had recalled them to their senses. After an occasional joke or so, one, with real feeling, began to hum the 100th Psalm, not in joke, but to expiate his previous conduct, for neither he nor any one laughed then, but seemed to think it too serious a subject.”

This was in 1830 and in that same year he records in his diary: “This perpetual pauperism will in the end destroy my mind. I look round for help with a feeling of despair that is quite dreadful. At this moment I have a sick

house without a shilling for the common necessities of life. This is no exaggeration." The burden of his appeal to the Directors of the British Gallery or Institution for encouragement is couched in the same terms. He speaks of "his present struggling condition with eight children and nothing on earth left him in property but what he is clothed with, after twenty-six years of intense and ardent devotion to painting," and was vouchsafed help to the amount of £50. Year after year he struggled with indomitable courage to keep the wolf from the door. He was never at any time able to cope with current expenses or to face ever pressing liabilities. He struck at new lines in art, tried portrait painting, produced pictures of famous men at great epochs in their lives, "Wellington on the Field of Waterloo," "Napoleon Musing at St. Helena," to be engraved for general sale. He gave public exhibitions of his own most popular works, canvassed on every side for new commissions, tried fresco painting and the production of cartoons. Only in one direction did he make money, by lecturing on art, for which he had a natural gift, and for a time, but only for a time, he drew crowded audiences. He earned bread thus, but no more, and his necessities caused never ending pressure, still relieved constantly by the aid of the pawnbroker, or the money lender at usurious rates. The sheriff's officers again carried him off to "that blessed refuge for the miserable—the Bench," which, as ever, was rendered hideous by the levity of the vicious and the thoughtless. "Gambling, swearing and drinking went on as usual," he relates, "and last night when I was musing on life and death, the bloods and blackguards were singing duets outside my door at midnight."

Haydon fought on to the last, but the end was very near when he speaks in 1842 of "thirty-eight years of bitter suffering, incessant industry, undaunted perseverance, four imprisonments, three ruins and five petitions to Parliament, never letting the subject of State support for national art rest." He chafed, not without reason, that at a public inquiry then in progress, neither Chairman nor Committee, witnesses nor pupils gave any sign that they were conscious that such a creature as Haydon existed.

"After this," says Taylor, "the clouds settled down upon him and grew darker and more dense every month of his few remaining years of life. It is painful to follow day by day his struggles with disappointment, despondency and embarrassment." He was vexed and harassed more and more, misfortunes multiplied, no fresh venture prospered and his last, the exhibition of his own cartoons, was a dismal failure. No one came to see

them, the receipts on Easter day were beggarly; he took little more than a pound, and next door thousands and thousands thronged to see Tom Thumb. The future had never looked so black; “the butcher, the baker, the tax collector, the landlord gave louder knocks than before.” At length, he says, he “came home in excruciating anxiety,” not able to raise the money for the rent of the Egyptian Hall where his cartoons were exhibited. Fresh executions were to be put in and he says, “I felt my heart sink, my brain confused, I foresaw my family’s misery and a prison!” The desperate struggle was nearly over; he held on with but small hope of deliverance and at last gave up in despair. He entered his painting room for the last time and there shot himself on the 22nd of June, 1846, “when temporarily of unsound mind” as the coroner’s inquest charitably decided.

The third great prison of old London, but which survived down to the middle of the last century, was the Marshalsea, which stood originally in the High Street, Southwark, and a house now numbered 119 was the site of the chapel. But it was removed by and by to other premises nearer the St. George’s church that stands at the corner of the High St. Borough. This prison derived its name from the Marshals of England to whom it appertained and whose jurisdiction extended over the King’s household. The royal servants were arraigned in the Marshal’s Court and committed when in fault to the Marshalsea prison. It also received debtors, arrested for even trifling sums, within a circuit of twelve miles from Westminster Palace, and was especially used for the confinement of persons awaiting trial. No exact record is preserved of its first erection. The earliest account is that of a riot by sailors in 1377. A man belonging to the fleet commanded by the Duke of Lancaster was slain by a gentleman imprisoned in the Marshalsea, whereupon the men-of-war’s men conceiving that the murderer was sheltered by great folk broke into the prison, took him and hanged him on a gallows near the gaol, and returned in triumph to their ships with trumpets sounding. The prison was again attacked four years later by the insurgents headed by Wat Tyler and at that time the marshal lost his life. On this occasion the marshal of the King’s Bench adjoining, Sir John Imworth, was seized and beheaded. Much importance attached to the prison in the reigns of Henry VIII, Mary and Elizabeth, when it was used for State purposes. Bishop Bonner, the last Roman Catholic bishop of London, was sent to it, when suspended by Queen Elizabeth. The story runs that he preserved a grim humour despite his misfortunes. When a man greeted him

with the insulting address, "Good morrow Bishop Quondam," the bishop promptly retorted, "Farewell, Knave Semper." When on his way to the prison, some one called out, "The Lord confound thee, or else turn thy heart." "The Lord send thee to keep thy breath to cool thy porridge," was the defiant reply. Bonner died in the prison in 1569 after a confinement of ten years. Poets, pamphleteers and political satirists were often committed to the Marshalsea and among them George Wither, Christopher Brooke and many Puritan martyrs. After the Restoration, as John Evelyn tells us, Colonel Culpeper was sent there as the aggressor in an affray with "my lord of Devonshire," when the latter stood very near His Majesty's bed-chamber. Some hot words passed between them and Lord Devonshire gave Culpeper the lie. Upon which the colonel "struck him a box on the ear," but the lord returned it and "felled him." They were soon parted; Culpeper was seized and carried by the King's order before the Board of Green Cloth where he got his deserts by being confined in the Marshalsea.

The Marshalsea did not escape reprehension for great abuses practised at the time when the brutal administration of the Fleet was called in question. We get a glimpse of it fifty years later in John Howard's first report. He describes the prison as too small and greatly out of repair; "an old irregular building (rather several buildings) in a spacious yard. There are, in the whole, nearly sixty rooms; and yet only six of them now left for Common Side debtors. Of the other rooms, five are let to a man who is not a prisoner; in one of them he keeps a chandler's shop; in two he lives with his family; the other two he lets to prisoners. Four rooms, the Oaks, are for women. They are too few for the number and the more modest women complain of the bad company in which they are confined. There are above forty rooms for men on the Master's Side, in which are about sixty beds; yet many prisoners have no beds nor any place to sleep in but the chapel and the tap-room."

This account tallies exactly with another later and more graphic from the hand of a great literary master, the same who has brought the Fleet prison so vividly before us. Charles Dickens knew the Marshalsea by heart for he had lived there with his father when the latter was detained there as a debtor. Dickens writes: "It was an oblong pile of barrack building, partitioned into squalid houses standing back to back, so that there were no back rooms; environed by a narrow paved yard, hemmed in by high walls duly spiked at top. Itself a close and confined prison for debtors, it contained within it a

much closer and more confined jail for smugglers. Offenders against the revenue laws and defaulters to excise or customs, who had incurred fines which they were unable to pay, were supposed to be incarcerated behind an iron-plated door, closing up a second prison, consisting of a strong cell or two, and a blind alley some yard and a half wide, which formed the mysterious termination of the very limited skittle-ground in which the Marshalsea debtors bowled down their troubles.”

Here is another picture, the scene at the gate in the early morning when the prison is first opened: “There was a string of people already straggling in, whom it was not difficult to identify as the nondescript messengers, go-betweens and errand-bearers of the place. Some of them had been lounging in the rain until the gate should open; others, who had timed their arrival with greater nicety, were coming up now and passing in with damp whitey-brown paper bags from the grocers, loaves of bread, lumps of butter, eggs, milk and the like. The shabbiness of these attendants upon shabbiness, the poverty of these insolvent waiters upon insolvency, was a sight to see. Such threadbare coats and trousers, such fusty gowns and shawls, such squashed hats and bonnets, such boots and shoes, such umbrellas and walking sticks, never were seen in Rag Fair. All of them wore the cast-off clothes of other men and women; were made up of patches and pieces of other people’s individuality and had no sartorial existence of their own proper. Their walk was the walk of a race apart. They had a peculiar way of doggedly slinking round the corner as if they were eternally going to the pawnbroker’s. When they coughed, they coughed like people accustomed to be forgotten on door-steps and in draughty passages, waiting for answers to letters in faded ink, which gave the recipients of those manuscripts great mental disturbance and no satisfaction. As they eyed the stranger in passing, they eyed him with borrowing eyes—hungry, sharp, speculative as to his softness if they were accredited to him, and the likelihood of his standing something handsome. Mendacity on commission stooped in their high shoulders, shambled in their unsteady legs, buttoned and pinned and darned and dragged their clothes, frayed their button-holes, leaked out of their figures in dirty little ends of tape and issued from their mouths in alcoholic breathings.”

The Marshalsea escaped the Lord George Gordon rioters and it lived on, more and more eclipsed by its more ambitious neighbour and with uses more and more curtailed, especially when a new debtors’ prison, that of

Whitecross Street, was planned in 1813. It was condemned and closed in 1842, when the prisoners remaining for any length of term were transferred to the King's Bench. It was soon afterward pulled down and the last vestiges of it are preserved to us by Charles Dickens who visited it in 1856 in the course of demolition. He tells his friend John Forster of this visit: —“Went to the Borough yesterday morning before going to Gad's Hill to see if I could find any ruins of the Marshalsea. Found a great part of the original building, now 'Marshalsea Place.' I found the rooms that had been in my mind's eye in the story.... There is a room there still standing that I think of taking. It is the room through which the ever memorable signers of Captain Porter's petition filed off in my boyhood. The spikes are gone and the wall is lowered; and anybody can go out now who likes to go and is not bed-ridden.”

CHAPTER VI

ENGLISH PRISONS OF WAR

Earliest mention by John Howard in 1756 when taken by a French privateer and lodged in the castle of Brest—Twenty-five years later again visits the French War Prisons and animadverts upon what he saw—Extends his inspection to British war prisons—Old war-ships or “hulks” brought into use in England—Many objections—Large prison establishments erected inland—Norman Cross in Huntingdonshire which accommodated five thousand—Another large prison designed in 1806 on Dartmoor—Opened in 1808—Occupied by members of many nationalities and of all classes—The lowest and most degraded, the “Romans,” akin to the “rafalés” of the hulks—Daily life at Dartmoor—Incurable passion for gambling—Curious games of chance—Duelling—Criminal pursuits not unknown—Coiners and forgers—Arrival of American war prisoners.

THE first extensive use of places for the detention of prisoners of war appears to have been in the middle of the eighteenth century, when Europe was continually harassed by conflicts among the nations and when decimation by a general massacre of captives taken under the fortune of war was no longer permissible. Of the treatment accorded to these prisoners, the earliest authentic record is to be found under John Howard’s hand. In 1756 the great philanthropist took passage in a Lisbon packet bent upon making a tour of Portugal, but his ship was captured en route by a French privateer and he was carried with his companions into Brest and subjected to extreme hardship and privation before he reached that port. He was entirely deprived of food and drink; for forty hours not one drop of water passed his lips and hardly a morsel of food. “In the castle at Brest,” he tells us, “I lay six nights upon straw, and observing how cruelly my countrymen were used there, and at Morlaix, whither I was carried next; during the two months I was at Carhaix upon parole, I corresponded with the English prisoners at Brest, Morlaix and Dinnan: at the last of those towns were several of our ship’s

crew and my servant. I had sufficient evidence of their being treated with such barbarity that many hundreds had perished and that thirty-six were buried in a hole at Dinnan in one day. When I came to England, still on parole, I made known to the commissioners of sick and wounded seamen the sundry particulars, which gained their attention and thanks. Remonstrance was made to the French court; our sailors had redress, and those that were in the three prisons mentioned above were brought home in the first cartel ships. A lady from Ireland, who married in France, had bequeathed in trust with the magistrates of St. Malo, sundry charities; one of which was a penny a day to every English prisoner of war in Dinnan. This was duly paid; and saved the lives of many brave and useful men. Perhaps what I suffered on this occasion, increased my sympathy with the unhappy people whose case is the subject of this book.”

Five and twenty years later when Howard was extending his visitation through the Continent he found many more English prisoners of war in French gaols. In Dunkirk 133 prisoners were confined in five rooms; captains, mates, passengers and common sailors, all crowded together, lying on straw with one coverlet to every three persons. In three other rooms there were thirteen accommodated in a better manner, because they were “ransomers” or persons held as security for a captured ship which was to be ransomed at a certain sum. These prisoners exercised in a very small courtyard and they were kept very short of water, but fairly well fed,—“The bread, beer and soup were good and the beef tolerable;” the prison was well governed under rules made by the King of France, which prescribed certain pains and penalties and accorded certain privileges. If any one attempted escape and was retaken he was “stinted to half his pittance of food” until he had repaid the expenses caused by his pursuit and recapture. If the place was damaged, the expense of repairs was paid out of the food of those found guilty of the infringement. The prisoners were at liberty to appoint a committee of three or five of themselves to supervise the issue of food and, if they thought necessary, complain of its quality.

In the common prison at Calais, Howard found great overcrowding and many of the prisoners here and elsewhere had no change of linen, and some were almost entirely destitute of clothes. Howard contrasted the treatment of French prisoners in England with the foregoing and generally in favour of the English. In the Mill prison near Plymouth, however, there was great overcrowding and very inferior food, but this was reformed in the newer

edifice erected. The number detained here rose at one time to a very high figure, 10,352, comprising four different nationalities, American, French, Spanish and Dutch, the French predominating in the proportion of two thirds. A new prison had been erected at Bristol, built on rising ground three miles from the city. Although new the building was imperfect; there were no chimneys and the wards were dirty, never being washed. Over a thousand Frenchmen were in the Winchester prison, who lay all day indolently in their hammocks and were provided with no work. Several prisoners were confined in the dark hole, sentenced to it for forty days, on half allowance, to meet the sum expended in payment for their recapture after escape, on the same principle as that which obtained in France.

Howard condemned another prison at Forton near Gosport, where the rations were bad and the bread short weight. He says: "The straw by long use was turned to dust in the mattresses and many of them, here and in other places, had been emptied to clear them of vermin. The prisons at Pembroke were very unsatisfactory and the prisoners in great destitution; most of them had no shoes or stockings and some were also without shirts; they had no victualling tables, nor did they know what was their allowance; they lay in general on the boards without straw for there were but four hammocks in two rooms. Here was a courtyard but no water or sewer." At Liverpool the French and Spanish prisoners were kept apart because of the animosities between the two nations; here and wherever French prisoners were confined, a money allowance was made to all prisoners and regularly paid. "There was besides a supply from the same court of clothes, linen and shoes to those who were destitute of these articles, a noble and exemplary provision much to the honour of those who conducted public affairs in France." At this same time a bounty was paid by the English government to English prisoners in France.

War prisoners were also lodged in Scotch and Irish prisons, the first fairly well, the latter indifferently. In all these prisons above mentioned, there was a proportion of Americans, whose situation was much the same as that of the French. In Pembroke prison they were without shoes and stockings, and they lay on straw which was unchanged for six or seven weeks at a time. As the eighteenth century drew to its close and the war was waged with increasing severity, more and more prisoners fell into the hands of the opposing forces. The star of Napoleon was now in the ascendant and while all Europe submitted to his conquering hand, England still stoutly

maintained the combat by sea. The supremacy of the British navy, never really in doubt, was conclusively established by the victory of Trafalgar. French warships were continually captured and their crews constantly passed on to swell the total in war prisons. It became a matter of some difficulty to make proper provision for their reception and safe custody. In the earlier years the floating prisons, the old war ships, long disused, were largely utilised and great numbers of prisoners were kept on board these hulks, which were moored in harbours and river estuaries on our southern coast. The system was open to serious objection. To keep great masses of men disarmed, it is true, but distinctly hostile, and at all times potential foes, in the very heart of the kingdom within easy reach of our naval arsenals was always a source of keen disquietude. The prisoners were constantly turbulent, ripe for mutiny and ready to break into excesses. Thus a number on board the hulks at the Hamoaze managed to set fire to their ships hoping to escape in the confusion; others, again, cut through bulkheads and decks, seized boats and made for the shore, bent upon hostile attack. As the best security against these dangers, it was decided to create one or more large prison establishments inland, at some comparatively isolated spot, at a distance from any large town. Of these the principal were at Norman Cross and Dartmoor.

Norman Cross is in the parish of Yaxley, in the county of Huntingdon near that grand old thoroughfare of England, the Great North Road, along which coaches might be driven four abreast. In one corner was a large piece of pasture land, some forty acres in extent which the Government purchased in 1796, to be utilised in the erection of barracks for prisoners of war. The situation was exceedingly healthy, being at the highest point of the road sloping up for a mile and a half from what was then Whittlesea Mere. It was not too near the sea to make escape easy, yet near enough to Yarmouth, King's Lynn and Wisbeach to facilitate the landing and transport of prisoners to their destination.

The prison consisted of sixteen large buildings of wood, very long and lofty, each two stories high, placed at the end of four rectangular pieces of land (four blocks in each), nearly in the centre of the forty acre field, and occupying altogether some fifteen acres. Each rectangular block was separated from the others and was surrounded by very high and strong palisades. They were placed symmetrically round a circular block-house, mounting guns which commanded every one of the sixteen buildings as

well as the ground surrounding them. The establishment provided accommodation for five thousand prisoners and that number was frequently exceeded. Besides these central buildings, which may be called the prison proper, many others were scattered about the enclosures, intended for various purposes, such as kitchens, bakehouses, guard-rooms, turnkeys' lodges, and more important than all to the safe custody of the prisoners, two large wooden barracks like each other, one at the east and the other at the west of the whole enclosure, for the accommodation of two regiments of infantry that formed the garrison.

The English officers were quartered in a large wooden house close to the road, towards the southeast corner of the enclosure and close to the house of the commandant. This last was the only building of brick in the whole place; and remains to this day together with the officers' mess room and the house where they were quartered, now cased with brick. It is said that five hundred hands were employed in the construction of these buildings, and the work was steadily pressed forward toward completion. The prison possessed many natural advantages; a good soil with an abundant water supply and salubrious air. The wells were of considerable depth and yielded excellent water. In passing now along the Peterborough Road, some of these old wells may be recognised by the boards which protect them, being still in use for the cattle grazing peacefully on the old prison site.

The discipline maintained at Norman Cross was strict. "Lights out" sounded at 9 P. M., when all prisoners went into their hammocks, sentries were posted, and pickets patrolling made the round every half hour. No parole was given as it was extended only to officers residing in other parts of the United Kingdom. The rations issued were not excessive and consisted of one pound of bread, half a pound of beef with vegetables for five days in the week, and on the two remaining *maigre* days, Wednesday and Friday, a pound of salt cod or herring was substituted for the beef. Ale and wine could be purchased at the canteen. A market was also held within the prison enclosure for two hours every morning, when, as at Dartmoor, goods were bought and sold. The neighbours brought in supplies of food and necessities and carried off articles manufactured by the prisoners in which they displayed much ingenuity and industry. These clever French fingers produced models of ships exact in the minutest details, a model of the west front of Peterborough Cathedral in plaited straw, many models of the death-dealing guillotine, and a great variety of boxes, fire screens, dressing cases,

tea caddies, watch-stands, and crucifixes. They made money and escaped the greatest evil, the unrest that follows enforced idleness.

They were once on the eve of mutiny. A spirit of general insubordination grew among them, born of the cheerless monotony of their lives and their despairing hopelessness. The governor was harsh and unsympathetic. Mutiny was imminent, fostered by the severity of his iron rule. The presence of a masterful and intractable soul, a man who had been a revolutionary, supplied the ringleader and a conspiracy was quickly organised. One morning a red flag was hoisted on the principal barracks and the malcontents, greatly excited, filled the yards with loud shouts and threatening gestures. The commandant, a Major Kelley, promptly turned out the troops, for the most part militia, surrounded the enclosure and prepared to take summary measures. The guns of the central block house commanded all parts of the interior and he was urged to fire into all the yards, by way of warning, and follow it up by marching strong bodies of infantry inside to shoot down all who did not forthwith retire into their barracks. Meanwhile a mounted messenger was despatched to Peterborough and soon returned with several troops of yeomanry. The tumult still continued within the prison, mixed with the sounds of heavy blows aimed at the palisade. The prisoners meant to break through and succeeded at one point, where they were received at the point of the bayonet and driven back under a heavy fire. Some got through, however; nine got clear away and were never recaptured; others were caught in the next few days. This collision and the stern action of the authorities crushed the mutiny which was never renewed and the further history of Norman Cross was uneventful. The prison was completely emptied in 1814 after Napoleon's abdication at Fontainebleau.

It will be seen further on how the great multitude of war prisoners in England (nearly fifty thousand) were located throughout the country. A large contingent (six thousand) was kept constantly at Norman Cross; nearly ten thousand were in the neighbourhood of Portsmouth, at the Forton prison and in the hulks; over five thousand were at Portchester; more than four thousand at Stapleton prison near Bristol, and twenty-five hundred in Edinburgh between the castle and Valleyfield. A very large number were confined in the far off western wilds of Dartmoor where a great war prison was constructed at Princetown in 1806.

The foundation stone of the Dartmoor prison was laid on the twentieth of March in 1806, by Sir Thomas Tyrwhitt, Lord Warden of the stannaries, the

chief official of the Duchy of Cornwall, in other words, the representative of the proprietor and Lord Paramount, H. R. H., the Prince of Wales. The site was selected by a commissioner of the Transport Board, the supreme authority in the war prison department, the ground of preference being that “water was plentiful and excellent, the soil gravel, peat for fuel abundant, with convenient access to the high road and an abundant supply of granite for building.” The Prince of Wales (George IV) gave as many acres as were required by the Board so that the possibility of a garden for vegetables was an additional consideration which was likely to tend to the health and comfort of the



Princetown Prison at Dartmoor

The great war prison of Princetown on the wilds of Dartmoor was erected in 1806. The American prisoners were held here, during the War of 1812, and among them was a large contingent of colored men. At this time the prison held war prisoners from many countries, Frenchmen, Spaniards, Portuguese, Italians, Swiss, Germans, Poles, Swedes, Dutchmen, and Orientals.

prisoners. The general plan of the new buildings consisted of a series of stone blocks radiating from a central point. Each block was of three stories, two of them intended for long sleeping rooms, the third or top story being used for a living room during the day and for exercise when the weather, often inclement, forbade it in the open air. The floorings of rooms and passages resembled those of a ship and were made of hard timbers with caulked seams. These blocks or main buildings, seven in number, were enclosed at a distance of forty feet by a circular line of palisading, composed of stout iron bars with sharp points. As a further obstacle were two granite walls fourteen feet high and twenty two feet apart, and around

the whole exterior ran a military road on which were erected at intervals high stages overlooking the yards, for the sentries, always on duty.

The original edifice and the boundary walls cost about £130,000 and were completed in December, 1808. The several buildings were allotted as far as possible to the various nationalities of which there were many, including representatives of almost every European country, bearing witness to the extent and diversity of the empire over which Napoleon ruled. There were Frenchmen, Spaniards, Portuguese, Italians, Swiss, Germans, Poles, Swedes, Dutchmen, and Orientals in the service of Holland, which was then closely allied to France, some of them Malays and Chinese. Later on a large influx of American prisoners swelled the total and among them as many as a thousand coloured people, who, in deference to the strong national prejudice, were kept entirely separate and always restricted to a distinct block, that known as Number Four. All sorts and conditions of men were included in this heterogeneous collection which amounted at one time to ten thousand souls, members of every conceivable trade and profession. Soldiers and sailors were in the majority, of course, and the crews of merchant ships taken as prizes were very numerous; there were artists of every category, painters and actors, literary men and men of scientific pursuits, and many who had been priests but had left the church in the troublous times. The permanent garrison to overawe this despairing multitude so easily intimidated, constantly discontented and quick to rise into insubordination, was seldom more than a single regiment of militia or line serving practically on a war footing, with an army of guards, patrol and pickets, forever on duty and ready to turn out at a moment's notice to quell disturbances, give chase to fugitives and hunt them down to the utmost limits of the moor.

There was an aristocracy of the prison; one of its blocks, to which the French inmates gave the name of "*le petit cautionnement*" and which the Americans called "the Commodore," was set aside for the officers of merchant ships, state officers who had broken parole and had been retaken, and many of those (among them a negro general) attached to the expedition against San Domingo under General Rochambeau, in 1803. These West Indian officers had in their prison an excellent military band, which was permitted to play daily.

As soon as the prisons were filled the French of their own accord proceeded to organise a constitution. First of all, the inhabitants of each

prison elected a president, and then each separate apartment chose its own commissary who was to exercise authority under the former. The suffrage was universal and the election by ballot. As a necessary consequence bribery and corruption were altogether banished from this retreat of equality and fraternity. The authority of the presidents and commissaries extended to every point on which it could possibly be exercised. They were at once magistrates, judges and policemen, and sometimes had to carry their own judicial sentences into execution. On one occasion the cooks of a certain ward were condemned to death by the president and the commissary because, unfortunately, a number of rats were found boiled in the soup. They were respited, however, on making a sufficient apology and laying the crime of the unhappy pottage to the door of the perfidious British guard. At another time a prisoner convicted of having stolen a shirt, was deprived of his political privileges, declared incapable of voting at any elections, and finally sent to Coventry for a period of six months. He was taken to the hospital and died there of "*langueur*," a disease common enough in the place, a sort of loss of hope and fatal fading away. We will add that all offenders did not escape so easily as the cooks. It is known that very many murders,—judicial or otherwise,—took place within the prisons. Among their inmates were men well acquainted with various methods of secret despatch, so that the judges of the Dartmoor *Vehm-Gericht* had no difficulty in finding officers who could carry out their sentences with scarcely a mark of external violence.

The prisoners were self-arranged under the following heads:—

"The Lords:" These were the richer prisoners, who received regular supplies from home, and carried on a traffic within the walls, making their own purchases at the grating of the market square. They had from sixty to eighty shops in each prison, where they sold tobacco, thread, soap, coffee, etc.

"The Labourers:" Those who worked at different trades, thereby supplying themselves with the means of procuring something more than the ordinary prison comforts.

"The Indifferents:" Those who did nothing, but resigned themselves to the tender mercies of the English government.

"The Minables:" Gamblers who were ready to sell their last shirt to satisfy their love of play.

“The Kaiserlichs:” Gamblers like the Minables, but who had attained an utter obliviousness to human cares and necessities. When the annual supply of clothing was distributed—a pair of trousers, a yellow jacket marked with black letters, a shirt, and a pair of shoes—they at once sold their allotments to the highest bidder and went all the rest of the year barefoot and shirtless.

“The Romans:” The lowest class of all; so called because they occupied the highest story of each prison, called the “capitol.” They possessed no single article of clothing. Each man wore only a blanket, looked upon as common property, with a hole cut in the middle, through which the head was passed. In order to become a Roman, it was necessary that the candidate’s hammock should be sold, and tobacco bought with the proceeds, for the enjoyment of the whole society. They might be seen in the common passages of the prison, five or six together fighting like dogs for some chance bone or potato peeling, and it was said that on one occasion when the governor’s cart had been sent into the court of the prison, the “Romans” seized the horses, and killed and devoured them. When the “capitol” was closed for the night, their general, who alone had a hammock, but without mattress or covering, arranged his men in two lines on either side, and at the word “*bas!*” all stretched themselves on the floor in perfect order and silence. Even the solitary blanket was laid aside in their own wards; but the general, besides the dignity of a hammock, was allowed on certain occasions to wear a kind of uniform, of which the embroidery was of straw, curiously worked. Once, when the whole body of the “Romans,” about six hundred in number, had been permitted to visit the interior of another prison, they seized the supplies in the kitchen en route, actually made prisoners of the guard sent to suppress the riot, and then paraded the court with loud cries of “Vive l’Empereur.” The guards were speedily reinforced, and the “Roman” general dismissed to the *cachot*. The scanty military strength which could be spared for Dartmoor was a source of considerable apprehension during the whole time the prisons were occupied.

Many details respecting these unhappy “Romans” are here purposely omitted, although the authority quoted, L. Catel, does not hesitate to relate them. They exhibited perhaps the lowest degradation of which humanity is capable. An intense passion for play, manifested more or less by the whole body of prisoners, was the main cause of their wretched condition; but crime in all its shapes was common among them, not the less horrible on

account of the reckless and frantic merriment with which it was accompanied. And yet among them were some of the best educated of the prisoners. What was exhibited at Dartmoor was that same dark tendency of human nature which in all ages has led men encompassed by great and irremediable difficulties to catch at the first enjoyments that present themselves. The throng of prisoners, housed together for long and dreary years, was, it must be remembered, without any of that surveillance which they would have had as criminals or convicts. The sole aim of authority was merely to retain them safely.

The general sanitary condition of Dartmoor was, considering the great number of men, remarkably good. The hospital was well appointed and the patients well cared for; the humane treatment afforded them is gratefully acknowledged on all sides. Fevers and small-pox at one time committed great ravages, and the Americans suffered much. But those disorders were most skilfully treated, and letters to that effect were afterward sent by the released prisoners to Sir George McGarh, the surgeon in attendance. There were a few instances of suicide both among French and Americans.

It is worth notice that the "Romans" of Dartmoor, in spite of their ten years' imprisonment, winter and summer, utterly without clothing, were more healthy than any other men in the depot. They were, however, frequently brought to the hospital in a state of suspended animation, from which they were recovered by the usual processes. They were at last removed altogether to prison Number Four, that appropriated in part to the coloured population, which was separated from the others. Regular supplies of money and clothing were issued to them by the government four times during the year, but they got rid of these within even a day or two. At last they were removed from Dartmoor, clothed afresh, and put on board a hulk at Plymouth, where they were debarred from intercourse with the guards on the ship and closely watched, under strict discipline, until their release at the end of the war in 1814. They were then four hundred and thirty-six in number.

Life at Dartmoor must have been almost intolerable to this polygot collection of foreigners with little in common among them but never ending misery. Strangers in a strange land, surrounded by dreary wastes, shivering under leaden skies, seldom seeing the sun which to many was as the breath of life, all alike were consumed with inappeasable nostalgia, hopelessly cut off from their native soil and seemingly separated forever from their kith

and kin and all they held most dear. Yet many strove bravely in various ways to combat their wretchedness, to rise superior to ever torturing despair. Occupation was a constant craving with the larger number. Work of any kind was thankfully undertaken to pass the weary hours. All who possessed any handicraft gladly offered their services to the authorities. Ready employment offered to masons, blacksmiths, carpenters, coopers, painters and so forth, in the many buildings in progress around. By their aid two of the main blocks were completed and the walls of the prison chapel were raised entirely by the French captives, after their arrival on the moor. Road making and the improved approaches and communications gave work to many more beyond the enclosures. All permitted to work outside the prison limits carried a tin plate or badge on their caps and were always engaged under the eyes of the guards. If any got away the working pay of the rest was forfeited for a time, not always an effectual plan, however, in checking escapes.

The prisoners found many outlets for their steady and intelligent industry. With the native ingenuity of the Frenchmen they employed themselves constantly in the manufacture of fancy articles, which were presently sold and some of which are still preserved as art treasures in many English country homes. There is one ivory box possessed by Maclaïne of the island of Mull, originally made by a French war prisoner confined in Edinburgh Castle, which is a marvel of artistic excellence and covered with intricate carving. Another fine piece is mentioned: the model of a ship only two inches in length constructed of bone by a French sailor in Dartmoor prison, and which fetched the high price of five hundred francs. Considerable sums were earned in this way; and it is stated that when the day of release came prisoners often took with them as much as one hundred pounds. Facilities for traffic in these products were afforded by the prison authorities. A daily market was held in an open space arranged within the innermost yard of the prison, and to this people from the neighbourhood were admitted, bringing articles of food for sale and to bargain for the commodities offered by the prisoners, who also sold surreptitiously their rations and their clothing in their hunger for ready money. The rations at that time consisted of one pound of bread, half a pound of fresh meat, a quarter of a pint of peas and a modicum of salt. Many of the Frenchmen had special aptitude for trading and did a large business with the outsiders. Some established coffee houses inside for the convenience of their

comrades; others set up as cooks and one invented a certain ragout composed of mutton pies and potatoes called *ratatouille* which was highly commended.

More intellectual occupations were followed by the well educated. Professors of various forms of learning might be found within its walls, masters of most European languages, teachers of drawing, mathematics, music and dancing. Books were by no means scarce, and it is said that many who had arrived quite illiterate and ignorant, left the prison possessing a good stock of general learning. Amusement of the higher sort was not wanting, for a theatre existed with a respectable company and many popular French comedies were regularly represented.

All amusements were not as reputable and comparatively harmless as theatre going, nor all employments as honest. A passion for gambling possessed the greater number of the prisoners, and the secret of much of the strenuous industry previously mentioned, on the part of the ragged and naked “Romans,” was to be found in the craving for funds to venture in games of chance. It drove the idle and impecunious to break the strict rules forbidding the prisoners to make away with rations or clothing despite the penalties attached of forfeiture and the issue of a yellow suit in the second case as a badge of ignominy. The attempt to stop play was futile, for although cards were not permitted within the limits, a hundred ingenious plans were devised for trying the luck of the players. A day’s rations, a week’s, a month’s were risked on the toss of a coin, or the length of a straw pulled out of a mattress. Bets were laid as to the number of turns a sentry would make on his beat, or whether or not the doctor would appear with a newly curled wig. An amusing and most original game was played with the assistance of the prison rats, who after “lights out,” when the ship’s lantern alone feebly illuminated a ward, ventured out of their holes hunting for crumbs of food that might have fallen beneath the hammocks. A specially tempting morsel having been placed in an open space, the arrival of the performers was anxiously looked for. They were all known by name and thus each player was able to select his champion for the evening. As soon as a certain number had gained the open, a sudden whistle given by a disinterested spectator sent them back to their holes and the first to reach his hole was declared the winner. An old grey rat called “Père Ratapon” was a great favourite with the gamblers; for though not so active as his younger brethren, he was always on the alert to secure a good start when disturbed.

Whatever the reason, whether the baneful effects of previous training, or the pressure of greed and the opportunities offered to gratify it by the absence of any close supervision, one section of the French prisoners was constantly and successfully engaged in criminal pursuits. Dartmoor was long an active centre for coiners and bank-note forgers; some of the prisoners possessed uncommon skill in these nefarious processes. No precautions could check the manufacture or prevent the passing out and circulation of spurious money through the kingdom. The traffic was flourishing and very largely profitable; the intermediary, for the most part the military guard, brought in the Spanish silver dollars collected and sent up from Plymouth and each coin worth four shillings was converted into eight of that value. The necessary materials for fabricating bank-notes came through the same channel and although no doubt imperfect, so much skill was displayed in their manufacture that the imitation was so nearly exact that even at the banks themselves the forged notes often passed undetected. As the military guard was always suspected, the men were searched on going on and coming off duty and if caught were, of course, severely punished. Nevertheless many thousand notes were put in circulation and great numbers of bad shillings.

Speaking in general terms, the condition of the French prisoners at Dartmoor was not particularly irksome, apart from the continual aching sense of exile and loss of freedom. The mass of the French at Dartmoor lived well and made money to lay up. They admitted themselves that they were at times "*fort gais*" and scrupulously kept up their demonstrations on fête days and great anniversaries when they promenaded the yard in procession behind the Tricolor and made loud cries of *Vive la France* and *Vive l'Empereur*. They were entirely neglected by their own government, which as a rule contributed nothing to their support, and they must have known that but for the obstinate policy of Napoleon, in refusing to allow exchanges of war prisoners, some of them at least, if not all, might long since have returned to their own country. They do not appear to have fraternised very cordially with the American prisoners when they began to arrive. The latter were generally much discontented, not only on account of their loss of liberty, but that they felt themselves neglected and in an inferior position to their French colleagues, who had the best quarters and were longer residents and more at home. For some time the Americans shared the block occupied by the "Romans,"—a very sufficient cause of

grievance. Prolonged confinement in Dartmoor had, not strangely, an evil effect on their tempers. The men were apt to be quarrelsome and easily annoyed over small things, and under the prevailing code of honour disputes could only be settled in one way, by personal encounter. The authorities did not entirely prohibit duelling until the use of foils as a recreation gave encouragement to hostile encounters. It was easy enough in a community, trained to the use of arms, to remove the guard buttons from the foils and convert the harmless toy into a lethal weapon. So much mischief ensued that fencing with foils was forbidden, but on one occasion a hostile meeting was declared inevitable between a French corporal of the marines and a privateer's man. It was necessary to find weapons and great ingenuity was displayed in providing them. Two long strips of hard wood were obtained from the carpenters employed in fixing the roof of a Roman Catholic chapel. One end of each strip was fashioned into a handle with a proper guard; at the other end, knife blades were fixed, ground down to a fine point, and thus armed, the opponents met. In the fierce fight which ensued the marine received a severe wound in his shoulder and a great gash on the sword arm. When taken to the hospital it was impossible to conceal the cause of these wounds. A search was made for the weapons which were seized and confiscated.

CHAPTER VII

THE HULKS

Description of the *Proteus*—Story of a French sufferer—Aspect of his fellow prisoners—Below decks—System of discipline—Overcrowding and bad sanitary conditions—Dietaries coarse and insufficient—Employments on board—The “Rafalés,” their misery and degradation—Attempts at escape often successful—Escapes at Dartmoor—Prisoner walled up in a chimney—Naval officer’s uniform stolen—Some figures giving number of French prisoners in custody.

WE may leave Dartmoor for a time and return to the Hulks, which it was intended to supplement and in a measure replace. It is well known that they were viewed with horror, and some personal experiences of one who was confined on board one for nearly nine years will be read with interest. M. Louis Garneray, the author, was a French painter, who came from a family of artists, and who took to a seafaring life from a love of adventure. He sailed to the East on a French ship and made the homeward voyage on the *Belle Poule*, one of a squadron which was to cruise on the west coast of Africa, and was captured on the 30th of March, 1806, by the English sloop *Ramillies*. Mr. Louis Garneray was wounded and made prisoner and from that date, as he tells us, began a torture which lasted for the nearly nine years of his imprisonment on board the English hulks. He relates as follows: “I thought I was dead to the past, but my blood boils with indignation when I recall the unheard-of sufferings that I endured in those tombs of the living. The lot of a solitary prisoner awakens compassion, but at least he is not tortured by witnessing the woes of a herd of poor wretches, brutalised and exasperated by privations and misery. Far from exaggerating I would even wish to abate something of the truth in my account of the terrible miseries of the English hulks.

“It took six weeks to reach Portsmouth Roads, and on the morning after our arrival, I was transferred with some others to the hulk *Proteus*. For the benefit of those who do not know what a hulk is, I may explain that it is an

old dismasted vessel, a two or three decker, which is moored fast so as to be almost as immovable as a stone building.

“I passed between rows of soldiers on to the deck, and was brutally thrust into the midst of the wretched, hideous mortals that peopled the hulk. No pen, however powerful, could bring before the reader the sight on which my eyes fell. Imagine a crowd of corpses leaving their graves for a moment—hollow eyes, wan, cadaverous complexions, bent backs, beards neglected, emaciated bodies, scarcely covered with yellow rags, almost in shreds, and you will then have some notion of the scene that I saw.

“Scarcely had I set foot on the deck, when the warders laid hold of me, tore off my clothes with violence, forced me into an icy cold bath, and then dressed me in a shirt, a pair of trousers, and waistcoat of an orange yellow. Not an inch of stuff had been wasted in making these garments; the trousers came to an end half way down my legs, and the waistcoat obstinately refused to button. These garments bore the initials T. O. stamped on them in black; those letters stood for Transport Office. When dressed, I and my companions had our names entered, and then each of us had a post assigned to him.

“The forecastle and the space between it and the quarter-deck were the only parts where the prisoners were allowed to take air and exercise, and not always even there. This space was about 44 feet long by 38 wide. This narrow space was called by the prisoners ‘the park.’ Fore and aft were the English; at one end the lieutenant in command; the officers, their servants and a few soldiers at the other. The part allotted to the prisoners was strongly boarded over, and the planks were thickly studded with broad-headed nails, making them almost as impenetrable as a wall of iron; and at intervals were loopholes, which, in case of an outbreak, would enable the garrison to fire upon us without exposing themselves. The prisoners’ berths were on the lower gun-deck and the orlop-deck, each of which was about 130 feet long by 40 wide. In this space were lodged nearly seven hundred men. The little light which could have reached us through the portholes was obscured by gratings two inches thick, which were inspected daily by our jailers. All round the vessel ran a gallery with open floor, so that, had anyone attempted to hide underneath, he would have been immediately seen by the sentinels, who were always on duty in this gallery. Our guard consisted of about forty or fifty soldiers; about twenty sailors and a few boys were also on board. Sentinels were placed all over the vessel and on

the quarter-deck were always eight or ten men ready to take arms at the least noise. At night we heard every quarter of an hour the monotonous cry of the sentinels: 'All's well.'

"At six o'clock in the evening, during summer, and two in winter, the English went round striking the sides of the hulk and the gratings over the portholes, to see that all was right; later, soldiers armed with loaded and bayoneted muskets came into our part of the hulk, and made us go on deck that we might be counted. After this, the hatches and portholes were closed, in winter at least, for in summer the portholes were left open or we should have been all dead in the morning. As it was the air was so poisoned by the close shutting up together of so many persons, that the English, after opening the hatches in the morning, rushed away from them immediately. The furniture of the hulk was very simple; it consisted of a long bench placed against the walls, and four others in the middle. Each prisoner was given, on coming on board, a hammock, a thin blanket, and a flock mattress. The seven hundred hammocks were arranged in two rows, one above the other. There was no distinction of rank among us, but those of the prisoners who could afford it, had made a sort of frame, which they themselves fitted with mattresses; they were thus a little more comfortable, but the poisonous air and vermin were the lot of all alike.

"It was, however, in our provisions that the hatred of the English showed itself most clearly. Each prisoner's ration consisted of a pound and a quarter of brown bread, and seven ounces of cow-beef; for soup at noon we were allowed three ounces of barley and an ounce of onion for every four men. One day in the week, instead of meat and soup, we had a pound of red herring and a pound of potatoes; and on another, a pound of dried cod, with the same quantity of potatoes. These quantities would have been sufficient, but the contractors always cheated; there were also deductions made from a prisoner's allowance for any attempted escape, and for other alleged misconduct; and we had made a rule that each should contribute his share towards these diminutions. There were also other reductions made voluntarily by ourselves to pay for a newspaper clandestinely introduced, and to supply money to those who had escaped. The provisions were cooked by some of our number. We breakfasted on dry bread; at noon we had our soup with bread in it, and the meat was reserved for supper. The herrings were so detestable that we generally sold them back again to the contractors at a low price; they came round to us the next week; and in this

way some of them did duty faithfully for more than ten years! With the money realised by their sale, we bought a little butter or cheese. The dried cod was bad, but we could manage to swallow it. The bread was often heavy as lead, but heavy as it was, the weight given to us was frequently so insufficient that we were compelled to make complaint; and in that case we had to wait fasting till the evening, before the proper authority could find time to give his decision. Water was brought to us by little boats, from which we ourselves had to raise it; those who were too weak, too old or too dignified to share in this task, paid a halfpenny to their substitutes. We had also to take each his part in cleaning our decks and ‘the park.’ Crimes and disorders, the reader may suppose, would be frequent enough in such an assembly of men, exasperated by suffering and misfortune.

“In the *Proteus* order was preserved as far as possible by a committee of eight members, chosen by the majority, and their task was to issue orders relating either to our general life or to particular cases, and also to give decisions without appeal in all differences that arose. In the event of a crime, however, the committee had only the power to summon all the prisoners, who, in grave cases, were the judges. The right of pardon did not exist in our community. To these means of keeping order must be added the moral influence of the officers on board, for although there was no distinction of rank, they were generally esteemed, and could mostly get a hearing from the crowd.

“This was the community to which I was now introduced. When I went to take the post assigned to me, there seemed to me to hang about the long chamber a thick cloud, bearing in it the germs of epidemics. I had been in my life in a slaver with 250 slaves packed in the hold, I knew how poisonous was the atmosphere there, and thought that nothing could be worse—I now learnt my mistake. The horrible den in which I found myself was dimly lighted by the portholes covered with gratings; as my eyes became accustomed to the dim light, I saw around the pale corpse-like, ragged wretches I have described. Except a few who, stretched on the boards at full length, wan and dull-eyed, seemed at the point of death, all in this hideous den were busily engaged. Some, armed with planes, were carpentering; others were at work in bone, making ornaments and chessmen; others were making really beautiful models of ships; some were making straw hats, and others knitted night caps; there were also among them tailors, shoemakers and one man who manufactured, Heaven knows

from what, tobacco; nor must I omit the professors of fencing, the baton, and, above all, dancing-masters, whose lessons were charged at the rate of a halfpenny for an hour's instruction. Seated near the portholes were some of our officers, who by way of killing the time and earning a few pence, gave lessons in algebra or geometry, at a price not above that which the dancing-master received. Through this crowd moved dealers with their cries of 'Who wants to sell? Who buys?' Every now and then some poor wretch with hunger in his looks, would stop one of them, and dispose of the miserable rags from his back, and then, turning to another dealer, expend the amount in unattractive food. Some of the occupations of which I have spoken—such as, for example, straw-plaiting—were forbidden by the English, as coming into competition with their own manufactures; with slight interruptions, however, the prisoners worked continuously through the whole day.

"Did a soldier, sentinel or not, set foot on the gangway leading to our part of the hulk, the first prisoner who observed him raised the signal agreed on by us, and at the cry of 'ship' repeated from one end to the other, everything forbidden was stowed away, and any who might happen to be piercing the walls of the hulk in order to make their escape ceased working for a while.

"My adventurous life had brought me into contact with many hardships, but when I was shown the place assigned to me my heart sank. I had, however, a little money; and for three out of my five louis, I purchased from a soldier, who had succeeded to it within a fortnight, the right to the best place in the hulk. I got a table and bench into the bargain, and thus I was installed.

"I had not been long on board before I found that there was a particular class excelling the generality in utter misery. They were called the 'Rafalés,' and lived penned up by themselves in seclusion from the rest. Incurable gamblers, these wretches had long since parted with their hammocks and blankets; at night they would lie for the sake of warmth in a row on the bare boards, all on the same side; and when the one at the head of a row got tired of the position, he would cry out, 'Tack,' and the whole line would immediately change sides. The strange misery of this existence seemed, nevertheless, to have its charms, for outsiders would occasionally wish to enter this fellowship, but to do so, certain rules had to be complied with. The aspirant had to sell all he possessed, and to give a treat of beer

and bread, after which a stone would be given to him as a pillow, and he was then received as a member. The experiment was tried of giving these men fresh hammocks, but they found their softness insupportable and sold them. Many of these wretches were all but naked; and when the roll was called, two or three in this condition would hire between them an old blanket, under cover of which they would come on deck; for this accommodation, the value of a halfpenny (for money was a thing unknown to them) was deducted from their next day's rations. The rations of these men would be pledged for sometimes five or six days in advance, and then they would wander about looking with hungry eyes for potato-peelings or onion skins; a herring head or cabbage-stump would be a blessed discovery; not seldom, however, two 'Rafalés' in the extreme of hunger would even gamble for the prizes thus obtained. Most of them, of course, soon died, and others, when at the point of death, would be recovered by a course of treatment at the hospital.

"By way of whiling away the time and in order that when my liberation came I might be able to pass my examination, I determined to join those who were studying mathematics. The difficulties in our way were not slight; yet so earnestly did we study on board the hulks, that I have known rude, ignorant sailors, who at setting out could not form a single letter of the alphabet, become possessed in a few years not only of the power to write fluently, but also of a competent knowledge of geography and mathematics. Our first difficulty was to get books and instruments, and even when this was overcome we had made but little progress. The noise on deck by day rendered hopeless all attempt at study, and lights were forbidden at night. At night, however, we determined to work. The students were the poorest body on board, with the exception always of our friends the 'Rafalés;' we had no money, yet to work at night we must have a lamp or candle. At dinner, therefore, every student was bound to set apart carefully every morsel of fat from his meat; this fat was collected in a large shell, and with the addition of a wick we had our lamp. When night came we drew our benches up to the table under our lamp, and then surrounded the whole with a sort of hat, built up of mattresses, hammocks and blankets. Every chink had to be stopped up to hide the light from the English, who were constantly on the watch through the loopholes. Sometimes the air became so bad in this sanctuary, that I have frequently seen men by no means weak or delicate fall senseless. These precautions were necessary, as, had we been discovered,

not only should we have had three days in the black-hole (an awful den), on two-thirds of the allowance, but the authorities, by a refinement of cruelty, which I have always been at a loss to understand, were wont to destroy in the presence of prisoners books, papers, slates, and other things, thus breaking all rules.

“It may be supposed that there was no lack of attempts to escape from this life, which, in one of the three different hulks on board of which I was during my imprisonment, was rendered still more miserable by the choleric and vindictive character of the lieutenant in command. The first of these attempts after my arrival was made in the following manner. I have stated that water was brought over to us by little boats; these boats carried back empty the barrels they had previously left. Accordingly, the night before the arrival of the water-boat, one of our number hid himself in an empty barrel. I and another were in the secret, and it happened to be our turn to assist in raising and lowering the casks. We had raised all the full barrels, and the order was given to lower the empty ones. I could hear my heart beat, when, after having lowered all but the row which would remain at the top, my companion and I moved towards a barrel marked with a notch, to show us that it was there our friend lay hidden. It descended safely and the boat, after a while, pushed off. The man who had invented this desperate means of escaping intended to remain till the following night in his barrel, and then, when all was quiet, to get somehow to shore. Wild as the undertaking seemed, it succeeded, nevertheless; but some time afterwards when, from not hearing of his capture, we concluded that he had made good his escape, and were about to repeat the attempt, we observed, to our bitter disappointment, that the English carefully inspected the barrels before lowering them.

“Various other methods were put in practice; and it was not seldom that, in the dead of night, we were awakened by the firing of a musket, followed perhaps by a cry, whereby we learnt that some attempt had been discovered. The water would be immediately illuminated and boats would put off from the other hulks to aid in the chase if necessary, and presently soldiers would invade our den, and wake up those who still slept with blows of the fist or the butt-ends of their muskets. Then, for two hours, perhaps, we should have to turn out on deck, while we were counted several times over; and when we at last regained our hammocks, the rest of the night would pass in questions and suppositions as to who had escaped, and whether he had got

safely off. For an intended escape was made known only to those who were to share in it, and a few friends who could be relied on. Men driven desperate by hunger would, for the sake of a little relief, turn traitors, and inform against their companions in wretchedness. So many escapes were effected, that at last, in order to reduce their number, the English Government decreed that the flight of a prisoner should be punished by the death of two others, who were to be hanged in his place, in case he should not be retaken. Our officers met together and drew up a letter, addressed to the Privy Council; and from it, in support of what I have stated, and which else might appear my own invention, I cite the following passages: 'We are unable adequately to express our astonishment at the order which you have addressed to us; we have had to read it over and over again before we could persuade ourselves that it was possible for persons belonging to a nation calling itself civilised, to put forward such barbarous threats as those contained in the order. You throw on us the responsibility of holding in safe custody our comrades, removing it from those to whom is confided their safekeeping. Prisoners are themselves to answer for prisoners, and at the hazard of their lives.' And again: 'We cannot doubt that it is your wish to reduce us to despair, and we swear all, that whatever you may have in store for us, we will meet it with a firmness that will not disgrace the great nation to which we have the honour to belong. We choose death rather than ignominy; and death we will face when called on in such a way as to leave behind us an example of courage and firmness as striking as that you afford of injustice and cruelty.' " This letter was followed by petitions from all the hulks, and the atrocious measure was never put in force. The imposition of such frightful penalties upon men who were only obeying the first dictates of nature as exhibited by every caged animal from man downwards, was, of course, perfectly indefensible. But England was no worse than France in this respect. Severe punishment was decreed for all English prisoners who sought to make their escape from French war prisons; at one time a proclamation was made that all taken in the act should be sentenced to the galleys; at another they were warned that they would be tried by court-martial. But these threats availed little, and constant and determined were the attempts to break away from the ruthless confinement of such strong places as Verdun, Bitche and Valenciennes.

Our authority, M. Garneray, speaks of three of his attempts to escape and no doubt he would have tried again but for the blessed advent of peace. He

brings his story to a close with the following last words: "After long, patient labour, assisted by a companion, I had managed to cut through the side of the hulk, but we were seen as we ventured forth by some of the sentinels who laid rough hands upon us and wounded us severely. Again, with a companion I got overboard, but was recaptured when within an inch of drowning, the sad fate which overtook my friend." Once more, with two others, he contrived to seize a boat and get out to sea, but when actually within sight of the French coast, they were overtaken by an English corvette and secured. He says: "I was utterly broken down. The ill-treatment we had so long suffered grew worse; news reached us of the disasters of the French arms, and every moment we had to listen to the grossest abuse of our emperor and our country. One day my patience was exhausted, and I knocked down a sailor who had grossly insulted me; others rushed up, and a fight ensued; the captain came up; and bruised and bleeding I was thrust into the black-hole. Five days had I been here when earlier in the morning than usual came the man who generally brought me the morsel of horrible bread which was to last till the following day: 'You may come out.' he said kindly; 'you are free.' I rushed on deck to get fresh air, where, to my surprise, I found my comrades crying, laughing, dancing, shouting. The peace had been signed and we were free!"

At Dartmoor attempts at escape were frequent and, when backed up with much patient ingenuity and great daring, sometimes succeeded. A favourite method of passing out was by mining underneath the boundary wall. One case which narrowly involved the life of a boy of fourteen, who was suspected of having given information, may be transcribed from an official report:—"A poor boy called Philip Hamond," says the report, "calls for commiseration. This lad was born at Guernsey and was pressed by a French privateer, which was taken by one of his Majesty's cruisers. The prisoners began a mine, which they carried under the foundations for about forty yards at a depth of five feet below the surface and about four feet in diameter, towards the outer walls to which they had nearly approached. They were unable to work in a straight line on account of the boulders which they came upon in the gravel, and were frequently obliged to make a considerable deviation in order to turn these obstacles. The tools used were wooden spades with an edge of tin, cask hoops and old iron made into scrapers. The earth taken daily from the mine had been concealed below the floor and had also been taken out to the gardens in small quantities with

ashes and refuse. The boy Hamond, observing earth concealed and distributed in several places, became alarmed lest he himself should become involved in a dangerous venture and secretly informed the authorities. Upon the discovery of the plot the prisoners rose in a body and arming themselves with daggers made of old nails, iron wire and pieces of glass fitted into wooden handles, they would instantly have made the boy the object of their vengeance if he had not taken refuge under the bayonets of the guard which was called in to suppress the rising.”

A captive will risk much and bear much to secure freedom. A Frenchman at Dartmoor, who was a good practical stone-mason, was employed with others in building the Princetown rectory-house. They had reached that part of the work which consisted in fixing a chimney flue, and left an inner recess large enough to hold a man standing upright, but walled only with thin stone especially selected for the purpose and easily removable. After six feet had been gained the strong work was resumed; the flue was made the proper thickness and the stones rendered in good mortar. Care was taken to leave air and eyelet holes for breathing and observation in the six feet of thin wall. One afternoon the intending fugitive entered the flue and took up his quarters in the above mentioned recess, while his comrades went on with their work above. They worked so well and with so much skill that they were particularly commended by their foreman, who complimented them highly on the excellent face put upon the flue. The man in hiding was not missed until after the party had left work, but his absence was discovered at evening roll call. A thorough search was then made of the rectory-house, inside and out, but the smooth surface of the walls negated all idea of a practicable hiding place. A number of vigorous bayonet thrusts were made up the freshly built flue, but without betraying or injuring the man inside and the search was abandoned. It was believed the prisoner had absconded during the day, having successfully eluded the vigilance of the sentries posted in a cordon round the house. At nightfall, however, the immured man, finding all quiet, attacked the green masonry at its thinnest part and extricating himself without difficulty, made off unobserved. The state of the flue on the following morning pointed clearly to the method by which he had effected his escape.

The employment of the prisoners in the officers’ quarters outside the prison, inspired another clever and audacious Frenchman with a plan of escape. He was a man of the superior class, well educated, who had been

taken prisoner when serving on board a French privateer. He was a quick and expert craftsman and was constantly employed in the officers' quarters executing alterations and repairs. One day he was at work on a cupboard in the house of the prison doctor who was an officer in the British navy, and while thus engaged made friends with one of the maid-servants. With her assistance he received a complete suit of the doctor's uniform including his sword and cocked hat. The prisoner was not unlike the doctor, of the same fair complexion and much the same height. With consummate coolness and skill he proceeded to change characters, assuming the uniform which fitted him well and providing himself with the doctor's snuff box and silver topped cane. Just as the hour for evening roll-call approached he had put the finishing touches to the pigtail which he was careful to arrange as the doctor did, and then he calmly walked out of the house, gained the high road to Plymouth without observation and was beyond pursuit almost before his absence was discovered. The fugitive eventually reached France in safety, whence, with profuse thanks and acknowledgments, he returned the doctor's possessions.

When the continental war was at its height, the total number of French prisoners was considerable. The majority of the prisoners were of course sailors and soldiers, civilians being chiefly passengers taken in merchant ships. All officers and civilians were ranked as gentlemen and were given parole, with permission to reside within assigned limits on certain conditions. They were kindly treated as a rule, were received in society and their position, although painful, was at least endurable. Great numbers, however, broke their parole between the years 1803-14. The private men were not admitted to parole and were more or less closely restricted to the hulks and prisons. It may be asserted on the authority of contemporary writers that the pictures drawn of the sufferings endured by the prisoners themselves were greatly exaggerated and overcoloured. Some degree of severity was unavoidable, but their treatment was generally mild and humane. The dietaries were sufficient in quantity; the rations good and wholesome; the clothing warm and serviceable, although in colour unsightly to lessen the chance of escape. As time passed and when good order was regularly established, close attention was paid to sanitary requirements, prisoners' bedding was well aired and in good condition, the prison chambers and the between decks of the hulks were kept clean and dry and were thoroughly well ventilated.

CHAPTER VIII

AMERICAN PRISONERS IN ENGLAND

Increase of war prisoners by arrival of Americans in 1812—Mr. Andrews' account, published in New York, 1815—Officers on parole—Others confined on board the Hulks at Plymouth—Daily duties on board—Removal from Hulks to Dartmoor—Description of interior—Precautions taken to prevent escape—Mr. Andrews' account of the French prisoners—Sufferings increased by intense cold and snow of the winter of 1814—Stock of rations runs low—Starvation threatened—Release of French prisoners—Great schemes of wholesale escape—Conflict with the troops—Bloodthirsty conduct of Captain Shortland—Troops fire on the prisoners with deplorable results—The Dartmoor Prison of to-day—Results achieved by judicious labour—Reclamation of waste lands—Profitable farming—Good crops raised—Horses and cattle bred.

A VERY large increase of the number of war prisoners in England was the result of the war with the United States in 1812. An excellent account of what befell these American prisoners is preserved in the Memoirs of Mr. Charles Andrews, published in New York in 1815. Some of his personal experiences deserve to be quoted *in extenso*.

He says: "I myself happened to be so unfortunate as to be among the first captives brought into England the 18th of June, 1812. On our first arrival we were all collected from different ports and confined in different prisons. Some were sent to Chatham, some to Hamoaze and others to Portsmouth, where a strict examination took place as to their nativity and citizenship. After the examination the officers who were entitled to their parole (such as commanders and first lieutenants of privateers manning fourteen guns; commanders and first mates of merchantmen, non-combatants, etc.), received it and were sent to the little village of Ashburton in Devonshire or Reading in Berkshire; the former is situated about twenty miles inland from Plymouth and the principal place of confinement for paroled officers. The town of Ashburton is pleasantly situated, in a healthy

and fertile part of the country where every article of provision is more easily obtained and at a much cheaper rate than in many other parts of the kingdom. Here all the officers on parole had their names registered and particular personal descriptions taken of them. They were allowed by the British Government one shilling and sixpence, which equalled thirty-three and a quarter cents money of the United States, per day each man. With this small allowance great numbers of paroled officers were compelled entirely to subsist, for having no other dependence and no friends in this country, they were obliged to purchase clothing, board and lodging and all the other necessaries of life, and to make use of every economy to prevent themselves from suffering, notwithstanding the cheapness of provisions and the facility of obtaining them. They were permitted during the day to walk one mile on the turnpike road towards London or Plymouth and at a certain early hour every evening they had to retire to their respective lodgings, there to remain till next morning. These were their general restrictions for all the days in the week except two, on which every officer must answer at a particular place appointed by their keepers in the presence of their agent or inspector. In this manner some numbers of officers were compelled to drag out a tedious existence in a state of painful solicitude for their country, their homes and families, during the greater part of the late war.

“But the condition of the officers on parole was favourable indeed when compared with that of the officers and others not entitled to that privilege. Every such person taken under the flag of the United States was sent to some one of the places before mentioned and confined on board prison ships. The greatest number were sent to the *Hector* and *La Brave*, two line battle ships which were unfit for his Majesty’s service at sea and were now used for the confinement of prisoners of war. These were placed under the command of a lieutenant.

“The *Hector* and *La Brave* lie about two miles from Plymouth, well moored by chain moorings. Captain Edward Pelew of the Royal Navy, the agent for prisoners of war, resides at this place. On the reception of all prisoners into their respective prison ships they were obliged to undergo a strict examination concerning their birth, place of residence and age; a complete and minute description of their person in all respects was taken down in writing. After the examination there was delivered to each man a very coarse and worthless hammock with a thin coarse bedsack, with at most not more than three or four pounds of flocks or chopped rags, one thin

coarse and sleazy blanket; this furniture of the bed-chamber was to last for a year and a half before we could draw others. After the distribution of the bedding, we were informed of the rules and restrictions which we must strictly observe. Every ship has a physician attached to it, who is ever to be on board and when any prisoner is sick he is to repair immediately to a certain part of the ship for medical aid; but seldom has he any attention paid him till the moment of dissolution. The doctors pay but little attention to the suffering prisoners, although the prisoner is seldom or never suffered to expire on board; for at the moment that death seems inevitably approaching, the prisoner is removed to a ship lying near by, called the hospital ship, where if he happen to survive, he receives much better treatment and attendance; but when once removed to that ship he may bid adieu to his fellow prisoners and sublunary things; for not more than one out of ten ever recovers.

“We were then informed that the Transport Board had most graciously and humanely, for the health and happiness of the prisoners, imposed on them the following duties, viz., to keep clean the ship’s decks and hold, to hoist in water, provisions, coal and every other article expended or used in the ship; and also to cook their own victuals, which consisted of the following rations allowed by the English Government,—to each man one and a half pounds of very poor coarse bread, half a pound of beef including the bone, a third of an ounce of salt and the same quantity of barley with one or two turnips per man. These were the rations for five days in the week; and the other two were fish days, the rations for which were one pound of salt fish, the same weight of potatoes and the usual allowance of bread.

“For consolation in our present miserable condition we were informed that the said honourable board had indulgently permitted the American prisoners to establish and carry on any branch of manufacture, except such as knitting woollen fabrics, making straw hats and bonnets, etc., or rather, they proscribed every branch of manufacture which they were capable of pursuing. At this time they could have carried on the making of straw in plaits for bonnets with very considerable advantage, for almost every sailor was more or less capable of working at this art and by directing attention to the business could have earned six or eight pence per day; but this was not permitted and we considered the prohibition a contrivance of the agents of the government to induce prisoners to enter H. M. service.^[7]

“During the fall of the year 1812 to the April in 1813, the English had collected at the following depots the number now mentioned, who were mostly prisoners delivered up from ships of war and citizens of the United States detained in them for some time before. At Chatham were collected about nine hundred; at Portsmouth about one hundred and at Plymouth about seven hundred. These unfortunate men had often made application to Mr. Beasley, the agent for American prisoners of war, who resided in England, but were never able to obtain an answer from him. At this time great numbers of the oldest prisoners were completely destitute of clothing.

“On the 2nd April, 1813, the Transport Board, apprehending the escape of the prisoners, in consequence of their repeated threats to that purpose, issued an order to Captain Pelew, then agent for prisoners at Plymouth, to make preparation for removing all the prisoners then confined on board the *Hector* prison ship at Plymouth to the depot at Dartmoor in the county of Devon, situated seventeen miles from Plymouth in the back country.

“These orders were accordingly made known to the prisoners; and on the morning of the 3rd April they were ordered on deck with their hammocks, baggage, etc., in readiness to march to the prison, the very name of which made the mind of every prisoner ‘shrink back with dread and startle at the very thought,’ for fame had made them well acquainted with the horrors of that infamous abode which was by far the most dreadful prison in all England and in which it was next to impossible for human beings long to survive.

“Two hundred and fifty dejected and unhappy sufferers, already too wretched, were called, each of whom received a pair of shoes and his allowance of bread and salt fish. Orders were then immediately given for every man to deliver up his bed and hammock and to repair forthwith into the different launches belonging to the ships of war which were alongside the ships ready to receive them. The prisoners entered, surrounded by the guards and seamen belonging to the *Hector* and *La Brave*. We were landed at New Passage near Plymouth and were placed under the guard of a company of soldiers equal in number to the prisoners. Orders were then given to march at half past ten in the morning with a positive injunction that no prisoner should step out of or leave the ranks on pain of instant death. Thus we marched surrounded by a strong guard, through a heavy rain and over a bad road with only our usual and scanty allowance of bread and fish. We were allowed to stop only once during the march of seventeen miles.

“The prison at Dartmoor is situated on the east side of one of the highest and most barren mountains in England and is surrounded on all sides, as far as the eye can see, by the gloomy features of a bleak moor, uncultivated and uninhabited, except by one or two miserable cottages, just discernible in an eastern view, the tenants of which live by cutting turf on the moor and selling it at the prison. The place is deprived of every thing that is pleasant or agreeable, and is productive of nothing but human woe and misery. Even riches, pleasant friends and liberty could not make it agreeable. It is situated seventeen miles distant from Plymouth, fourteen from the town of Moorton and seven from the little village of Tavastock.

“On entering this depot of ‘living death,’ we first passed through the gates and found ourselves surrounded by two solid circular walls, the outer one of which is a mile in circumference and sixteen feet high. The inner wall is distant from the outer thirty feet, upon which is a chain of bells suspended by a wire, so that the least touch sets every bell in motion and alarms the garrison. On the top of the inner wall is placed a guard at the distance of every twenty feet, which frustrates every attempt to escape and instantly quells every disorderly motion of the prisoners. Between the two walls and over the intermediate space are also stationed guards. The soldiers’ guardhouse, the turnkeys’ office and many other small buildings are within these two circular walls; likewise several large commodious dwelling houses which are occupied by the captain of the prison, doctor, clerks, turnkeys, etc., etc. Inside the walls are erected large barracks, capacious enough to contain a thousand soldiers and also a hospital for the reception of the sick. No pains have been spared to render the hospital convenient and comfortable for the sick prisoners. And certainly much credit is due to the director of this humane institution, whoever he may have been, for the attention paid to this most important appendage to an extensive prison. These last mentioned buildings and several cell store-houses are enclosed by a third wall. These three ranks of walls form in this direction a barrier which is insurmountable.

“At a time when the prisoners had despaired of any relief and began to reconcile themselves to their hard fate, they were very agreeably surprised to hear that Mr. Reuben G. Beasley had condescended to visit them and then waited at the gate for admittance. The idea that their deliverer had come diffused a general joy through the whole prison and ‘lighted up a smile in the aspect of woe.’ The soldiers and guards were ordered into the

prison and turned out every man, both sick and well; overhauled the hammocks, swept the prison and opened the window-shutters; all filth was removed and everything made clean for the first time since our arrival. The guards were then stationed at the door, to prevent any prisoner from going in to have any communication with the Agent; we were told that no man could speak to him or have any communication with him whatever. At three o'clock the entrance of Mr. Beasley was announced by the turnkeys. We arranged ourselves in the yard in anxious expectation of the glad tidings he might bring. He appeared attended with his clerks, the clerks of the prison and a very numerous train of soldiers. As he entered the yard of the prison, we presented a frightful appearance, in our yellow uniforms, wooden shoes, and meagre lantern-jaws. He viewed the sight and seemed much surprised at the group. We stood in silent expectation; he moved along to the prison, but how were our feelings damped; at this moment! when we expected from him the language of consolation and relief, he only uttered in a careless tone to his clerks, that 'he did not think that the number had been so great.' "

In December the cold increased, and the prisoners suffered acutely. Captain Cotgrave, the governor and superintendent, ordered the prisoners to turn out every morning at the hour of nine and stand in the yard till the guards counted them. This generally took more than an hour. Many prisoners were without stockings and some without shoes and many without jackets. They cut up their blankets to wrap up their feet and legs that they might be able to endure the cold snow while they were attending this ceremony. Complaints were numerous and this practice was denounced as much too severe for the prisoners but the superintendent pleaded his orders which as agent he was bound to obey. Yet there were painful incidents which should have touched the heart of any feeling man who saw them. Several of these naked men, chilled and benumbed with cold, and generally half-starved, fell down lifeless before him and in the presence of the guards and turnkeys. It was a cruelty exceeding murder to expose naked helpless creatures to perish in the pitiless blast of this bleak mountain side. "We remonstrated," continues Andrews, "with the infamous author but all our applications and remonstrances were in vain; the wretch was inexorable; his feelings had become callous by continuing so long among the sufferings of the French prisoners. After these men had fallen down in the yard they were taken up and carried to the hospital and with some difficulty restored to life

again; they were then immediately sent back to prison, there to lie on the stone floor without bed or covering.

“The name of Isaac Cotgrave, agent at Dartmoor, of cruel memory, will ever be engraven in odious characters on the minds of every American who witnessed his unparalleled cruelty.”

Presently the iron sceptre was wrested from his hand and placed beyond his reach. The new agent, Captain Thomas G. Shortland, at this time, December, 1812, superseded Cotgrave. Shortland was a man whose feelings had not yet grown callous, and at his first arrival he was shocked at the scenes of misery which presented themselves in every shape. Touched with compassion he could not continue the cruel practice of counting over the prisoners every morning in the yard. He countermanded the order which his predecessor pretended he was obliged to enforce, and he declared to the prisoners that he would do all in his power to procure them better treatment from his government.

The year 1814 began with as cold weather as was ever experienced in the city of New York. The buckets in the prison containing ten or twelve quarts froze in the short space of four hours to a solid mass, and the prisoners must have inevitably frozen were not the hammocks placed so near together as to communicate the animal heat from one man to another. The running stream that supplied the prison was set hard and the weather was said to be colder than it had been for fifty years before. The water was all frozen and the prisoners obliged to eat snow for drink. The guards were driven to abandon their posts on the walls and retire to the guard house; not one sentry was on duty except inside the barracks. At midnight eight prisoners, thinking to take advantage of the night to make their escape as no sentries were in sight, formed a ladder and with it ascended and descended the first wall directly against the guard house; in ascending the second the soldiers in the guard house discovered them and prevented seven; the eighth got over the wall and got away. Those recaptured were at once carried to the black-hole, the first destination of all who tried and failed to escape. The weather was bitterly cold; still despite their sufferings they were passed on to the inner dungeon and lay there for ten days and nights on the straw; worse threatened, and for the whole of the inhabitants of Dartmoor communication with Plymouth was interrupted and supplies promised to run short. Everyone was put on half or two-thirds allowance. Salt rations, a reserve of which was always kept in stock, were issued to garrison and

prisoners alike and the total, it was estimated, would not last for more than ten days for the large population shut in, amounting to nine thousand French and American prison troops, and numbering fifteen hundred with officers, doctors and turnkeys besides.

The situation mended when the labours of many hands with spades and snowplough broke through the deep snowdrifts, and sledges with provisions arrived. The Americans were also gladdened by the receipt of a letter from their agent announcing an increase of their money allowance, intended to pay for coffee and sugar as rations on the salt fish days. This was to have been distributed in kind but it was thought the cash,—three and a half pence per head, would be preferred, and the money was therefore sent, sevenpence per man per week, and was very heartily appreciated; and the total allowance was increased to six and eightpence on the understanding that this was to continue being paid monthly.

“As it was natural to expect,” continues Andrews, “this payment produced great spirits and animation among the prisoners and was as welcome as a thousand pounds when we were free and had plenty.” With this money the prisoners purchased many necessary little articles of clothing such as shirts, shoes, trousers, etc., which could be bought very cheap of the French who always kept a store of second-hand clothing which was supplied by the officers.

The weather then became fine—for the place—and the prisoners’ health began to improve. They were quite comfortable when their condition was compared to the distress of the cold winter they had just passed through. Their little salary seemed to command some respect from the turnkeys, soldiers, officers and subalterns who were themselves as poor and meagre as Hamlet’s apothecary. It brought them many indulgences, such as full liberty of the markets, which had before been proscribed, when they had been compelled to purchase of the French at the gratings. This was a great benefit to them, for they could trade with the country people much cheaper. To regulate the rations they were also allowed to appoint a committee of two to attend at the store house to see that the director gave good weight in those articles allowed by the Board.

This year of 1814 saw the end of the French war and the release of the French prisoners from Dartmoor. “The Americans still detained,” says another authority, “were dispersed through the prisons, thus obtaining more

space and liberty. They immediately set to work upon a plan for their escape which the French had never dreamed of attempting.^[8] It was found that a passage two hundred and fifty feet long would carry them from three of the prisons to the road beyond the wall. Upon this they set to work in each building, digging by night in alternate parties, and carrying the earth from the passages into the stream that ran through their yard. About sixty feet of ground had been got through in this manner, when the proceedings in one of the prisons were discovered and stopped. After some delay the work was continued in the others until the passages were within forty feet of the road without the wall. Every man was then provided with a dagger, made by the prisoners who worked as blacksmiths; and they proposed on escaping to make at once for Torbay. But at this point, one of the prisoners, who perhaps had some discreet doubt as to the result of the enterprise, walked out in open day before all then in the yard—went up to the turnkeys, and marching off with them to the keeper's house, gave him information of all the operation and designs—and we never saw him after. Quite as well, perhaps, for the informer.”

The confirmation of the treaty of Ghent was confidently expected to set free the Americans. There was still, however, much delay in the arrangements for the final release; and considerable excitement was the result. They hung Beasley, the American agent, in effigy; and a few days later a very serious disturbance took place at the prisons, owing to some mismanagement in distributing the bread allowances. They broke open the first three gates, drove the sentries to the guard-house, and were only checked by the soldiers of the garrison, who advanced upon them with fixed bayonets. Not a blow, however, was struck; but the alarm was great and the governor brought additional strength from the troops at Plymouth. On the evening of that day it was found that an attempt had been made to pierce the wall between the prisoners' yards and an adjoining court, in which were kept the arms of the guard who were off duty. As soon as this discovery was made, it was thought proper to place an additional force on the wall commanding the courts, and to ring the alarm bell, as a signal of disturbance. Unfortunately the prisoners, who seemed to have had no intention of creating a disturbance, crowded to the first gate; the iron chain by which it was fastened was broken, and as many as were able pressed into the market square. It was naturally inferred that they were on the point of a desperate attempt at escape; and the governor, after some time vainly

endeavouring to induce the prisoners to return to their yards, at last ordered the guard to charge them back. This they did; but the Americans still refused to enter their prisons, insulting the soldiers, daring them to fire, and at last pelting them with large stones. Whether any command to fire was given is uncertain; but it then commenced, and was without doubt continued and renewed without orders, in spite of the governor's attempts to stop it. At first, the muskets were fired over the heads of the prisoners, who raised a cry of "blank cartridges" and continued their attack on the guard. It is not to be wondered at that the soldiers lost their temper. Seven of the prisoners were killed, and sixty more or less dangerously wounded.

The jury who attended the inquest returned a verdict of justifiable homicide; and both the American and English commissioners who conducted the subsequent inquiry found it impossible to do more than express their sorrow at the whole affair.

All of the prisoners, about five thousand, were almost at once released.

This same story is told more at length by Andrews. "On the 22d June, 1814," he says, "Captain Shortland gave us information that all American prisoners in England were to be collected at Stapleton (Bristol) as the Transport Board had selected that place for a general depot. There were now in England thirty-five hundred unparoled prisoners. The same information was given at Chatham and Plymouth. On the evening of the 3rd July an event happened at Dartmoor which ended in a very serious manner. A dispute arose between two of the prisoners, belonging to the United States' brig *Argus*, by the names of Thomas Hill and James Henry. The quarrel growing quite warm and not being ended with night, they agreed to fight next morning. Accordingly the following morning about nine o'clock they commenced the battle in prison No. 4, and by an unfortunate blow from Hill, Henry was killed on the spot. A jury of inquest was held over the body of the deceased, and after hearing the evidence the jury brought in a verdict of 'manslaughter' or 'a killing not wholly without fault but without malice.' Thomas Hill was removed and confined in the county prison at Exeter to await his trial at the August Assizes, then next ensuing.

"On the 29th December we were most agreeably surprised with the joyful tidings of peace—the preliminaries were announced in the London paper which we received this day, and the news was confirmed by a letter from Mr. Beasley received the same day, stating that the treaty had been

signed by the commissioners at Ghent on the 24th, and that the sloop of war *Favourite* would sail with the treaty on the 2nd of January, 1815, with all possible speed for the United States, and that three months would release every man from confinement.

“Language is too feeble to describe the transports of joy that so suddenly and unexpectedly filled every heart. Every man forgot the many tedious days and nights he had so often numbered over within these prison walls. On the 13th of February one of four prisoners who had been sentenced the previous August to remain in his cell during the rest of the war, watched an opportunity to get among the other prisoners in the yard, and being led into the yard of that building for the benefit of the fresh air and seeing the attention of the turnkeys and soldiers occupied by some other object at this time, jumped over the iron railing that separated this building from the yards Nos. 1, 2, and 3 and concealed himself in the midst of the other prisoners. Next morning he was missed by the keepers and information given to Captain Shortland, who demanded that the man should be immediately surrendered to be again returned to his cell. The prisoners positively refused to give the man up and declared that no force of arms should wrest him from their protection. Whereupon Captain Shortland closed the market and forbade any communication with it, restricting the prisoners to their allowance and denying them every privilege.”

On the 14th February he entered the yard at the head of two hundred soldiers with fixed bayonets, and every prisoner was ordered to withdraw into the prison so that search might be made for the missing man. The whole having agreed to stand by each other and resist any violence, at a signal given they surrounded the troops and gave notice of their intention. But the officers interposed, anxious to avoid bloodshed. The soldiers were ordered to retire and make no further attempt at arrest. Peace was accordingly maintained until the 6th of April. “But on that day,” says Andrews, “about six o’clock in the evening Captain Shortland discovered a hole in the inner wall that separates the barrack wall from prisons Nos. 6 and 7; this hole had been made in the afternoon by some prisoners out of mere play without any design to escape.

“On discovering the hole Captain Shortland seemed instantly to conceive the murderous design, for without giving the prisoners any notice to retire, he planted soldiers in proper positions on the top of the wall where they could best assist in perpetrating his murderous and barbarous deeds. A few

minutes past six while the prisoners were innocently, and unapprehensive of mischief, walking in the prison yards and particularly those in Nos. 1, 3 and 4 which were entirely separated from the yard in which the hole in the wall had been made, the alarm bells rung and the drums of the garrison in every direction beat to arms. This was about ten minutes past six. Such a sudden and unexpected alarm excited the attention of all the prisoners, who out of curiosity made immediately for the gates of the prison yard to enquire the reason of the alarm. When so many persons were confined in this depot, it is reasonable to suppose that some mischievous persons were included in the number, and, as a fact, among those collected at the gate were some who forced the gates open, whether by accident or design I will not attempt to say, but without any intention of making an escape, a project totally unknown to the few who stood in front of the gates. Those at the back naturally crowded forward to see what was going on at the gates; this pressed and forced a number through the gates quite inadvertently and without design. At this juncture Captain Shortland arrived in the inner square at the head of the whole body of soldiers in the garrison. He took sole command of the whole and immediately drew up the soldiers in a position to charge. The English officers, however, penetrating the horrid and murderous intention of their superior, resigned their authority over the soldiers and refused to take any part or give any orders for the troops to fire. They could see by this time that the overawed prisoners were already retiring as fast as so great a crowd would permit and hurrying in headlong flight in every direction towards their respective prisons.

“The troops had advanced within three yards of the prisoners when Captain Shortland gave the order to charge. There was a terrible jam at the gates and it was quite impossible for so great a crowd to pass quickly through. Every one was mad to escape from the points of the bayonets and a dreadful panic prevailed. At that moment, although completely master of the situation and no other violence or resistance was being offered or threatened, Captain Shortland was distinctly heard to give orders to the troops to open fire. It was immediately obeyed by the troops and a full volley of musketry was poured into the main body of the prisoners on the other side of iron railings which separated the prisoners from the soldiers. These volleys were repeated for several rounds, the prisoners falling either dead or wounded in all directions, while it was still impossible for them to enter the prison on account of the numbers that flew there for refuge from

the rage of the bloodthirsty murderers. The troops seemed now resolved to make a wholesale massacre of all whom accident or impossibility had left outside the prison, and approaching the crowded doors instantly discharged another volley of musketry on the backs of those endeavouring to force their way in. The dead and the wounded lay scattered about the yard. Seven were killed on the spot and six suffered the loss of leg or arm; thirty-eight were dangerously wounded, several were pronounced mortally wounded, twelve slightly, the total number of killed and wounded being sixty-three.”

A despatch was immediately sent to Plymouth to inform the admiral and general commanding the station. Next morning, the 7th April, 1815, a colonel with a reinforcement of troops arrived and assumed command at Dartmoor. He very patiently listened to the accounts of both parties and an inquest was forthwith assembled, composed of residents in the neighbourhood, mostly farmers and salesmen. On the evening of the 9th the jury pronounced a verdict of “justifiable homicide,” which was indignantly denounced by the American opinion as contrary to the facts and the result of prejudice and unfair pressure.

Another version of this very regrettable occurrence is given by the commissioners for Dartmoor under date of 25th April, 1815, who made a special inquiry. Their report takes a more moderate view than Andrews and may be considered a plausible attempt by the superior officials to palliate the circumstances. The commissioners say:—

“During the period which has elapsed since the arrival in this country of the account of the ratification of the treaty of Ghent, an increased degree of restlessness and impatience of confinement appears to have prevailed amongst the American prisoners at Dartmoor which, though not exhibited in the shape of any violent excess, has been principally indicated by threats of breaking out if not soon released. On the 4th of April in particular, only two days previous to the events, the subject of this enquiry, a large body of prisoners rushed into the market square from whence by the regulations of the prison they are excluded, demanding bread instead of biscuits which had on that day been issued by the officers of the depot. Their demands, however, having been then almost immediately complied with, they returned to their own yards and the employment of force on that occasion became unnecessary.

“On the evening of the 6th, about six o’clock, it was clearly proved to us:—

“That a breach had been made in one of the prison walls sufficient for a full sized man to pass and that others had been commenced in the course of the day near the same spot though never completed;

“That a number of prisoners were near the railing erected to prevent them from communicating with the sentinels on the walls, which was of course forbidden by the regulations of the prison, and that in the space between the railing and these walls they were tearing up pieces of turf and wantonly pelting each other in a noisy, disorderly fashion;

“That a much more considerable number of the prisoners were collected together at that time in one of their yards, near the place where the breach was effected, and although such collection of prisoners was not unusual at other times (the gambling tables being commonly kept in that part of the yard) yet when connected with the circumstances of the breach and the time of the day, being after the signal for the prisoners to go to their respective prisons had ceased to sound, it became a right and just ground of alarm to those who had charge of the depot. Upon these grounds Captain Shortland appears to us to have been justified in giving the order, which about six o’clock he seems to have issued, to sound the alarm bell, the usual warning for collecting the officers of the depot and putting the military on the alert. However reasonable and justifiable this was as a measure of protection, the effects produced thereby in the prisons, but which could not have been intended, were most unfortunate, and deeply to be regretted. A considerable number of the prisoners in the yards where no disturbance existed before, and who were either already within their respective prisons or quietly retiring as usual towards them, immediately upon the sound of the bell, rushed back from curiosity—as it appears—towards the gates where by that time a crowd had assembled.

“Captain Shortland, in the first instance, proceeded out of the square towards the prisoners, having ordered a part of the different guards to the number of about fifty only, though they were increased afterwards, to follow him. For some time both he and Dr. Magrath (the chief medical officer) endeavoured by quiet means and persuasion to induce the prisoners to retire to their own yards, explaining to them the fatal consequences which must ensue if they refused, as the military would in that case be

necessarily compelled to employ force. Captain Shortland finding persuasion was in vain, at last ordered about fifteen file of the guards to charge the prisoners back to their yards. With regard to any order having been given to fire the evidence is very contradictory. Several of the Americans swear positively that Captain Shortland gave that order, but the manner in which from the confusion of the moment they describe this part of the transaction is so different in its details that it is very difficult to reconcile their testimony. Moreover Captain Shortland denies the fact.

“The firing in the square having continued for some time, by which several of the prisoners sustained injuries, the greater part of them appear to have been running back with the utmost precipitation and confusion to their respective prisons and the cause for further firing seems at this period to have ceased. The subsequent firing appears to have arisen from the state of irritation and exasperation on the part of the soldiers who followed the prisoners into their yards and from the absence of nearly all of the officers who might have restrained it. Captain Shortland was from this time busily occupied with the turnkeys in the square receiving and taking care of the wounded.”

Great efforts were afterwards made to bring home the responsibility for the deaths or wounds inflicted, and to identify the soldiers who had opened fire, but with no satisfactory result. The men to blame could not be discovered, and indeed they must have been sheltered under the orders that must almost certainly have been received. The commissioners in the end came to a rather lame and impotent conclusion, and wound up their report with the words: “Whilst we lament most deeply the unfortunate transaction which has been made the subject of this inquiry, we find ourselves totally unable to suggest any steps to be taken as to those parts of it which seem to call for any redress or punishment.” This “horrid massacre,” as it was freely styled at the time, was subsequently submitted to a joint commission of English and Americans who awarded no special blame, but were unanimous in deploring the costly mistake made by too easily excited prisoners on the one side, and authorities too hasty in availing themselves of savage and ferocious means of repression.

It was not the only outbreak of dangerous dimensions at Dartmoor, but that of 1812 was happily quelled without bloodshed. The mutineers were Frenchmen and, according to a contemporary account, the prisoners rose in protest against the issue of biscuit as a ration in lieu of bread. The bake

house had been recently destroyed by fire, and it was necessary to give biscuit; at first an increased allowance of one and a half pounds, but reduced presently to one pound. Any interference with the dietaries is a dangerous proceeding with prisoners and generally resented. On this occasion some seventy-five hundred of them broke out in open insurrection. They attacked and broke the ponderous bars of the principal gate, but could do no more mischief, and as a last resource sought to set fire to the prison and escape *en masse*. The troops saved the situation, assisted by three pieces of artillery brought to bear upon the mutineers, which overawed them without opening fire.

Dartmoor was vacated on the advent of peace and remained empty for many years. It was maintained in a habitable condition, however, and another use was found for it as time passed, somewhat on the old lines, still as a prison, but for criminal offenders. When the cessation of transportation beyond the seas brought about a complete change in the British methods of secondary punishment, and it was essential to provide penal establishments at home, Dartmoor was converted into a convict prison appropriated at first to invalids, but eventually to the able bodied; and felon labour was applied in large quantities to the reclamation of the barren moorland and its conversion into productive farms. It was an ideal penal settlement; at first a wild, barbarous place remote from the busy haunts of men, yet not too far for effective control and supervision. When here, stern salutary discipline could be enforced for the correction of wrong-doers and their removal, although falling far short of the old penal exile with its many evils and drawbacks, would act as a deterrent from the commission of crime.

The Dartmoor of to-day is an object lesson to prison administrators. It is a striking proof of what patience and the judicious application of a well conceived, admirably well worked out system can accomplish. It has had a double aim; the useful and remunerative employment of depredators making restitution, and the endowment of the country by bringing wide areas of waste land into cultivation. In the earlier stages of its renewed life, incessant labour was bestowed upon the improvement and adaptation of ancient buildings to modern requirements, to fencing, draining, road-making and then the regeneration of the soil to agricultural pursuits. The prison farm, now of more than two thousand acres, has been created by convicts in upwards of forty years. The whole of this acreage, once a mere common and unenclosed waste, is now transformed into productive fields

worked with a proper scientific rotation of crops. "Ground that was once mostly rushes is now able to carry a bullock per acre through the summer. No purer or cleaner pastures are to be found anywhere.... Sixty-seven acres of meadow land have been laid out for irrigation and utilisation of the sewage from the prison establishment, which at times numbers upwards of one thousand persons. A dairy herd of forty-five cows is kept and all the cows are reared ... a flock of four hundred sheep, 'Improved Dartmoors,' is kept and has frequently been successful in the local show yards. The wool, for so high a district, is remarkably good and of long staple. Pony mares and their produce are run in the fields. One of the ponies bred on Dartmoor won first prize at the Royal Show at Plymouth. Thirty acres of garden are devoted to the growth of garden vegetables of which all kinds are grown, and much success has been obtained with celery and cucumbers. The whole of the work is done by convicts, without the aid of horses except for carting."

This peaceful and prosperous colony of condemned felons has replaced the great war prison where as many as ten thousand unhappy victims of their quarrelsome rulers, but innocent of all crimes, passed years of hopeless exile, prolonged suffering and irksome confinement. The population to-day is little more than a tenth of the number originally lodged here. These inmates, whose liberty and labour have been forfeited by their misdeeds, are treated with humane severity and subjected to an exact but well-contrived discipline intended to maintain order and insist upon unremitting industry. The principle inculcated by the motto over the old gate, *parcere subjectis*, is still observed so long as the convicts deserve it. Unquestioning submission to authority is insisted upon. Without this none of the results achieved as already set forth could have been even approximately attained. Dartmoor is one of the best illustrations of the English convict system which was introduced after the failure of transportation beyond seas. It is a progressive system far superior and more effective than that "Irish system" so much praised and, indeed, overrated. The law-breaker when expiating his offence is put, so to speak, upon a ladder of improvement. He is subjected to corrective processes, but with his own coöperation, so that his fate is really in his own hands. He is first chastened, then strengthened. He begins his penalty in the painful privacy of a separate cell; after six months of irksome monotonous confinement he is promoted to the healthy and laborious life in the open air of a "public

work,”—Dartmoor, Portland, Parkhurst or Borstal. The employment is akin to that of the free workman, embracing many varieties of outdoor labour, digging, bricklaying, stone dressing, pile-driving, plate-laying and all the operations of farming and agriculture. Strong objections have been raised to the so-called “degrading associations,” but the conditions are identically those of all outdoor labour and the supposed mischief is not really great. No idle gossip is permitted; talk encourages idleness, and want of industry means loss of “marks,” or the forfeiture of a part of that precious boon of remission of time which is the sheet anchor of our English progressive system. To that system England owes the Portland Breakwater, the fortifications of the Verne, the extension of the dockyards of Chatham and Portsmouth with their vast inland lakes or basin of water, and last but not least the reclamation of Dartmoor bogs and their conversion into smiling gardens and fertile arable land.

Before leaving Dartmoor, it is right to refer to a graceful act performed in these latter days by a governor of the modern prison. It was in effect atonement for previous blameworthy neglect. In the old days there was much mortality among the war prisoners. The severity of the climate although greatly exaggerated was responsible for much, and numbers suffered from their own recklessness in gambling away their clothing and their constant addiction to drink. Scanty attention was paid to the graves of those who succumbed at Dartmoor, and we read that “the burial place of the unfortunate captives has been sadly neglected; horses and cattle have broken up the soil and left the bones of the dead to whiten in the sun.” Matters were no doubt made worse by the long years during which the buildings remained unoccupied. The reproach was at length removed by Captain Walter Stopford,^[9] who, when governor of the prison in 1865, was at great pains to have the remains collected in two separate enclosures, and two monuments erected to the memory of the gallant men, Americans and Frenchmen, deceased in a strange land, the victims of the sad fortunes of war.

CHAPTER IX

FRENCH WAR PRISONS

French war prisons in Napoleon's time—Civilians detained in France in large numbers—The various prisons on the north-eastern frontier—General Wirion, a cruel and rapacious gaoler—Verdun described—A hot-bed of vice and iniquity—Wirion's exactions—Treatment of prisoners—Wirion's suicide—Succeeded by the inhuman Colonel Courcelles—Evidence of a subordinate, Anthony Latreille—Fierce reprisals—Life at Verdun described by an eyewitness, Captain Seacombe Ellison—Breaks out of the citadel of Verdun and is injured—After long wanderings is recaptured and removed to the fortress of Bitche, commonly known as the "Castle of Tears"—Description of Bitche—The Grande Souterrain.

WHEN in 1803 there was a fresh rupture between France and England and a renewal of embittered hostilities, Napoleon took great umbrage at the action of his marine neighbour. He was hot with anger at the sudden seizure, without notice, of all French ships in British ports, on the declaration of war, and decided upon immediate reprisals. He decreed that all British subjects on French soil should be arrested and detained. This arbitrary act was made worse by the plain notice that the prisoners, for the most part non-combatants, need not look for release. No exchanges were to be permitted and imprisonment promised to become permanent or to last at least to the far-off end of the war. Many thousands of luckless, harmless folk were involved by this harsh measure, altogether at variance with the law of nations. At the end of the war the total reached the large number of more than twenty-one thousand. Numbers of English people had but recently taken advantage of the Peace of Amiens to visit Paris or set up their residence in France. Some of the cases were very hard, as that of the young doctor about to establish himself in a practice upon the south coast, who ran over to Paris for a short holiday but was caught by the order of arrest and held prisoner for many years.

Various fortresses and strongholds on the northeastern frontier were constituted places of durance among which the war prisoners were divided. Of these Verdun, Longwy, Givet, Valenciennes, Arras, Briançon, Cambray, Sedan and Bitche were chief. At one time Verdun was used as a common centre and placed under the supervision and command of a general officer, Wirion by name, whose cruelties and extortions placed him in the category of the brutal and oppressive gaolers who have inflicted so much suffering

on their fellow creatures in all ages and countries. Of Wirion I shall have occasion to speak further. Verdun was the most important of these northeastern places of detention. It is an ancient city of the Gauls and played its part in early ecclesiastical history, the seat of a bishop who kept his state as a count and prince of the Holy Roman Empire. As it grew in wealth and splendour it was fortified and the foundation laid of the strong citadel which survived until the Napoleonic era and has since been worked into the scheme of frontier defence. Its aspect is architecturally imposing with its bishop's palace, citadel and cathedral. It is situated on the Meuse which divides the town into two parts, flowing through rich meadows under umbrageous trees, past well wooded ramparts. It was made the centre and headquarters of the prisoners' depots, and was always crowded with the victims of an unrighteous policy, governed by merciless and rapacious tyrants, and may be taken as typical of many similar places that disgraced the Napoleonic regime. It is but fair to add that when the atrocities committed were fully exposed, the Emperor was swift to call the offenders to account, to weed them out and replace them by honourable soldiers of high principle and good repute, who speedily retrieved the character of their cloth. But the evil deeds of their predecessors stand out in the records of the time and will be best appreciated by a brief reference to the just retribution that overtook them. Of a total of eleven French officers employed in the superior administration of the depots of prisoners, three committed suicide to escape punishment, five were tried by court-martial and sentenced to be dismissed from the service, one was condemned to the galleys, and another reduced to the ranks.

The chief culprit was Wirion, a general officer and Inspector General of Imperial Gendarmerie, the Commander in Chief of the war prisoners, who shot himself; next in order of cruelty was Colonel Courcelles, the commandant of Verdun and senior officer in the department of the Meuse, who was cashiered; three others were lieutenants of gendarmerie, two were aides-de-camp to General Wirion, who were both dismissed from the service. The commandant of Bitche only saved himself by a testimonial of his prisoners. There were many more delinquents, mostly insignificant, against whom the evidence was not sufficiently strong.

Verdun at that time was a hot-bed of vice and iniquity. The collection within the narrow limits of a second class provincial town of persons of rank and affluence,—for the English *détenus* were largely people of good

social pretensions,—for the most part idle and at all times horribly bored and with no legitimate outlets for their energies, or useful means of employing their time, tended to general demoralisation. Detention long protracted, with small hope of enlargement, drove the weak and self-indulgent without mental resources to the solace of the bottle, and numbers became confirmed sots. Well meant efforts to reform them seldom succeeded; deaths from delirium tremens or by *felo de se* were frequent. The argument often used was that when a man could get drunk twice a day for fourpence, he made the best use of his time. Life otherwise was not worth having. A French peasant who had dragged a drunken prisoner out of a ditch and saved his life, asked for his reward. “He would have deserved twice as much if he had left me there. What could be better for me than death?” was the reply.

The place was for years a perfect hell. Gambling tables for roulette and *rouge et noir* had been established by the permission of the presiding authorities and were openly encouraged. General Wirion was a partner and received a large percentage of profit. The rooms were just what may be seen to-day at Monte Carlo; the tables of green cloth covered with coin surrounded by a varied crowd, high and low, English peers and indescribable riff-raff, with loose characters who came in hundreds from Paris. Vice stalked shameless through the throng; high play was incessant, large sums were won and lost, the latter chiefly, and as money could be easily borrowed, ruin, disgrace and death constantly overtook the unfortunate. Napoleon in 1806 very rightly forbade play and abolished the tables, which from the first were only introduced for the English, the French residents not being permitted to gamble.

In such a community as this Wirion and his myrmidons reaped a fine harvest. Fees and fines were levied on the smallest and most trivial grounds; every luxury was taxed by privilege and must be bought at a price. No device was omitted that would put money into Wirion’s pocket. It was said of him that he “persecuted the rich for his profit, the poor for his pleasure.” He had begun life as a police officer and he drew upon his training and experience to establish a system of espionage by which he was kept informed of all that went on; he learned all he wanted to know as to the private means of his prisoners and to what extent he might squeeze money out of them. He began to ill-use them from the moment they appeared in Verdun.

All prisoners on arrival were taken first to the citadel where they gave particulars about themselves—name, age, birthplace, profession and personal description. Then a paper was given them to sign, in which they promised upon honour to conform to the rules of the depot, and to make no attempt to escape, if permitted to reside in the town or beyond it, the latter privilege being extended to a radius of six miles out into the country. This last “parole” was generally kept, but it was evaded by purposely seeking punishment for some trifling offence, as the fact of arrest cancelled the parole.

The privileges purchasable were such as missing the daily roll call, permission to drive or ride for some distance, to belong to clubs, and to organise race meetings. Bills might be drawn on England and would be cashed at twenty-five percent. discount. All wine to be consumed must be obtained from the commandant’s cellars at increased rates. Handicraftsmen or labourers were only allowed to earn wages on accepting a percentage of reduction levied by the governor. The gross total receipts of the governor and commandant were enormous and amounted in a few years to upwards of thirty thousand pounds, secured by the most high-handed and discreditable methods. When in 1809 Wirion was summoned before the minister of war, Marshal Clarke, Duc de Feltre, to give an account of misdeeds and the charges were handed to him, the minister said, “If these things be true, my advice is that you go and shoot yourself immediately.” The wretched general dressed himself in full uniform, went to the Bois de Boulogne and there blew out his brains.

Colonel Courcelles outrivalled his late chief in brutality. He belonged to a respectable family and was passably rich, advantages which neither rendered him sociable nor honest; on the contrary, he was ignorant, wicked, miserly and inhuman; he possessed in an eminent degree every vice and folly of his predecessor without the least particle of his fleeting goodness. Where poverty drove the one, avarice led the other; where passion mastered the first, cruelty triumphed over the second. The former often concealed his exactions under the polite deportment of a gentleman, but the latter disdained such covering and gloried in the exposition of his naked villainy. Courcelles commenced by arraigning the measures of Wirion, whose errors he said he could plainly perceive, but perceived only to plunge deeper into cruelty. He declared that no prisoner should ever obtain the least favour from him, and in this, and this only, he religiously kept his word.

The following extracts from the work of M. Anthony Latreille, who had been at one time a trusted subordinate of Courcelles, but who fell into his bad graces, show the character of this cruel man.

“I was ordered to discontinue my attendance at the *appel*; my intimacy with the prisoners, it was observed, was too much cemented to entrust me with so important a duty. All persons, without distinction, were required to show themselves daily, and money could no longer exempt from this regulation. If any one missed the *appel*, he was immediately conducted to the citadel; and fearing that sooner or later he might get into trouble by the masters of merchantmen, he begged of the minister their removal to another town. This request was accorded and with the exception of two hundred and sixty, of whom some were married and others above the age of fifty, the whole class were marched to Auxonne.

“Courcelles obtained from Paris the powerful aid of the examination of letters, which Wirion could never obtain. The peculation spoken of in Wirion’s administration could not be abandoned; it was too profitable and too facile in the collection, easily to be relinquished. Courcelles, with his associate, Massin (lieutenant of gendarmerie), enjoyed the sweets for two years; during which time ninety-six prisoners escaped and the greatest part got clear off. A lieutenant in the royal navy, in gaol for debt, contrived to break his bars and took refuge at a house in the country, where he was speedily betrayed and given up to Courcelles, who marched him through the principal streets of the city, thumb-screwed and loaded with chains; he was then cast into a dungeon. Some months afterwards he effected his liberation, when the commandant, from feelings of revenge, threw his wife, who had remained behind, into confinement from which she only came out by the interference and upon the responsibility of several gentlemen.

“A declaration now appeared that, if any one decamped, the whole class to which he belonged would be immediately arrested; ‘the only proper method,’ as Courcelles observed, ‘of treating Englishmen.’ This threat was afterwards carried into execution but without the desired effect. The desertions still increasing, Napoleon’s famous decree was published, condemning every prisoner taken in the act of breaking their parole to the galleys. Rejoiced at this severity, the commandant knew not how to contain his satisfaction. ‘Let them depart,’ said he, ‘I shall not miss them.’ This savage pleasure was somewhat abated on finding that, between the date of the law, 23rd December, and 30th January, no less than nine had taken

flight, two of whom were retaken and had sentence passed; but, in spite of every obstacle that bolts, locks and sentinels could throw in their way, they again delivered themselves and finally reached their own country.

“These continual escapes caused Courcelles the greatest torment. It was in vain that he placed guard upon guard, and patrol upon patrol; the idea of his barbarity had fixed itself so firmly on everybody’s mind, that they were anxious to take advantage of any opportunity to fly from him. There was in the citadel a spacious convent, capable of containing five hundred persons and into this he determined a great part of the depot should be conducted. He wrote accordingly to the Minister of War and after some trouble obtained permission to form a permanent depot of certain persons at the monastery of St. Vannes.

“In a short time, about two hundred persons were lodged there, including about one hundred and forty midshipmen. Innumerable representations were made to the commandant but none were answered. A principal inhabitant of the town interfered and having remarked that the reputable citizens were indignant at the punishment inflicted on the *détenus*, Courcelles ridiculed the idea of reputable citizens, observing, that he should have very great trouble to find any in Verdun; ‘they were,’ he said, ‘only concerned on account of letting their lodgings and if their interests did not prevent them, they would be the first to favour the prisoners’ escape.’ ‘The plan I have adopted,’ added he, ‘ought long since to have been followed, but the unhappy Wirion, who had accepted money, trembled and dared not pursue it.’

“As was easy to foresee, the midshipmen not infrequently created riot and disorder. Unoccupied and discontented, their accidental friendships generally terminated in disputes—quarrelling and fighting seemed wholly to engross their attention. Their altercations were but too often submitted to Courcelles, who, without any regard to justice (where justice was indeed somewhat difficult to administer) punished indiscriminately and thus added to the evil. Teased with complaints, he on one occasion shut up fourteen of the most noisy in so small a dungeon that they had nearly been suffocated. Complaint being made by the senior officer, he smilingly answered, ‘The more the merrier,’ and that as the weather was cold, they would serve to keep each other warm.

“Courcelles pretended that his orders were to confine the prisoners in the caverns of the citadel, and not in the convent—that appropriating this to their use from motives of humanity, it was but just, he said, that they reimbursed him for the necessary repairs the building had lately undergone. The midshipmen appealed to their commanding officer; this gentleman promised to resist for them the iniquitous claim. At the expiration of the month, Courcelles desired him to retain a certain sum for lodging money. ‘You may, sir,’ replied the officer, ‘lord it over my countrymen, for unhappily they are too much in your power, but you shall never force me to aid you; and no punishment you can inflict would ever induce me to act dishonourably. Your order is unjust and I will not listen to it.’ This firm language so intimidated Courcelles that he did not enforce it.

“The midshipmen finding that he gave way so easily, petitioned the Minister of War, in hopes that a statement of their circumstances might ameliorate their situation. They stated their grievances as follows:—‘That they had been compelled to purchase his wines; that the difference (a small fraction) between the franc and the *livre tournois* was still withheld; that an attempt had been made to force them to pay for the apartments into which they had been thrust; with other minor things.’

“The petition had the desired effect. The Duc de Feltre, with that justice and humanity which ever distinguished his conduct towards the prisoners, immediately caused the matter to be examined. A general with two British officers were nominated to inquire into it. The general observed to Courcelles that two of the charges were comparatively trifling but that the payment in livres instead of francs could not so easily be surmounted; and he wished to know what he had to say thereon. Courcelles answered, ‘Nothing—I have never had to do with the prisoners’ pay; it is the gendarmerie alone that have been employed in this service; no profit has arisen to me—I am ignorant on the subject.’ ‘Sir,’ said the general, ‘the gendarmerie are under your orders; if they have committed abuses, you are answerable for them.’ I was then sent for; and after answering a number of questions, the following dialogue took place between the two men:

“ ‘How happens it that, resident in a town where so much money has been spent and yourself one of the principal persons that has been employed, no part of the treasure has come to you?’

“ ‘I confess that, since my stay in Verdun, I have annually consumed above one hundred pounds more than my pay and that I have received this sum from the generosity of the English.’ ”

Reference has been made above to the bitter pangs endured by the commandant on the frequency of successful escapes. They were undertaken with remarkable boldness in the teeth of abundant and it might have seemed insurmountable obstacles, and accomplished after facing and surmounting extraordinary hardships and incredible sufferings. This will be best realised by recounting in some detail a few of the most noteworthy evasions of British prisoners of war. One is recorded in a small book, “Prison Scenes,” from the hand of a principal actor in the enterprise, Mr. Seacombe Ellison, the master of a Liverpool merchantman, the brig *Rachel*, carrying sixteen guns. The ship was captured by a French privateer, off the American coast on her passage home from Honduras, and taken to Bordeaux whence her captain and crew were sent to Verdun. His experiences at that much and rightly abused depot have been largely drawn upon in the following pages.

When the hope of release became more and more vague, Mr. Ellison cast about him to compass his escape. In conference with some of his comrades various plans were debated and dismissed as too hazardous; but at last one was adopted. Mr. Ellison tells us that he always viewed the undertaking with dread “particularly when in the morning he looked out of the window and the weather happened to be wet and cold.” The idea was to get across the French frontier, to pass the Rhine and travelling through Baden, Wurtemberg and Bavaria enter Austria and make for the sea at Trieste. This was in effect the route taken when finally success crowned their efforts. But they were to be sorely tried by misfortune before they regained their liberty. The first aim was to rid themselves of the obligation of parole given. As has been said, it was only necessary to commit some trifling breach of the regulations to secure committal to the citadel, from which the open country might be reached without passing through the gates of the fortress; such an escape, moreover, when shut up in the citadel, would exonerate the bondsmen who were jointly responsible with them for safe custody.

All the necessary preliminaries were completed by the intending runaways at their lodgings in town; they bought very privately all the tools and appliances required to assist them in breaking out—gimlets, small lock saws and a fine saw made of a watch spring and set in a steel handle, to be used in filing through iron bars; they also obtained maps and marked out

their projected route. These various articles, with a store of food sufficient for eighteen days, were conveyed during daylight to a secure hiding place in a wood beyond the walls, to which they had access, while the gates were open. At the last moment they secreted the rope to be used in their descent into the ditch, by lapping it round and round their bodies under their waistcoats; it was about the thickness of a log line or a window cord, so that a great length could be conveniently secreted. Carrying all these on their persons they proceeded to the office of the lieutenant of gendarmerie pretending that they were late for roll call. Whereupon the choleric officer promptly ordered them to the citadel under close arrest.

This citadel was familiar ground; from frequent visits they knew all its intricacies and soon saw that the plan they had conceived was perfectly feasible. They had access to the chapel adjoining the citadel and belonging to the convent of St. Vannes. Happily but few prisoners were in confinement in the citadel and no one suspected or spied upon them. A passage through the chapel was effected by taking out one of the panels of the door; a series of holes were bored through with the gimlet but the panel was retained in its place by leaving one bit of wood intact. At the appointed hour the loose panel was broken out, not without noise, but no alarm was given; then all passed through the aperture, although one man stuck fast in the opening and was with difficulty extricated. Once through the body of the church, they groped about seeking a place of exit and came upon an altar above which was a window undefended by bars, through which they climbed and quietly descended into the convent garden. They now gained the open enclosure of the citadel, reached the general's garden, easily surmounted a low wall to find a descent of twenty feet on the far side, down which they slid, narrowly escaping accident. Here they came upon a sentry box and found a sentinel soundly asleep within. They were now at the inner edge of the rampart but not at the point at which they had originally intended to pass; the drop was at least sixty-five feet, nearly double that which they had expected, but they now unwound the ropes from around their bodies and cast lots as to who should go down first. Three fugitives preceded Ellison and descended safely, but Ellison could not hold the rope, which had become slack and slimy, and let go his hold, finishing with a fall of fifteen to twenty feet.

They were now at the bottom of the ditch, two of them, Ellison and another, in horrible pain from their falls, but not seriously injured, and after

a rest they hobbled away to their selected hiding place in the recesses of the wood. At this moment the gun fired announcing the escape, but they crept further in amongst the bushes and were not discovered. Here they lay four whole days and nights, two of them in great bodily pain and all in much discomfort, for rain fell continuously. On the fifth night, when the injured men were somewhat stronger, they left the wood and reached the bank of the Meuse, now closely pursued by villagers who were blowing horns. What was to be done? They had run into the toils, the enemy was before and behind, the river on each side and none of them swimmers. They turned off the road, ran along the bank and to their great joy found a boat, into which they jumped, and were across in a moment and very soon out of hearing of their pursuers. Their situation was by no means secure, but they were undisturbed and at dark resumed their march. Progressing by night, lying in the woods by day, they had still plenty of food and a small supply of brandy, but their chief need was lack of water. By the help of their maps they kept in a pretty direct course, never entering a house or holding any communication with persons they met. On the eleventh day their hiding place was on the edge of a steep hill; one of the party was now exhausted and almost spent, but they would not desert him, being still resolved to sink or swim together. That evening they made a somewhat earlier start and on reaching a village found to their dismay that there were still many people about. One was a gendarme who accosted them, demanding their passports with much insistence; although he could not read, he demurred at accepting the papers put forward, which were not really passports, and while the discussion was proceeding a brigadier of gendarmes came up and all was lost. "Ah, gentlemen," he exclaimed, "I am glad to see you; I have been expecting you for above a week," and pulling out a paper he read out their names and descriptions. Next morning the disappointed fugitives under a strong escort began to retrace their steps towards Verdun, which they re-entered on the second day. "We made," he relates, "as may readily be imagined, a sorry appearance; our clothes bearing evident signs of what had been the nature of our lodgings, and our linen shewing that it had not lately been in the hands of the laundress. We were paraded through the streets into the citadel and lodged in the Tour d'Angouleme, a small round building with only two apartments, one above the other, with a circular stair outside, leading to the upper one."

Soon afterwards a posse of gendarmes appeared and proceeded to make rigorous search. The prisoners were ordered to strip to their shirts, their hats and shoes were examined, their neckerchiefs, coats, waistcoats and pantaloons and stockings were visited and explored, but nothing was found until a button was seen to exceed a regular size and when cut in two was found to contain a double louis d'or. After this every button was disembowelled but no more cash was detected. Yet Ellison managed to retain five double louis sewn inside his flannel waistcoat and one under the arm of his coat. After the search, the prisoners were separated, a sentry placed over them and no communication allowed between them. The only food issued was a loaf of black bread and a pitcher of water. No bedding was given, not even straw.

To have failed brought down on the recaptured runaways the full weight of the commandant's wrath. They were bullied, brow-beaten, threatened with all manner of pains and penalties, until they would make confession of what had induced them to attempt escape, who first suggested it, who aided and abetted, who procured the tools, who did the actual work of cutting out, and which of the fugitives had first proposed an escape; and no credence was given to the reply that the subject of escape had been the constant theme of conversation with the prisoners, a subject of perennial interest to all captives since they were first deprived of personal liberty. The commandant would believe nothing and in his fury ordered the culprits to be put in irons hand and foot, and kept so continuously day and night, subjecting them to exquisite torture in their damp, dirty, dungeon, unable to cope with the vermin that infested it. The irons were of diabolically ingenious design and very heavy, so that at best those weighted with them could only shuffle about, moving two or three inches at a time as far as the sill of the window for a breath of air.

A still sharper recompense was to be their portion. It was decided to remove them to another prison, Bitche, a gloomy fortress adjudged as the receptacle for the turbulent and disorderly, a place so hideous that it was commonly known as the "Castle of Tears." En route they met fourteen of their fellows chained together on their way to Metz for trial by court-martial, on a charge of plotting to blow up the powder magazine of the fort in which they were lodged. They had attempted to escape by an underground passage leading out to the open. They had cut through the wooden door, undermined an iron one, and in forcing the third alarmed a

sentry who gave the signal, and they were taken red-handed. Their trial was long and patient, and ended in conviction with sentences to the galleys for terms varying from seven to ten years. But after promulgation the president of the court announced that as many of the accused were British officers all would be pardoned out of respect for their cloth.

Our prisoners proceeding to Metz were, contrary to usual custom, often allowed to hire vehicles. The general rule was to march by "correspondence," passing, that is to say, from town to town, or village, and from the headquarters of one brigade of gendarmerie to the next at a distance of five or six leagues. The machinery existed really for the transfer of conscripts, thirty or forty thousand of whom were continually on the move through the country, either to join their regiments or in durance for having already deserted. It was a common sight to see thirty or forty of these conscripts chained in a string like a lot of horses taken to a fair. It was a dismal procession from brigade to brigade, and prison to prison. The long tramp by day, the night spent under lock and key in cold damp places without fire or special covering, or more than a scanty allowance of straw. Austrian and Prussian prisoners were more harshly treated than the English or the conscripts. One of the gensdarmes who had formed the escort of Prussians into France told Mr. Ellison it was a constant practice to shoot in cold blood any who fell down from fatigue on the road.

This fortress of Bitche which had such an evil reputation was situated some thirty miles north of Strasburg and the same distance from Metz. It stands upon an isolated rocky hill rising a thousand feet above a verdant plain. It dates from the reign of Louis XIV and was so highly esteemed as a frontier defence that vast sums were spent on its construction. The French king, indeed, when called upon for more money, asked whether it was being built of golden bricks. Although excavated out of the solid rock, which was cut down perpendicularly from ninety to a hundred and fifty feet deep, it was faced all round with masonry. The central space was filled with barracks, store-houses and magazines. At each end were two strong works styled respectively the Grosse Tête and the Petite Tête, separate, but connected with the main fort by drawbridges. Fifty feet below the Grosse Tête a mortar battery had been built out and another battery mounting ten heavy guns commanded the approaches to the entrance to the fort. This entrance was on the east side where the carriage road, after winding round and round the hill, ended in a long incline, raised upon arches, ascending to

the drawbridge and the main gate. Here began a tunnel, cut into the solid rock, blocked by two other gates, one in the centre and one at the far end. The garrison consisted of seventeen gendarmes and a hundred veterans, and the place was under the command of a Major Clement who is spoken of as “a worthy, indulgent officer with much of the milk of human kindness in him.” He desired to govern humanely and showed great forbearance, but was very sorely tried by his charges, for the most part the refuse of the other prison depots. At this place were congregated the dissolute, the abandoned, the profligate, the drunken and the reckless.

The Grande Souterrain—the great underground cellar or main dungeon—was a perfect pandemonium, filled with rough, savage sailors, desperate dare-devils, rendered utterly reckless by interminable confinement, untamable, ungovernable, a constant terror to their guardian, who dreaded coming in contact with them. There can be little doubt that if they could have seen their way to leave France finally they would have risen, overpowered the garrison and walked straight out of the fort into the country. They were ripe always for disturbance; the least thing offended them. One of their crowd was an Englishman who bore a colonel’s commission in the Russian service, but who had been arrested in France on suspicion of being a spy. He was a prime favourite with the sailors and when he was committed to the *cachot* for some prison offence, they combined and rescued him from arrest. Upon this the garrison of veterans intervened, but their appearance on the scene was the signal for a general mutiny. The prisoners tore up the guard beds to provide weapons and armed themselves with great billets of fire wood, bidding defiance to the old soldiers. Their leader, however, cautioned them not to be the assailants. “Let us wait,” he cried, “till blood is drawn from any of us; then we will fall upon the Frenchmen and murder the whole lot.” Their attitude was so imposing, their determination so plain that the authorities practically gave in and on being promised by the prisoners that they would behave peaceably, withdrew their veterans.

Again, it was a standing order in the fort that all lights should be extinguished at eight o’clock, but on occasions when fresh inmates arrived, when drink was on tap and the spirit of rejoicing prevailed, this regulation was openly defied. If the gendarmes after mildly protesting ventured down into the Souterrain they were met with a storm of missiles, hats, shoes, and

logs of wood were thrown at the lantern as a target and then at the gendarmes themselves, who were compelled to beat a hasty retreat.

Boxing matches and prize fights were of constant occurrence and at first the guards, not understanding them, desired to interfere, thinking the prisoners might injure one another; their interference was fiercely resented and the commandant decided to leave them alone, saying that if they would they might kill each other; that he, for his part, would listen to no more complaints, nor give the injured redress, and henceforth the prisoners must govern themselves. They took him at his word and disposed of all offences by a formal court-martial, chosen from their own body, when accused and accuser were brought face to face and the former, if found guilty, was forthwith flogged with a cat o' nine tails, which after use was entrusted for safe keeping to the brigadier of gendarmes. But no gendarme might raise his hand with impunity against a prisoner. One dared to strike a sailor with the scabbard of his sword, which the offended tar snatched out of his hand and threw over the ramparts, adding, "There, you may go and fetch it for yourself."

All were determined prison breakers at Bitche; attempts at escape were frequent, and kept the poor commandant constantly on the rack to circumvent them. He was greatly blamed for the cruelty employed in enforcing safe custody. One story is told of a ship's carpenter who had escaped from another depot but was caught and brought to Bitche, where he was lodged in the Grande Souterrain. With active mind and practised hands he contemplated breaking through from the underground into the ditch of the fort and worked steadily, assisted by two more, night after night until they had reached a last door. It was said that their progress had been watched and regularly reported to the commandant by his spies, and that when the final attempt was to be made the commandant was stationed with a party of gendarmes outside the door to meet the fugitives as they came through. A cowardly attack was at once made on them; they were fired upon and slashed at with sabres, so that two were stabbed to death, but the third saved himself by jumping back into the prison. As a warning to others, the two dead bodies were publicly exposed next day, but so much disfigured by wounds that they were barely recognisable.

Another nearly successful escape ended disastrously. A naval lieutenant and five others, occupying a dungeon beneath the Grosse Tête, contrived to loosen one of the iron bars of the grating and get through. They had

possessed themselves of a rope which they had made fast to another bar and part of its length was left lying across the passage. Unfortunately a sergeant with a relief of sentries, stumbled over the rope, and the prisoners who were already outside, descended the rope in great haste one after the other. It suddenly snapped; the lieutenant who was placed lowest on the rope fractured his skull and the others following were seriously injured. One strained both ankles; a second from concussion of the brain lost his reason, and the remaining two were more or less bruised.

On arrival at Bitche they were consigned to the Little Souterrain, only thirty-one steps down and occupied by the better class of prisoners. Our friends soon became habituated to their new quarters, which were less objectionable than they had expected. They were permitted to hire beds, bedding and linen from the town and purchase cooking utensils. Provisions cheap and plentiful were brought for sale at the gate, but all were marched down in turn under escort to do their shopping in the town. They had been deprived of their watches and money on their first arrival, but all valuables were presently restored to them. Trouble came with the warm weather and with it intermittent fever, when the sufferers were almost distracted with the noises around them,—dancing upon the benches, singing, carousing. One of the party, luckily for himself, had friends at court and was removed into a room upstairs, the inmates of which had matured a plan for escape and were on the point of putting it into execution. He was let into the secret, his coöperation accepted and in a few days more he was gone; it was one of the first of the successful escapes made.

CHAPTER X

LATER RECORDS

Perpetual attempts to escape from Bitche—Brutal measures of oppression—Many casualties from accident and murderous assault by guards—Fresh attempt at escape by Captain Ellison and comrades—The majority of the party captured—All taken back to Bitche—Again committed to the *cachot*, then to the Grosse Tête—They escape through the floor above and descend to the outer ramparts—Painful pilgrimage to the Rhine, which they cross—They land in Baden and finally arrive at the Austrian frontier—They are passed on to Trieste where they take ship for Malta and England—Mr. Boys, a young naval officer, escapes with others from Valenciennes—Returns to the Dutch coast with a sloop of war to assist in bringing off other prisoners still waiting for rescue—Last words about Verdun—Reforms under a new governor of high character—The invasion of the Allies in 1813-14 breaks up the war depots—Prisoners are withdrawn into the interior to be finally released on the abdication of Napoleon.

As the winter approached, a fresh attempt at escape, this time from Bitche, was undertaken by Mr. Seacombe Ellison and his comrades. After a careful reconnaissance of the lay of the land, it was resolved to break through on the far side of the barracks they occupied. After collecting and secreting the usual materials—gimlets, pick-locks and ropes—they eventually got through a door of communication leading on to the ramparts. It was the 8th of December, a dark night, blowing hard with sleet and snow. The door passed, they descended a flight of stairs into the yard and after cautiously ascertaining that the coast was clear, they crossed to the outer wall, where it overlooked the steep incline leading to the main gate. Their rope was affixed to a heavy stone brought on purpose; it was lowered on the far side, and crowding into the embrasure, the first to descend were on the point of climbing out when a couple of the French soldiers came up to the next embrasure and stood there talking for a time, but they presently

disappeared, having discovered nothing. As soon as their backs were turned the drop was made by all, but in such haste that everyone's hands were terribly lacerated by the rope. It seemed unlikely that any further descent was possible, but when all were lowered and the incline reached, it was seen that the drawbridge was down; all crossed it and proceeded on a dreary journey beset with enemies, the wind howling in their ears, the sleet beating their faces and the blood trickling from their finger ends.

The prisoners now broke up into parties and made for the town, on reaching the outskirts of which they heard the gun announcing their escape. They pressed on by any road that offered until they reached the first wood, where they lay down to rest and await daylight, which came about five o'clock, when they could examine their appearance and the effect of the night's adventures. The sight beggared description.

"I was the only one," says Ellison, "who had the use of my fingers, having escaped with merely two large blisters, one on the inside of my forefinger and the other on the inside of the middle one, both on the right hand: but my companions were in a dreadful state; some of their fingers were stripped to the bone and none of them had a sound finger on either hand. Here was a situation! No plasters, no bandages, no comforts of any sort, save a bladder of brandy that I had secured—exposed to the elements, with no covering but the leafless trees and the canopy of heaven. My task was an arduous one, for I had to do almost everything for them; and began by cutting off the laps of their shirts and binding up their fingers, which I did as well as my materials would permit, having neither needles, nor thread, nor pins, nor anything save the linen to keep the cold from their wounds; in fact, we were starving both within and without. K. had charge of a ham which he was carrying down the wall in his teeth, but unfortunately he lost it and we found ourselves with only a piece of a loaf and the brandy. I had a new pair of shoes and a pair of warm stockings in my pockets, which I put on, expecting that they would have warmed my feet; but in that I was sadly deceived, for they became much colder afterwards than they were before and were so benumbed that I was almost uncertain during the whole day whether I had any feet at all. I never since suffered anything like it however wet or cold the weather. In the middle of the day the sun came out, which by melting the snow on the trees over our heads did not add to our comfort.

"At the edge of dark, when we were about quitting our retreat, a curious scene took place. Some of us found great difficulty in rising we were so

benumbed; we stretched out first one limb and then another, until we were able to set our bodies in motion, and after we had so done, it was some time before the circulation of the blood was restored. Leaving the wood, we saw a cottage, and hunger being importunate we went up to it. A man was standing at the door, who told us he had nothing for himself but potatoes. We asked him the road to Strasburg, which he pointed out and telling us we had chosen bad weather for our journey, bade us good night. The road we were on was bad—in many places knee deep in mud—poor K. often crying out, ‘O Ellison, put up my shoe heel;’ and I exerting my patience as often put it up; until at last I inadvertently used one of my wounded fingers which tore off the blister, and then I could not help showing some of the infirmity of my disposition. We passed a number of foundries, which illuminated our way; and about eleven o’clock came to the small town of Niederbrun which we at first took for a straggling village. While considering how to proceed one of our companions was suddenly seized with violent pain and lay motionless in the middle of the road. What was to be done? If we left him there the consequence would have been certain death; for it had then begun to freeze. It was agreed that two of us should go into the town to reconnoitre. Dacres and I volunteered and found all quiet; returning, we went up to a window in which was a light and where we saw a tailor at work; he came to us, but not understanding a word of French and we not much of his provincial dialect, we were not able to obtain any information. He pointed out to us a wine house. ‘Are there any gendarmes?’ we asked. ‘Nicht the gendarmes, nichts the gendarmes,’ was his reply. We bade him good night but staid a little to watch his motions.

“After seeing him resume his work, we returned and found our companion something better. We promised if he would exert himself we would stop at the first lonely wine house we came to. He arose; and when we arrived opposite the house which the tailor had shown us we held a consultation if it would be safe to enter and concluded it would not. After walking about two miles farther we came to a solitary house and seeing a light still burning, went in and found the landlord a civil fellow, understanding French. He asked no questions, and at our request brought us some supper. When he observed me cutting the meat for the others, he asked, ‘What is the matter with your hands?’ We answered that we were conscripts, escaped from one of the Flemish fortresses and had maimed them descending the walls. Although we were nearly famished when we

entered the house, the heat of the stove made the room so oppressively hot that it turned us all sick and destroyed our appetites. He was sorry for our situation and told us we were seven leagues from the Rhine. This surprised us, to find that after walking a night and a half we had only shortened our distance nine miles. He directed us to a neighbouring village, where, he said, we were sure to find a faithful guide. Seeing that he took such an interest in our welfare, we asked if he could not provide us one. He replied, 'There is one belonging to the village; I will go and see if he be at home.' He soon returned with a smart looking young man who said if we would walk at a quick pace he would have us across the Rhine before daylight. After making a bargain with him and paying our worthy landlord, we started. The idea of being so soon out of Napoleon's grasp inspired us all with renewed vigour, especially the invalid, and we marched with spirit. In a short time we passed round the ramparts of Haguenau. Our guide then left the road, going through woods and across marshes. The moon now rose beautifully bright and the frost had been so intense that we walked, where the water was shallow, over the ice. Occasionally I served out a little brandy, and although heated with walking my hands became so benumbed during the operation that I could scarcely tie the bladder up again. Proceeding onward we came to a small rivulet where K., miscalculating the width and losing sight of the French proverb, '*Il faut retirer pour mieux sortir,*' made a spring and reached the opposite side; but the weight of his body being behind the perpendicular of his heels he could not keep his standing and leaped backwards up to the middle in water. He was soon in a dreadful state, his wounded hands smarting with cold and his pantaloons frozen stiff as boards.

"As the day approached, the sky became overcast; a cold easterly wind sprung up, and we felt as if it went straight through us; our guide discovered that he had missed his way; and the bleak dreary scene around us was altogether dispiriting. There was no wood in sight; and if there had been the cold was so intense that we could not have borne it. At a little distance was a village upon approaching which we came to a barn where two men were thrashing by candle light. We offered them a crown each, and they promised to conceal us until night. Then mounting upon the straw we covered ourselves all over and regained some little heat. Our guide became troublesome, wanting his pay. We told him he had not fulfilled his contract and therefore ought not to expect it. Finding we could not pacify him we

promised to double the sum as soon as he should put us into a boat. With this he appeared contented and we lay unmolested until about half-past three, when we were discovered by a man and a woman who caught hold of us and said we were thieves. We replied that we were honest men. 'Then,' said they, 'you shall not be molested; therefore make no resistance; it will be in vain as the whole village is aroused. Come with us into the adjoining house.' We did so and there found the mayor and a posse of villagers. We went to the opposite side of the room and had no sooner faced about than the good woman pointed with her finger to another door. We took the hint and bolted.

"They chased us for a little distance, but we soon lost sight of our pursuers. A little before dark we entered a wood which our fear caused us to penetrate so far that we had great difficulty to find our way out again. I had run with my shoes in my hand by which means I bruised one of my feet and scratched the ankle, which afterwards laid me up. Having regained the road, almost famishing for lack of food and perishing with cold, we proceeded at the best pace we were able and had not gone far ere we found ourselves so close to a man on horseback that we could not escape him. He passed us a few yards and returning, entered into conversation. K., seeing that he was armed, went up to him and said, 'You are a gendarme.' 'No,' said the man, 'I am not; I am a *douanier*,' (custom-house officer). K. said, 'I do not believe it; you are a gendarme and I will tell you plainly that we are Englishmen and if you attempt to obstruct or betray us we will murder you.' The man again protested he was a *douanier*. 'Then, can you get us across the Rhine?' we asked. 'Yes, if you will remunerate me according to the risk, for I am,' said he, 'a poor man, with a wife and a large family and a little ready money will be a great help.' 'What is your demand?' 'Fifteen louis.' 'That is too much, we will give you ten.' 'I will not undertake the business for anything less, seeing I run the risk of losing my situation, and being sent to the army. Give me only my price and I will brave the danger and have you over in half an hour.' The man acted his part so well and made so hard a bargain that we began to waver. The proposal was almost irresistible in our painful state; we therefore held a parley and put it to the vote, when K., Dacres and B. were for it; and away they marched alongside of the man, some of them with their hands upon the horse. In a little time we crossed a bridge and coming to a house near it the fellow called out, '*Tuez-moi ces coquins-ci*' (kill me these rascals)—and drawing his sword, made a cut at K.

Then from behind the house started out twenty or thirty armed men, some mounted, some on foot, and told us to surrender.

“A-d-n and myself having been rather more suspicious than our companions, had kept a little behind and ran back in different directions. I passed the end of the bridge and heard my pursuers, horse and foot, scamper over it; by and by the horns were sounding in every direction. I kept on a narrow path that led me on to a common, upon which I rambled about for several hours and then found myself close to the place where we had been attacked. I again took the narrow path recollecting that I had seen a small bridge on my right. I went over it and soon found myself on the borders of the Rhine, the current making a tremendous noise. I proceeded along its banks until I came to a lone house with a light in the window; I was going softly up to observe who was inside, when I was set upon by two dogs; I ran and directly afterwards came to a place where two boats were chained and was in the act of stooping to cast one of them loose when two men who had been lying in ambush suddenly sprang up, collared me and asked where I was going. I replied, across the river, and if they would assist me I would give them three louis. They said it was too late that night, they would take me to my companions and we might cross together in the morning. Whilst this was passing, three gendarmes came up who marched me off to a village where I found the male inhabitants armed with pitchforks, staves, etc., keeping guard over the prison in which were secured my unfortunate companions, all the gendarmes having been away in search of A-d-n and myself. In about two hours the former was brought in; he had lain in a ditch upon the ice until he could scarcely move and was taken as soon as he crawled out. Being all secured, we were left in charge of the jailer, the peasantry still keeping guard outside.”

Once more the disappointed prison-breakers were marched back in great physical suffering and still more sore at heart, trudging painfully along mile after mile and exposed to all the weathers, to reach their dismal night's lodgings, drenched to the skin and starved from want of food. A rough reception met them at Bitche from the indignant commandant who bitterly upbraided them for abusing his lenity by breaking their parole, and laying him open to censure in attempting their escape. No parole had been given, as a matter of fact, but the commandant was pleased to say so, and thought it warranted his committing them to the underground *cachot* although all were better fitted to become patients in a hospital. While the hurts were still

unhealed they were called upon to proceed to Metz to appear as witnesses at a court-martial, held upon a gendarme supposed to have connived at their escape. They chivalrously refused to incriminate him, and drew down a reproof from the president of the court, who declared that the English would say anything to screen a man who had rendered them a service. But the gendarme had a wife living at Bitche and when they returned to the fort she was their firm friend.

Now with undefeated perseverance they cast about to contrive some fresh means of escape. Confinement in the *cachot* was ended, and all ten in number were lodged above ground in a small room in the Grosse Tête. After examination of their surroundings they found that in a room in an upper story a window projected and was constantly left open as the room was used to dry the linen from the laundry. If they could gain this room above they might lower themselves to the ground on the far side of the first rampart, but within the mortar battery mentioned. Of what lay beyond they could form no idea. The number of walls remaining, their weight, the nature of the ditches, whether wet or dry, their width, whether there was any egress, the number of sentries if any,—all this was a mystery. Nevertheless they meant to take all risks and trust to the unknown if they could but succeed in the first step,—that of breaking prison.

An essential preliminary was to provide rope to enable them to scale the walls. The usual well known devices were adopted. Everything that could serve was utilised. Sheets, blankets and shirts were torn into shreds and woven into a cord which was covered with linen to save the hands in slipping down it. Money was raised on bills given to an old lady in the town; Ellison, the leader of the enterprise, was in possession of a gimlet and a saw, invaluable instruments for penetrating doors and barriers. Food was laid in; bread and beefsteaks were brought up from the town below and three quarts of brandy carried in bladders. When all was prepared, the first dark stormy night was chosen for the attempt and the first step was to pile the mattresses on top of each other so as to give access to the ceiling in order to break into the room above. The floor was of oak battens so hard that the saw broke in two pieces, but the largest was fitted into a fresh handle by these resourceful sailors, the work proceeded, and after nine hours of toilsome labour, the passage through was completed. It was said that when the commandant entered the room the next morning, upon seeing

the hole in the ceiling, he lifted up his hands and exclaimed, "The devil himself could not prevent the escape of an Englishman."

Daylight was at hand, and when it broke they could see their way down, see also the sentry ensconced in his box thinking more of shelter than of keeping a good look out. In the course of a few minutes all of the party went down and were safely landed at the bottom of the second rampart where they thought themselves free of the fort. But alas, fifty yards distant was a third rampart apparently of a great height, part of the rope had been left behind at the second rampart, and there was not enough left to reach the bottom of this third obstacle in safety. All went down, however, dropping the last twelve feet without accident except to one who broke his leg and had to be left behind. They were now in the ditch and they ran along it until they reached a flight of steps which led up to the glacis. At the top they had a full view of the whole country and, pointing for the distant mountains, gained the shelter of a wood where they were securely ensconced when the signalling gun fired.

What followed was an exact repetition of the adventures encountered in previous attempts; lying by till nightfall, a weary tramp under pouring rain along roads knee deep in mud, skirting villages and single houses to take refuge and seek rest in some friendly wood. A more useful friend was met, a villager who, although he said,—“You are from Bitche, I heard the gun yesterday morning,”—gave them food and found them a guide. They were now in the mountains of the Voges, walking parallel to the river Rhine, ten or twelve miles distant. One of the party was taken exceedingly ill and they were detained to attend on him. A couple of woodsmen next came upon the scenes and brought them wine and hot soup, and the sick man was so far restored as to be able to continue the arduous climb across the steep mountain country. A succession of guides to whom they were obliged to trust, fearing treachery all the time, got them at last to the river bank where they made a last halt in a wood, while a guide went in search of a boat to ferry them across. The best he could find was a species of raft made of five boards, but even now he would not allow the fugitives to embark until they had met his peremptory demand for more money. With freedom so near at hand, they would have given any sum to complete their escape and were soon half way across the river. When they landed it was on the territory of Baden, about fifteen miles below Strasburg and on neutral ground. This was

the seventh day after their departure from Bitche, but the whole distance traversed was only forty miles.

Their situation was still precarious, for although they were out of the immediate grip of France, Napoleon's authority was felt in neighbouring countries and the people of Baden were expected to arrest all vagabonds who carried no passports and could not satisfactorily account for themselves. Still the Duchy of Baden was safer than that of Wurtemberg where there was an officious police. Moreover, the French invasion of Austria was imminent and the French armies would soon traverse this country, calling to strict account any who had succoured the enemies of France. Still they held on, facing many dangers, till they crossed the Danube, not far from Ulm, and next the Iller which brought them to Bavarian territory; then by the road from Memmingen to Munich, enduring terrible fatigue and suffering many vicissitudes. The Bavarian police were very inquisitive and disbelieved their story. This was at the Austrian frontier and yet it seemed certain that they must be detained on the Bavarian side. Yet they were allowed to pass despite their improbable story and their suspicious appearance,—their worn and weather-beaten countenances; their ragged clothes, their whole aspect that of disreputable tramps and vagrants.

Austria was at the time the ally of England, and the fugitives fearlessly entered the guard house and claimed the protection of the Austrian government. They were politely but not too cordially received and passed on under escort and delivered up at the police office at Salzburg, having thus accomplished their escape after a toilsome and harassing march of twenty-two days through by-ways and hedges, beset by enemies on every side, exposed to the inclemency of a severe winter and all the painful consequences attendant on light purses. From Salzburg they eventually proceeded to Trieste where they found an Austrian brig on the point of sailing for Malta, which, after twenty days on the voyage, they reached, and stood once more on British soil.

I have thought the foregoing escapes sufficiently interesting to deserve a detailed account. They are typical of numbers attempted with various results and are inserted to show the undaunted spirit animating the breasts of prisoners of war, chafing at their long and seemingly hopeless captivity. Another which exhibits much the same features, if anything more strongly developed, may also be quoted here to complete the record. It is a narrative of about the same date, which has come down to us, giving the thrilling

personal adventures of a young British naval officer in his escape from Valenciennes. This was Mr. Edward Boys, at the time a master's mate and afterwards commander, who was taken by the French off Toulon in a recaptured prize. With other prisoners, he made the painful pilgrimage across France from the Mediterranean to the north-eastern frontier, and in due course reached Verdun, having travelled a great part of the way on foot or pony back, and having spent five months on the road. His account of Verdun tallies almost exactly with that given in the preceding pages. He bears witness to the oppressive misgovernment of the military authorities, the extortions practised, the encouragement given to vice, the dissoluteness and depravity prevailing among prisoners and civilian *détenus*, the public gaming tables, the general looseness of morals, the debauchery and drunkenness culminating too often in despair and suicide. It is unnecessary to recapitulate the many atrocities perpetuated in this remote corner of a great country where for a long time all restraints were withdrawn and a small gang of dishonourable villains were permitted to bring shame and disgrace upon France.

Mr. Boys ate out his heart in captivity for nearly five years without making any attempt to escape, although a few of his comrades and intimate friends succeeded in getting away. Meanwhile the question of a general exchange of prisoners had been mooted more than once, but without result. The British Government would not admit that the *détenus* were "prisoners of war" and refused to give up French soldiers and sailors as the equivalent of these unjustly detained civilians (albeit ill-used Englishmen). By this time the French forces were seriously depleted and Napoleon was experiencing increasing difficulty in filling his ranks, which the exchange of war prisoners would have appreciably assisted.

The future looked black and hopeless. Imprisonment threatened to be absolutely endless when a rift broke through the clouds and a change in the situation seemed to favour the chance of escape. General Wirion, who was still in the ascendant, was at enmity with the town of Verdun and out of spite strongly recommended that the depot of prisoners should be removed bodily to Metz. Napoleon, however, owed Metz a grudge for not supporting him when he sought the suffrages of the city to endorse his assumption of the Imperial Crown, and he refused to help it at the expense of Verdun. Wirion, foiled in this direction, decided to injure Verdun by reducing its numbers. He transferred new arrivals elsewhere; he banished all he could

condemn as offenders to Bitche, and finally made a great sweep out of the midshipmen on the plea that they were *trés mauvais sujets* and that Verdun was too weak to hold them. All of these youngsters, including Mr. Boys, were put under orders to proceed to other prisons, Valenciennes, Givet and Sarrelouis, the two first on the northern, the third on the eastern frontier of France.

“The northern expedition being ready,” says Boys, “we were placed two and two upon bundles of straw in five wagons and set out escorted by the greater part of the horse gendarmerie of the district, aided by the infantry.... Four horse gendarmes formed the van and four the rear guard, one on each side of every wagon, and twenty foot soldiers in files, with others in each carriage, made up the escort, the commander bringing up the rear on his charger. Whenever the road passed by a wood, which frequently occurred, we were halted to give the infantry time to occupy its skirts; two gendarmes on each side were posted midway while the rest displayed their pistols somewhat ostentatiously by way of intimidation. I have been thus minute in detailing the strength and manner of the escort, not only to contrast it with similar detachments in England, where twice the number of prisoners with infinitely greater facilities of escape might be safely entrusted to the car of a sergeant’s guard, but also to show how fully persuaded Wirion was that some of us would make the attempt.”

All along the route the prisoners except when put upon their honour were on the alert to jump out of their wagons and run away, but no opportunity offered until they were safely lodged in the fortress of Valenciennes, which was reached on the 17th August, 1808. The *trés mauvais sujets* were lodged apart in a small house within the citadel where fourteen hundred seamen also occupied barracks crowded into the space of an acre, and no one was suffered to go beyond these limits. Escape from this citadel appeared quite impossible. It was enclosed by a wet ditch, merely one foot of water lying over six feet of mud, and to swim across was out of the question. The citadel had two gates, one to the south and one to the north, with a strong guard at both. There was another sally port in the western rampart leading into an outwork, thence into a garden, and opening at length into the country.

For months Mr. Boys waited, reconnoitering his ground and vainly seeking to persuade some of his comrades to join him in his bold adventure. It seemed too hazardous and difficult of execution and the officers to whom

he opened his mind one and all declined to become concerned in the enterprise. His desire got wind and became common gossip, so much so that it reached the ears of the secret police, a very active and inquisitive agency in all the French prisons, and Boys was closely watched. To disarm suspicion he sent for all his heavy baggage and his greyhounds which had been left at Verdun, and seemed determined to make his home at Valenciennes. These hounds were of much assistance to him in planning his escape. The gendarmes were sportsmen and borrowed the dogs but they would not work without their master, so Boys was suffered to take part in drawing the neighbourhood and thus learned much of the lay of the land outside the fortress. He decided now not to attempt departure by the northern sally port but resolved to climb into the upper citadel and scale the eastern fortifications. Companions still hesitated to join him, but he began his preparations notwithstanding. Tools, provisions, a map of the surrounding country,—all were laid in, secretly obtained through a friend living in the town. A rope was still wanting, but he bought up all the skipping lines of the French children who were much given to this diversion, and it attracted no suspicion, and he soon had length enough to lower him from the top of the breastwork to the drawbridge leading to the upper citadel. The number of courses of bricks in the wall had been counted and an approximate calculation made. The same good friend in the town arranged to have iron handles fixed to a pair of steel boat-hooks, which were to be used as picklocks. A second rope was required and secured by a stratagem. There was a draw-well in the midshipmen's yard with a worn and nearly unserviceable rope which was rendered utterly useless by hacking at the straw. A subscription was opened and a new rope supplied which would be ready for use at the supreme moment.

At length fresh overtures made to other prisoners led to the grudging assent of two midshipmen to join in the expedition, a third after long hesitation also agreed, and a fourth youngster becoming possessed of the secret immediately proposed himself, thus making up a party of five. The projected escape, although surrounded with difficulties, did not seem impracticable. It meant scaling the inner wall, ascending the parapet unseen by lynx-eyed sentinels and patrols ever on the alert, to chop down two ramparts each forty-five feet in height, to cross two drawbridges and force two or more doors with ponderous locks. The obstacles to be surmounted might well have daunted the stoutest hearts, yet these brave spirits chafing

at their prolonged confinement, losing sea service, and precluded from taking part in the war, were willing to face them, resolved to surmount and persevere with unflinching constancy to the bitter end.

The 15th November was chosen for the enterprise, a dark and stormy night, a fresh wind blowing and not a star to be seen; the leaves were falling in abundance, raising a rustling noise on the stones which deadened the sound of footsteps. The fugitives met in the common room to bid adieu to their comrades remaining behind, who seeing them equipped for the road, knapsack on back and rope slung on the shoulder of one of them, were disposed to jeer and laugh at their boast that they meant to be at home within ten days' time. But they entered into the spirit of the thing and next morning at the regular muster when their comrades were missing answered for them, "*Partis pour l'Angleterre*" (started for England).

The start was made at 8 P. M. Every fugitive carried a clasp knife and a small packet of fine pepper, the first for defence if attacked, the latter to be thrown into the eyes of their assailants to cover retreat. Boys and another were to go first to fix ropes and open doors, the rest to follow after an interval of a quarter of an hour; if the leaders were shot the rest could retire in safety; if they in their turn were detected, the others ahead might still gain the open country. All drew their stockings over their shoes to deaden the sound of their movements. Those ahead carried the rope and a couple of stakes on which to fasten it. They surmounted the first wall, passed through a garden, crossed a road and silently climbed the bank at the back of the north guardroom on their hands and feet. They were now at the highest point and in danger of being seen by some of the many sentries, but these for shelter from the bitter wind nestled close inside their boxes carefully crying aloud every quarter of an hour, "*Sentinelle prenez garde à vous,*" the French equivalent for "all's well."

The stakes, one of them a poker, were driven into the earth on the slant, one behind the other, and the eyelet hole of the draw-well rope slipped over, the other end being dropped into the giddy abyss till it touched the drawbridge below. Boys, who was the first to descend, was three parts down when a brick fell, struck against the side and rebounded on to his chest. This luckily he caught between his knees and carried along without noise. Then he crossed the bridge and waited for Hunter, who descended with equal care and silence. Opposite was the entrance to the ravelin, an arched passage ending in a massive door, securely bolted, against which the

picklock was useless, and failure seemed imminent unless they reascended by the rope and tried elsewhere. They thought of dropping into the canal and floating along on their backs—an impossible feat, “there being too little water to swim and too much mud to ford it.” Then a bright idea came to them, to undermine a passage under the door and with their pocket knives they slowly and painfully effected this, being reinforced at the work by the arrival of their companions.

Creeping through the aperture, they followed the passage till they met the drawbridge at the end. It was raised but there was room to climb over and pass to the far side by the *garde-fous* or bars serving as rails for the bridge. A second arched passage led under the ravelin and ended in another great door which, luckily for them, had been left unlocked by the gendarmes. They were now in the upper citadel and all that remained was to lower themselves over the last rampart and so down to the crown of the glacis. Two narrow escapes ensued: the stake on the cope of the parapet holding the rope gave way, and Boys would have fallen fifty feet had he not caught and held himself by the long grass. One of the others nearly lost himself but Boys took his weight upon arm and shoulder and saved him. They were now free of the fort, having accomplished a perilous and laborious work in less than four hours.

It is needless and would be wearisome to follow their progress in detail. They crossed the glacis, gained the high road and were brought to a stop by the closed gates of a walled town; entering the ditch they discovered a subterranean passage and found a secure asylum among the rubbish of some old works. The map told them when daylight came that this was part of the fortifications of Tournay, and after a long rest, feeling they were quite safe for the time being, they fared forth at dusk making for Courtrai and reached it next morning, having now traversed twenty-five miles of the whole distance of sixty that had interposed between them and the sea coast on starting. But the river Lys was in front of them and could not be passed at this fortress town; it was necessary to follow its downward course by the right bank as far as Deynze where they lay in a wood until they mustered up courage to enter the town. Here they gave themselves out as conscripts marching to Ghent and found both food and shelter at a low public house. At four o'clock in the morning, rested and fortified with supplies, they crossed the river and took the direct road to Bruges, twenty miles distant, with only ten miles to the coast at Blankenberg, hard by Ostend.

They found a solitary public house on the third night close to Blankenberg, kept by a woman well disposed to the English, who recognised and befriended them, sending them on after a good supper and unlimited gin. Their emotion was intense on reaching the sea which they had last left at the Mediterranean, and they rather hastily imagined their troubles at an end. But it was an impossible task to launch a boat from that flat beach, although many lay on the shore, and rather despairingly they returned to the kind soul at the cabaret with whom they soon bargained to be put across the channel. She agreed to find a boat and a crew to man it at the price of one hundred pounds. Meanwhile she gave them shelter while negotiations were opened with the local fishermen, which began on the 2nd January, 1809, and were continued in the teeth of innumerable contretemps and disappointments for nearly five months. The Flemish seafaring folk were afraid to act, deterred by the close watch set on all boats and the penalties that hung over all who ventured to assist fugitive prisoners. There was endless haggling about terms, great distrust of the methods of payment suggested, suspicion was always rife of treachery in the agents employed, and unexpected difficulties arose as to the choice of a place of embarkation, but at last the island of Cadsand opposite Flushing was chosen and the party made a last halt concealed in the ruins of the fortress of L'Ecluse. Patrols constantly on the alert must be eluded and all movements screened, but at last on the night of the 8th of May news came that the boat was close at hand. At ten o'clock with the weather fierce, the night dark, they marched down to the beach and as soon as the patrol passed, the private signal was made and answered. The boat glided silently inshore with muffled oars; they rushed in and in an instant were safe afloat; each seized an oar and vigorously applying his utmost strength they soon reached beyond the range of shot.

At daybreak the boat was under canvas going free, by three o'clock the white cliffs of England were in sight, and by five they landed at Ramsgate. The luck had turned for Mr. Boys. He was well received at the Admiralty, immediately passed, promoted lieutenant and appointed to H. M. S. *Arachne* which sailed soon afterwards for Flushing. The expedition to Walcheren was at that time in full swing, and although it was fruitless, the presence of the fleet in those waters was likely to benefit the escaped prisoners still detained on the Dutch coast. Mr. Boys was sent for the purpose of bringing them off. He was unfortunately called away to other

duty, but the rescue was effected of several officers who had assisted Boys to escape from Valenciennes.

A few last words about Verdun. The scandals caused by the misgovernment of Wirion and Courcelles were summarily checked by the removal of the chief offenders. Any repetition of them was quite prevented by the appointment of an upright, honourable soldier, Col. Baron de Beauchène, to the chief command. He announced his firm intention of putting an end to all oppression in these words: "It will afford me real pleasure to render the prisoners under my care as happy as they have been miserable under others. I have served against the English in Spain, and am not ignorant of their generous conduct towards my countrymen. In return I ought to show all possible lenity,"—and he did. Captain Boys speaks of him as the fountain of "justice and equity." He did not live long but died after a few days' illness "respected and lamented by every one." Nearly the whole body of the English in Verdun attired in full uniform attended the funeral. After Baron de Beauchène, a commandant of the Courcelles stamp was in power but was speedily superseded by Major de Meulan, a gallant soldier, honourable and just.

The depots on the north-eastern frontier were hurriedly broken up as the tide of invasion rolled forward, and the prisoners were hurried southward to Blois. There were more than twenty thousand, and they might have rendered some signal service by joining forces with the allies. But they were incapable of taking decided action. Most of them had grown gray in captivity, extending for many over eleven years, had lost all energy, and passed a mere animal existence indifferent to change and callous to the chances offered to regain freedom. Their minds no longer responded to any outside stimulus, but were torpid and inactive. Many had grown so accustomed to prison life and were so broken by its hardships that any exertion seemed distasteful. They marched from prison to prison and, unlike the ardent souls whose adventures have been described, no one made an effort to escape.

CHAPTER XI

AMERICAN WAR PRISONS

War-prisoners in other countries—The worst in the United States—British prisoners during the Revolution—Prisoners during the Civil War—Important Confederate prisons, Libby, Belle Isle—Sufferings of Union prisoners—Attempts to tunnel out—Andersonville; situation, crowding, lack of food—Horrible suffering and high mortality—Conditions at Salisbury, North Carolina—Federal prisons—Suffering at Fort Delaware—Descriptions of prisoners held there—Johnson's Island—Horrible suffering from cold—Dr. Wyeth's experiences at Camp Morton—Point Lookout and Elmira—Mortality statistics—Responsibility for ill-treatment.

ENGLAND and France are not the only countries in which prisoners of war, and other non-criminal prisoners have suffered. Indeed the story of those made captive by the fortune of war is so much worse in other countries, that the hardships mentioned in the preceding chapters seem trifling inconveniences in comparison. Strange to say the most horrible prison pens have not been in Europe, but across the Atlantic, in the latter half of the nineteenth century.

Imprisonment for debt was common in America during the colonial period, and persisted after the adoption of the Constitution, but in a thinly settled country, with no large cities, there was no great prison which stands out like the Fleet or the King's Bench.

During the Revolution, British prisoners were taken here and there, but the numbers except at Saratoga, where General Burgoyne surrendered, in 1777, and at Yorktown, were not large. Generally they were treated as well as circumstances allowed and besides were soon exchanged. The fact that they were in a hostile country, where their power to work harm was slight, made strict guarding unnecessary.

Burgoyne's men under the convention signed by the British leader and General Gates were promised transportation to England on parole, and first were marched to the vicinity of Boston. The agreement was repudiated,

however, and Congress ordered that they be taken to Charlottesville, Virginia. Madame Riedesel, the wife of the commander of the Hessians, has given in her sprightly diary an interesting account of their experiences, first at Charlottesville and then at Lancaster, Pennsylvania. Evidently there was little suffering. Many simply walked away and settled in the new country. Others joined the American army and by the time peace was declared the camp had practically melted away.

Some dark pages tell of the experiences of American prisoners in New York when the city was held by the British. Even worse were the experiences in the British prison ships in the harbour. There over-crowding, improper food and disease, took heavy toll of the prisoners, but the story is the same, in its essential features, as the account of the prison ships given in the preceding chapters. A prison ship was a prison ship whether anchored in British or in American waters.

With the great Civil War, we enter upon new ground. The contending parties were not different nations, but sharers of a common heritage joined both by tradition and by blood. War was waged upon an extraordinary scale. Never before were so many prisoners taken and held. While the figures are not entirely reliable, the best estimate places the number captured by both sides at 674,045, and the number held in prison for a longer or shorter time at 409,608, truly a stupendous army.

The proper care of such a number of men is task of surpassing difficulty, even where the authorities are accustomed to handling men in large masses. When they are not, the machinery must break down. Add to the inherent difficulty the fact that prejudice was strong, that war always brings out the petty and cruel as well as the nobler sentiments, and that one of the contending parties was hard pressed for food for its own soldiers, and you have the materials for tragedy.

Some prisoners were taken on both sides during 1861, and the number increased the next year. In 1862 Edwin M. Stanton, Secretary of War of the United States, stopped the exchanges because of a quarrel about terms. The differences were patched up, however, and exchanges went on until July, 1863, when Major-General Halleck again ordered exchanges to stop. On the Federal side many negroes had been enlisted, a considerable proportion of whom were runaway slaves. The Confederate authorities declared that these were not subject to exchange but should be returned to their masters. Both

sides were firm, and few prisoners were exchanged until near the close of the struggle.

An investigator has counted sixty-eight points where Confederate prisoners were kept for a longer or shorter time, counting each town or city as one even though several prisons were within the limits. The number of Federal prisons was not so large as seldom was it necessary to remove prisoners because of the approach of a Confederate army. Only a few are important, however, on either side.

The best known Confederate prisons were Libby and Belle Isle in Richmond, Va., Salisbury, N. C., Florence and Charleston, S. C., Andersonville and Millen, Ga., though at different times there were large numbers at Danville, Va., Raleigh, N. C., Columbia, S. C., and Savannah, Ga., but it is chiefly Libby and Belle Isle, Salisbury and Andersonville, that have filled the popular imagination.

Libby was an old three-story warehouse 140 by 105 feet, in the centre of Richmond. The building was divided by transverse brick walls into rooms each about 105 × 45 feet. This was preëminently a prison for officers. Few enlisted men were confined here, but it was so crowded at times that it was difficult to walk among the sleeping bodies. There were no bunks. Wrapped in the thin vermin-infested blankets the men lay upon the hard floors. There was an abundant supply of good water for drinking and cooking, limited bathing arrangements, and fair sanitary conveniences. The ceiling and walls were whitewashed at intervals and the floor was scrubbed every day. Lying upon the damp floor was, however, a cause of much sickness.

The food in the early months of use was fair, though the Northern stomach unaccustomed to corn meal revolted at times. Boxes from home were promptly delivered, and the sutlers furnished dainties of a sort. As the months went on supplies in the Confederacy grew scarcer and rations were cut down. The portion of bread was smaller and of poorer quality. Some prisoners declare that both cob and husk were ground with the corn. The meat was poorer in quality and smaller in quantity. As it was generally served raw, the prisoners cooked it badly. The supply of vegetables was scanty and sometimes for days none was issued. Boxes were no longer delivered promptly. Scurvy, dysentery, and severe stomach troubles were prevalent, and hundreds died.

Yet hope was not given up. The men had resources within themselves. Prisoners tell of dances, vaudeville performances, and attempts to give special dinners. The hope of escape did not die. In the fall of 1863 several unsuccessful attempts to tunnel out were made. Col. Thomas E. Rose of the 77th Pennsylvania regiment had conceived the plan of tunnelling from the cellar under the street east of the prison into a warehouse yard. The tunnel led through a fireplace in the cook room, where the prisoners were permitted to go, down into the cellar. The piles supporting the walls were cut through with pocket knives, and the earth was attacked. The only implement was a chisel. A wooden spittoon, to which strings were attached, brought the earth back into the cellar where it was spread on the floor and concealed by straw.

The work went on for several weeks, when owing to a miscalculation the tunnel came to the surface in the street. The hole was stopped, however, and was undiscovered by sentinels or pedestrians, while the work went on under the fence. On Feb. 8, 1864, one hundred and nine officers passed through and fifty-three succeeded in reaching the Federal lines. Some of the remainder died of exposure, and some preferred death to further imprisonment. Those recaptured, among whom was Colonel Rose, were brought back and all prisoners were more closely guarded thereafter.

Belle Isle, the prison for the enlisted men, was a wooded island in the James, once a place of resort for pleasure. On it was constructed a prison pen with few buildings. The supply of tents was insufficient, the water supply not good, and the food worse than in Libby. During the summer months the mortality was not excessive, but when the sharp winter came on, the ill-fed, poorly-clothed, badly-sheltered prisoners suffered terribly. On January 5th, 1864, five are said to have been frozen to death. The general testimony seems to show that the officers were humane, but many acts of cruelty on the part of the guards undoubtedly occurred. Some of the prisoners were desperate characters, bounty jumpers and the like, and they did not scruple to rob and even murder their comrades. Many lost hope and observed no sanitary precautions. The report of the U. S. Surgeon who received late in the war one hundred and eighty-nine prisoners from this place, says: "Every case wore upon it the visage of hunger, the expression of despair.... Their hair was dishevelled, their beards long and matted with dirt, their skin blackened and caked with the most loathsome filth, their bodies and clothing covered with vermin."

As the number of prisoners and the difficulty of feeding them in Virginia increased, arrangements were made to send them southward. Orders were given in November, 1863, to select a site for a prison in southern Georgia. The little hamlet of Andersonville, sixty-two miles south of Macon, was chosen and a log stockade fifteen feet high enclosing about sixteen and a half acres was constructed. A small stream about five feet wide and a foot deep divided the pen, and was expected to furnish water and carry away the sewage. No shelters of any account were constructed, and the bake house was so constructed that the waste from it fouled the stream.

Prisoners began to arrive in February, 1864, before the work was completed, and during August the number was nearly 33,000. Though the stockade had been enlarged in June, to include twenty-six and a half acres, three and a half acres of the area were too marshy to be used. In addition a light railing fifteen feet from the wall indicated the "dead line" across which a prisoner passed at his peril. A simple calculation will show that only a few square feet were available for each of the poor wretches, and the crowding if nothing else was bound to produce sickness.

The regular Confederate ration was ordered issued at first, consisting of one-third of a pound of pork and one and one-fourth pounds of corn meal with beans, rice and molasses as often as practicable, but this was soon reduced. Gen. J. H. Winder, commandant of prisons, telegraphed to Richmond, July 25, 1864, that with 29,400 prisoners, 2,650 troops and 500 labourers, there was not a day's ration on hand, and suggested that at least ten days' supplies should be always kept in reserve. He was answered that Lee's army could be furnished with only one day's food at a time, and that it was impossible to grant his request.

The quality of the food was bad, the bread was only half cooked, there was insufficient wood for the prisoners to cook the meat, and some of the scanty supply was appropriated by the hungry guards who fared little, if any, better than the prisoners, so far as food was concerned. The prison also contained many desperate characters who robbed their fellow prisoners. These outrages became so frequent, that with the consent of Capt. Henry Wirz, the commander of the stockade, the prisoners themselves organised a court, tried, convicted and hanged six of these miscreants, after which, the "raiders," as they were called, were more careful.

During the summer of 1864, the stockade was a hell on earth. Ten thousand men might have lived within the enclosure with some degree of decency. Thirty thousand could not. The stream could not carry away the filth, and heavy rains spread it over a large part of the enclosure.

The hospital, though moved to the outside of the stockade, could not care for the sick. Proper food, medicine, and appliances were lacking even if the medical staff had been larger and more skilful. The United States had made medicines contraband of war and many simple drugs could not be had at any price. Truly the hospital was a “gigantic mass of human misery.”

The rations issued grew smaller, and more uncertain. President Davis declares that they were the same issued to the soldiers in the field and that more could not be expected, particularly as the Confederacy was, in the face of rebuffs, constantly urging an exchange of prisoners. A visitor to the Executive Mansion in Richmond, who remained to dinner, relates that the meal consisted of fried bacon and corn bread. In the spring of 1864, General Lee had meat upon his table twice a week, but his usual fare was cabbage, sweet potatoes and corn bread, while sometimes the troops marched for days with no other food than parched corn, which they pounded into a coarse powder and mixed with water. Yet during all this time, there was food in some parts of the South, but poor transportation facilities made it unavailable.

The mortality at Andersonville was fearful. During July, 1864, it was 62.7 per thousand prisoners. In all, from first to last, 49,485 prisoners were confined here, of whom more than 12,800 died, a rate of twenty-six per cent. How many more died soon after exchange, or else dragged out a miserable existence with shattered health and broken spirits, can never be computed. That distinguished and impartial historian, Mr. James Ford Rhodes, well says: “Thus insufficiently nourished, exposed by day to the fierce Southern sun, by night to dews, drenched with torrential rains, languishing amidst filth and stench, breathing polluted air, homesick, depressed, desperate, these men were an easy prey to the diseases of diarrhœa, dysentery, scurvy and gangrene.”

In September, 1864, the near approach of General Sherman caused the temporary abandonment of the prison. The inmates were sent to Savannah, Ga., and Charleston, S. C., and thence to Florence, S. C., and Millen, Ga. This last named place was soon abandoned and the prisoners sent back to

Andersonville. The place had been somewhat cleansed, by sun, wind and rain, and as it was not again so crowded, conditions were decidedly better.

At Florence, conditions were bad, but the officers in charge did all that could be done with the scanty means at hand, and can not be charged with neglect or cruelty. The same, perhaps, may be said of Salisbury, N. C., where some of the Andersonville prisoners were sent, but this prison deserves fuller mention.

The buildings of an abandoned cotton mill situated in a grove of sixteen acres were purchased by the Confederate government in the fall of 1861 and at first were used as a prison for deserters and disloyal persons. Gradually prisoners of war were sent and in March, 1862, there were about fifteen hundred. There was abundance of room, plenty of good water, and in spite of the coarse food there was little sickness. These prisoners were soon exchanged, but others followed them. Still, up to the latter part of 1864 conditions were endurable. In September of this year, the commandant, Major Gee, was notified to expect a large increase which arrived before he was ready for them. Early in October 5,000 came and 10,000 more before the end of the month. Some tents were furnished, the buildings already constructed sheltered a number, but the larger part were left to their own resources. Many burrowed into the hillside, built chimneys to their dugouts, and whittled shavings for a carpet. Others built rude shelters from boxes and planks. A train was kept running to bring fuel, but could not furnish an adequate supply. The wells were drained by constant use and prisoners under guard brought water from a neighbouring creek. Many of these escaped, and others broke through the rickety fence in spite of the "dead line" which existed here as it did at all enclosed prisons north and south.

The food was poor, the rough corn meal caused stomach trouble, and the hospital arrangements were entirely inadequate. Preparations to build more barracks were under way, when the officers were notified that the prison was to be abandoned. Meanwhile Sherman's triumphant northward march threw everything into confusion, and conditions remained about the same until the prisoners were released. To-day the rows of graves in the Federal Cemetery, many of them containing unknown dead, show that here as elsewhere disease and hardship reaped a heavy harvest.

Though much more has been written about prison horrors in the South than in the North, conditions in the latter section were also deplorable.

Where the Federal soldier suffered from the Southern sun the Confederate suffered from the Northern winter, and other conditions were not so different as is generally supposed. James Ford Rhodes, quoted above on Andersonville, says of Federal war prisons generally:^[10]

“Prisons at the North were overcrowded ... bathing facilities hardly existed, ventilation left much to be desired and the drainage was bad. The policing was imperfect, vermin abounded.... Some of the commandants were inefficient and others were intemperate.”

Some prisons were old forts and the prisoners occupied the barracks. Generally they were enclosures like those at Belle Isle, or Andersonville, though everywhere except at Point Lookout, there were rude barracks for shelter, and at Point Lookout tents were supplied. Conditions differed much at different places, depending somewhat upon the officers. At Fort Warren in Boston Harbour apparently there was no cause for complaint, while no former inmate speaks of Fort Delaware without curses.

This last mentioned prison was built upon a small island in Delaware Bay about two and a half miles from the mainland. Much of the island was below low water mark and a dyke kept out the water. Canals of polluted water crossed the prison enclosure, and poisoned any wound washed in them. There was little or no drainage, food was scanty and bad, the officers and guards were cruel, the mortality was high. Alexander Hunter in “Johnny Reb and Billy Yank” says, describing some prisoners released from that enclosure: “Scores seemed to be ill; many were suffering from scurvy, while all bore marks of severe treatment in their thin faces and wasted forms. They were in the dirtiest, filthiest condition imaginable, and not a face there looked as if it had been washed for weeks. Their clothes were torn and ragged; in fact some had not enough tatters to cover their nakedness. Take it all in all, it was the saddest sight that our eyes had ever looked upon and made the heart ache to witness it.” Of one particular friend he says further: “In short, a month’s residence in Fort Delaware had changed him from the very picture of health and strength into a lame halting invalid whose body and mind seemed to have received some great shock.”

Johnson’s Island in Lake Erie, near Sandusky, Ohio, was an officers’ prison, corresponding to Libby. The barracks were old wooden buildings with many cracks and the prisoners suffered intensely from cold. Many of them were from the far South and had never seen snow. To them, the sharp

winds from the lake represented a torture unknown, and when in January, 1864, the temperature went down to 25° below zero, the suffering was intense. At first the food was good, but rations were cut down, sutlers were excluded from the enclosures, and the prisoners declare that they were always hungry. Some picked decaying food from the swill barrels, or ate rats when they could be caught.

Camp Morton, at Indianapolis, was an old fair ground, which had been turned first into a training camp for recruits and then into a prison. Some of the barracks were the old stalls once used for cattle. It was generally considered in the North one of the best managed of all the prisons. Yet Dr. John A. Wyeth, now a distinguished physician of New York City, who was captured when a boy of eighteen, in an article in the *Century Magazine* in 1891, giving his own experience and that of his fellow-prisoners, says: "I had no disease. It was starvation pure and simple," and again, "No bone was too filthy or swill tub too nauseating for a prisoner to devour. The eating of rats was common." He further says that the one thin blanket allowed a prisoner was sometimes covered with snow which had sifted through the cracks, and some prisoners froze to death. The guards are described as harsh and a few as tyrannical, and even murderously inclined.

The prison at Point Lookout on the north shore of the Potomac River just above the mouth is described by a Virginia officer, A. M. Keiley, in his interesting book, "A Prisoner of War," as consisting of two pens on land only a few inches above water at high tide. The prisoners taken at Gettysburg were the first to occupy these quarters. Here tents were supplied in place of barracks, but the supply of wood was scanty, and during the winter high winds drove water over the land, and converted the whole pen into a sheet of ice.

The same officer was then transferred to Elmira, New York, where nearly 10,000 prisoners were confined during August, 1864. The ground had been a receiving station for recruits. Both wooden barracks and tents were in use. The water was good and the commanding officer was efficient and humane, though some of his subordinates are charged with cruelty, as was also a part of the medical staff. Though an abundance of bread was supplied, little meat was issued, and after the sutlers were excluded, August 18, 1864, an epidemic of scurvy followed. Speaking of some of his fellow prisoners who were finally exchanged, he says: "On they came a ghastly tide with skeleton bodies and lustreless eyes, and brains bereft of but one

thought, and hearts purged of all feelings but one—the thought of freedom, the love of home ... some with the seal of death stamped on their wasted cheeks and shrivelled limbs, yet fearing less death than the added agony of death in the hands of enemies.”

Who was responsible for all this misery? Was this horrible suffering deliberately inflicted by the authorities with a fixed purpose in view? Such was undoubtedly the general belief in the North regarding the Confederate government. Secretary Stanton as early as December, 1863, declared that Union soldiers held captive “were deprived of shelter, clothing and food and some have perished from exposure and famine.” After the war, Captain Wirz, the keeper of Andersonville, was tried and convicted by a military tribunal which returned a verdict that he had conspired with Jefferson Davis and others against the lives of Union soldiers. Wirz was hanged Nov. 10, 1865, and General Winder’s death probably saved him from a similar fate.

On the other hand President Davis in a message to the Confederate Congress in December, 1864, says the Union soldiers were given the same rations “in quantity and quality as those served out to our own gallant soldiers” while “the most revolting inhumanity has characterised the conduct of the United States toward the prisoners held by them.”

Many similar official or semi-official statements were made on both sides. Mr. Rhodes has weighed and sifted the evidence, perhaps more thoroughly than any other historian, and his verdict is as follows: “There was no intention on either side to maltreat the prisoners. A mass of men had to be cared for unexpectedly. Arrangements were made in a hurry, and as neither side expected a long duration of the war, they were only makeshifts devised with considerable regard for economy and expenditure. There was bad management at the North and worse at the South owing to less efficient organisation with meagre resources. And it plainly appears from the mass of the evidence that the prisoner at the North was the better off of the two, as he always had food and shelter.”

Mr. Rhodes then compares the revised statistics which show that of 194,743 Union prisoners held by the Confederacy, 30,218 or fifteen and a half per cent. died, while of 214,865 Confederate prisoners 25,976 or twelve per cent. died. He then declares that considering all things the balance was nearly even and that the North has no cause to reproach the South.

In making up this judgment he undoubtedly takes into consideration the attitude of Secretary Stanton and General Grant. When the Confederate authorities, burdened with the great mass of prisoners whom they could not feed, finally and persistently besought exchange upon any terms, General Grant said in August, 1864: "It is hard on our men held in Southern prisons not to exchange them but it is humanity to those left in the ranks. Every man we hold when released on parole or otherwise becomes an active soldier against us, at once directly or indirectly. If we commence a system of exchange which liberates all prisoners, then we will have to fight on until the whole South is exterminated. If we hold those caught they amount to no more than dead men." Therefore, with iron nerve he resisted all pressure brought to force an exchange, and was sustained by Secretary Stanton. Both these men must share with the Confederate authorities the responsibility for prison horrors.

Handling men in masses is always difficult. In the Crimea, just ten years before the awful winter of 1864, the English army was reduced by famine and disease to a mere skeleton. Here there was no animus, but only incompetence to meet the difficulties of the situation. During the Franco-Prussian War, in spite of the wonderful preparations on the part of Prussia, bitter complaints of the treatment of French prisoners were made. But the misfortunes or the failures of one nation do not excuse or justify those of another. The treatment of the Civil War prisoners fills some of the darkest pages of American history.

FOOTNOTES:

[1] A "fleet" in early English meant a "brook," otherwise a "creek" or "bay," a term often met with in British geography in the names Northfleet, Byfleet, Purfleet, etc.

[2] "State of Prisons," i. 36.

[3] A free inmate who carried messages abroad.

[4] The doorkeepers and porters whose duty it was to recognise all prisoners, and prevent them from passing through the gate.

[5] Oldys was for many years an inmate of the Fleet Prison. He was permitted to go abroad to see his friends outside and even to spend the whole night at large.

[6] The reader will remember Mr. Pickwick's kindly relief of Mr. Alfred Jingle and his faithful henchman Joe Trotter in the Fleet.

[7] The manufacture of straw plaiting was taxed and brought in a revenue to the Exchequer.

[8] This is not correct. Compare with official report, *ante*, p. 194.

[9] Captain Stopford was an officer who had served with distinction in the Indian Mutiny as adjutant of the 52d Light Infantry. He subsequently became a Prison Commissioner and is now a gentleman usher to His Majesty Edward VII.

[10] History of the United States. Vol. v, p. 487.

Typographical errors corrected by the etext transcriber:

the involvent debtor=> the insolvent debtor {pg 38}

que deux heros=> que deux héros {pg 79}

According to the acount there given=> According to the account there given {pg 101}

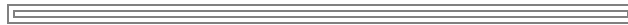
the hospital and died there of “*langedeur*,”=> the hospital and died there of “*langueur*,” {pg 168}

detenus=> détenus {pg 234, 240, 274}

on supicion of being a spy=> on suspicion of being a spy {pg 253}

‘*Tuez moi ces coquins ci*’=> ‘*Tuez-moi ces coquins-ci*’ {pg 266}

tres mauvais sujets=> *trés mauvais sujets* {pg 275, 276}



*** END OF THE PROJECT GUTENBERG EBOOK NON-CRIMINAL
PRISONS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.

The History and Romance of Crime

FROM THE EARLIEST TIMES
TO THE PRESENT DAY



THE GROLIER SOCIETY
LONDON

[back](#)



[back](#)



[back](#)



[back](#)



[back](#)